



**Lecture
on
Constitutional Law-II**

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Unit-I

Topics Covered

Legislature under Indian Constitution - Union and State Legislatures - Composition, Powers, Functions and Privileges - Anti-Defection Law - Executive under Indian Constitution - President and Union Council of Ministers - Governor and State Council of Ministers - Powers and position of President and Governor

The Union Legislature

The supreme legislative organ of the union of India is called the Parliament. Indian Constitution provides us a Parliamentary Democracy. Parliament of India is made from Lok Sabha, Rajya Sabha and President. Articles 79-122 of the Indian Constitution deal with the composition, powers and procedures of the Parliament of India.

Composition of the Parliament

Article 79 of the Constitution of India states that there shall be a Parliament for the Union, which comprises of the President and the two Houses- Rajya Sabha (the council of states) and Lok Sabha (House of the people).

Article 80 of the Constitution specifies the composition of the council of states, which consists of **12 members nominated by the President and 238 representatives of the state and union territories.**

The allocation of seats in the council of states to be fulfilled by representatives of states and union territories in accordance with the provisions contained in the 4th schedule.

Representation from States- They shall be elected by the elected members of the legislative assembly of the state in accordance with the system of proportional representation by means of single transferable vote. Hence from the above it can be said that the number of seats to each state varies in accordance with population of that state. Therefore larger states occupy more seats than smaller states.

Representatives from Union Territories: By convention the representatives are indirectly elected by members of an electoral college and the election is held in accordance with the system of proportional representation by means of the single transferable vote. Among all the Union Territories only Delhi and Pondicherry have representation since all other UT's have less population.

Nominated Members- those persons who have special knowledge or practical experience in the fields of literature, science, art and social service are provided opportunity to enter Rajya Sabha without going through process of election. Recently this clause was in news for nomination of Sachin Tendulkar as it does not provide for sportspersons to enter Rajya Sabha through Presidential nomination but later it was accepted.

Article 81 specifies the composition of the house of the people, which consists of not more than 530 members chosen by direct elections from territorial constituencies in the states; **not more than 20 members representing the union territories;** 2 Anglo-Indians. **Representation of States-** They are elected by the people directly by universal adult franchise. Each state shall be allotted number of seats in the house of the people in such a manner that the ratio between the number and the population of the state is equal for all the states. There is also a provision for

reservation of seats for SC/ ST communities on the basis of population ratio.

Representation from Union Territories- According to the law prescribed by the Parliament the union territories direct election to the house of people act 1965 was passed and thereby they are also elected directly by people.

Nominated Members- President has powers to elect 2 members from Anglo-Indian community if the President feels that their community is not adequately represented.

Qualification for Membership of Parliament-

According to Article 84 following are the qualifications for members of Parliament. It states that a person shall not be qualified to be chosen to fill a seat in Parliament unless he-

- Is a citizen of India
- Makes and subscribes before some person authorized in that behalf by the election commission an oath or affirmation according to the form subscribed to that purpose in the third schedule.
- In case of council of states the age of the member should not be less than 30 years and in case of house of people the age should not be less than 25 years.
- Possessing such other qualification as mentioned by Parliament from time to time. Accordingly Parliament has passed Representation of peoples act 1951, following are additional qualifications as per this act.
- A person shall not be qualified to be chosen as a representative of any state or UT in the council of states unless he is an elector of a parliamentary constituency in India
- A person shall not be qualified to be chosen to fill a seat in the house of people unless in case of a seat reserved for the scheduled castes or scheduled tribe in any state, he is a member of any of SC / ST respectively whether of that state or of any other state and he is an elector for any parliamentary constituency.
- A person shall be disqualified where the convicted person is sentenced to only fine, for a period of 6 years from the date of such conviction or imprisonment, from the date of such conviction and shall continue to be disqualified for a further period of 6 years since his release.
- If the election commission is satisfied that a person has failed to lodge an account of election expenses within the time and the manner required
- Disqualification on the ground of corrupt practices and disloyalty
- The following are declared as corrupt practices under Representation of Peoples act 1951:
 - The appeal to vote or refrain from voting for any person on the ground of his religion, race, caste, community or language
 - Promotion of feeling of enmity or hatred between different classes of citizens on the ground of religion, race, caste, community or language
 - Publication of any statement of fact which is false in relation to personal character or conduct of any candidate
 - Booth capturing
 - Incurring expenditure in contravention to that specified

- Obtaining assistance from any person in service of government
- Hiring or procuring any vehicle for free conveyance of any elector to and from any polling station

Working of the Parliament –

Each house is the master of its procedure and may make rules for regulating its procedure and conduct of business subject to the provisions of the constitution. The validity of any proceedings in Parliament cannot be questioned in a court of law on the grounds of any alleged irregularity of procedure. Some of the basic rules of procedure and conduct of business have been laid down in the constitution itself. Every first hour of Parliamentary sittings start with question hour during which the members ask questions for which ministers are supposed to give their answers. The answers given by them shall depend on the type of question asked. Accordingly the questions can be starred for which the minister gives oral answers and other members can also ask supplementary questions depending on the answer provided by the minister. The questions can be unstarred for which usually written answer is provided by minister. Another type of question is short notice question for which a notice of 10 days is provided before asking questions for which also minister is supposed to give oral answer. Next to question hour is the zero hour which lasts till the agenda of the day. It is also utilized by members of Parliament to ask questions without giving any prior notice. The constitution has declared that Hindi and English can be the language of the Parliament. However presiding officer can permit for any other language to be used. Also every minister and attorney General has the power to take part in proceedings of any house of Parliament. They have the right to speak but without the right to vote in any other house other than the house to which they belong to.

Proceeding of the house- the President from time to time summons each house of Parliament. The maximum period within which a session is to be held is 6 months i.e. it should meet at least twice a year. Normally these sessions can be classified into 3 sessions in a year i.e.

- Budget Session – February – May
- Monsoon Session – July – September
- Winter Session- November- December

Powers, Functions and Limitations of Legislative Organs

“Law is the body of principles recognized and applied by the State in the administration of justice”. (Sir John Salmond)

Law has its different forms. It may be through the acts of the legislative bodies, through the acts of the executive or the judicial precedents and legal customs. But in the narrow sense we use the term ‘law’ as the law made by the legislative bodies. So there arises a question as to who is a legislature and what is its role in the law making process.

Legislative organs can be said to be a body which represents people’s will and transfers it to the will of the state in the form of laws. And in the separation of powers model, they also form the

important part of the state.

The terms 'Parliament' and 'legislature' are usually used interchangeably as generic terms for the elected represented body. But such legislative body takes different names in different countries. i.e. for example legislative body in UK is called to be 'Parliament' whereas the same in US is called to be Congress. The term 'Parliament' also connotes the supreme law making body. And the law made by them are called to be the primary and supreme legislations.

Powers and functions of these legislative organs also differ in different countries. As in the case of US, the legislative branch is the American Congress which is a bicameral legislature and the same consists of the House of Representatives and also the Senate. In case of UK, the British Parliament consists of the House of Common and the House of Lords. Indian Parliament also has the two houses, the house of people or the Lok Sabha which is the lower house and the Rajya Sabha, the upper house. Here the

legislative power may be limited as in case of American Congress and that of the Indian Parliament, whereas the same would be a kind of 'unlimited' in the case of the British Parliament. So the powers of legislative bodies may be strong or weak. It differs. Their functions are also not identical. The pertinent point to be noted is that it all depends upon the form of government a country adopts and upon the relationship between its executive branch and the legislature.

Functions of Legislative Organs

Function of Law Making

A modern Parliament, either in India or in any other country, is not merely a law making body. It has many other functions to do. But still, the most important function among them is the function of lawmaking.

The place of a legislative body in the law making process depends upon the character of the principle of separation of powers recognized in a country. For example separation powers are rigid in US and the same is flexible in UK. And the very same is not strictly applied in India too. In these countries the form of government also differs. The presidential form of government in US and the parliamentary form of government in UK and India also have different impacts.

When we have a look into the parliament of India, Indian Constitution provides for Parliament at the Union with President and the Lok Sabha and Rajya Sabha as the two houses . The structure of state government closely resembles to that of the Union Parliament. Legislature of the State consists of the Governor and the two houses, namely

Legislative Assembly and the Legislative Council where most of the states have adopted the unicameral way of legislature in the states i.e. the legislative assembly.

As in the Parliament, President does not actively participate in the deliberations of the two houses. But he is an essential element of the parliament as he has different functions such as to summon the two houses, to prorogue them and in dissolving the House of People. And a bill takes effect only after the President has given his assent to it.

Lok Sabha or the House of people is elected directly by the people on the basis of adult

suffrage. This house in its composition corresponds to that of the House of Commons in UK and to certain extends to that of the House of representative in US.

The Council of States can be said to be a continuing body, where 1/3 rd of its members retires every two years and its members are elected by an electoral college in accordance with the system of proportional representation by means of single transferable vote. Its composition corresponds and is comparable with that of the US Congress Senate in giving its representation to the States.

Parliament can make laws on a wide range of subjects allotted to it under the Union and the Concurrent lists in the VII th schedule to the Constitution. Residual powers also vests with the parliament in the matters that are not specifically assigned to the States. States can make law on subjects enumerated in the State list.

The procedure to enact laws are also detailed in the constitution, where a legislative proposal may be initiated in either house of the Parliament, in the form of a bill, and it should be passed by both the houses and the same should get the assent of the President. And in case of any disagreement between the two houses, a joint sitting may be summoned by the President . This call for a joint sitting of the both houses by the President is a unique feature of the Indian Parliament.

In US, a convention has been established to resolve such differences between the houses through a joint conference of selected representatives' of both houses of Congress. But if the report of this conference is rejected by either of the houses, the proposal of bill is also dropped. So the joint sitting procedure in Indian Parliament can be said to be a unique feature.

Administrative Accountability Function

In India, Parliament does not interfere with the day to day administration of the executive but exercise surveillance on it. Parliamentary scrutiny is exercised through various procedures like questions, motions, discussions etc.

Question Hour

Question hour is the hour where members of the parliament can raise any question with regard to the administrative activity. There the concerned minister is obliged to answer to the parliament, either orally or in writing. Questions may be either starred or non-starred. Starred questions are those for which an oral answer is expected and non-starred for which a written reply is expected. Generally a notice period of 15 days is to be given to the minister to make him reply to a question raised. But if it is urgent, with the permission of the speaker the same can be raised.

This question hour in Indian Parliament is similar to that of the Prime Minister Questions in the House of Commons in UK, where during every Wednesdays at noon when the House of Commons is sitting, the Prime Minister spends around half-an hour answering questions raised by the members. And where the Prime Minister is away on his official business, then his role is usually filled by the Deputy Prime Minister and if he too is not available, the next most senior

member of the cabinet will receive questions. This question hour procedure is also practiced in different countries in different names, as Question Period in Canada and Question Time in Australia. In US, as there is the Presidential form of government, there is no particular procedure of question hour as such.

Discussions

When the member who raised a question feels that the answer given to a question is not complete, he may be allowed by the speaker of the house to raise a discussion in the house for half an hour. This is generally termed as the Half an Hour discussion. During discussions, the members have full liberty to criticise the administrator for their past performance and can even suggest how they should act in future. In UK also there is the half-hour debate where members raise questions in the Westminster Hall.

Committees

Another method of having administrative surveillance is by way of Parliamentary Committees. They may be either Standing Committees or the Adhoc Committees. Standing Committees are constituted every year and they work on a continuous basis whereas the Adhoc Committees are created temporarily for a specific task. There are Standing Committees both in Lok Sabha and Rajya Sabha. They exercise certain functions such as they enquire, scrutinise and review the whole range of administrative actions. These Committees are similar to that of the Select Committees in UK.

Executive Responsibility

In India, head of the executive is the President and the executive powers are vested in him and are taken in his name. But he is only the formal head as he acts only on the aid and advice of the council of ministers.

The parliamentary control over the executive is based on the constitutional provisions of collective responsibility of Council of ministers to the House of people. This has been specifically enshrined in Article 75(3) of the Indian Constitution.

In UK also the concept of collective responsibility is accepted. US Constitution does not recognize this concept as there is President, who is having the ultimate power of decision making and he is the one who ensure that the law made by him is faithfully executed.

Collective Responsibility

The collective responsibility concept lies on the principles that the minister must not vote against the government policy or speak against the government policy and all the decisions taken by a minister is the decision of the government. The ministers are also individually responsible to the head of the State in the sense that Ministers hold office during the pleasure of the President. But again the President acts only on the advice of the council of ministers headed by the Prime Minister. So ultimately the government can make a minister resign if he acts against the government policy. In collective responsibility, if a no- confidence motion is been passed, the

whole government has to resign. So ministers are individually and jointly responsible to the house. But it is also certain that the government can overcome the same if it is a majority government and gains public confidence.

Adjournment motions

Another method of having control over the executive is by way of introducing adjournment motions in the houses, to invite the attention of members of the house towards a serious problem seeking public attention.

Cut Motions and Censure motions

Cut motions are where the members of Lok Sabha have veto power to oppose a demand in the financial bill discussed by the government. And if the same gets passed, ultimately the government has to resign. Censure motions are brought when the ruling government fails to act according to their policy.

Representational Role

It is also the primary function of the legislative organs in the modern democracy to represent the people. They represent the changing needs and moods of the people. They represent as well as give expression to their difficulties, problems and grievances and seek redressal for the same in the house.

Conflict Resolution and National Integration Role

Conflicts are natural to man. Conflicts may be either of ideas or interests or may be for the struggle for power by various contending forces. The role played by the Parliament in resolving conflict is great. That is there the members of parliament who are from the different parts of the country irrespective of their caste, creed, religion or region; they meet informally and discuss in groups the problems which affect the country as a whole. It creates the feelings of national integrity.

The Informational Role

The parliament also has its significant function of informational role. That means the parliament has right of being informed. Government should feed the parliament with information's by way of reports or by way of laying papers on the table of the house or by placing documents in the parliamentary library. Based on this the parliament may discuss on its shortcomings.

The Leadership Role

Parliament or the legislative organs also functions as a nursery for the political leadership. And these political leaders are one who can influence the society towards attainment of their specific goals. They built relationship with the Stakeholders and have a great impact on the wellbeing of the nation itself and for its people also.

Powers of Legislative Organs

Legislative Powers

Legislature has different powers and its main power can be said to be the power to enact laws. In total the legislature has the power to regulate the rights and obligations of the people, in accordance with the constitutional provisions.

As already state the legislature in India includes the Parliament at the centre and legislative assembly and legislative councils at the state level. They make laws on the subjects enumerated in their lists concerned. But the Union Parliament has certain powers to enact laws over the subjects stated in the state list under certain circumstances. They include when a national emergency is proclaimed, or in case the Rajya Sabha passes a resolution with 2/3 rd majority that for national interest the parliament should make laws on subjects in state list, or for the reason of implementation of international treaties, and during the period of presidential rule is in force and also in case where the states concerned itself passes such a resolution seeking it.

In another aspect when we look into the powers of the houses to enact a law, particularly in the financial matters, power of the Rajya Sabha can be said to be limited, merely having the power of a delaying veto. A money bill shall be introduced only in the House of People. And after the same gets passed, it should be sent to Rajya Sabha for its recommendations and the Rajya Sabha should within 14 days, return it to the Lok Sabha with recommendations. If not the bill is deemed to be passed and even if it is sent back with recommendations, the same may or may not be adopted by the Lok Sabha. And also the President cannot withhold his assent and he even does not have the power of veto in case of a money bill.

This situation is similar to that of the House of Lords in UK, where they do not have any power, even the power to make recommendations for the consideration of the House of Lords. In US too, a revenue bill can be originated only in the House of Representative and not in the Senate.

The law making power of the legislature also includes the power to delegate its power to the executive. That is in this modern democracy, although the supreme law making body is the legislature, most of its law making power has been delegated to the executive. Particularly in India, due to various numbers of reasons such as lack of parliamentary time, lack of expertise and also to meet unforeseen emergencies, the same can be delegated. But as held by the honourable Supreme Court in the case of Re Delhi Laws Act case the essential legislative functions cannot be delegated. And the law made by such delegates is known to be the subordinate legislation and they may the rules, regulations etc and these have the same force as law as defined under article 13 of the Indian Constitution.

As there exists the strict application of 'separation of powers' theory in US, delegated legislation is not entertained there. But in the recent periods, the judiciary out there has taken a liberal approach and had upheld a number of delegations. Whereas when looked into UK, delegated legislation is a kind of unlimited there, as constitutionality and separation of powers does not become a limitation there upon it. But although these delegations are allowed the same is always subjected to the legislative control as well as to the judicial control.

Executive Powers

The legislative control over the executive is through various methods such as the principle of collective responsibility, committees etc as already discussed. Executive is responsible to the legislature individually as well as collectively.

Financial Powers

The parliament or the legislature controls the financial matters. The government passes the budget before the starting of a new financial year. And the parliament discusses over the budget and gives assent to that bill. And no money can be spent or no tax can be imposed without the approval of the Parliament. If the budget does not get passed then also ultimately the government should resign.

To keep a vigil on how the executive spends money granted by the legislature, there are two standing committees. They are the Public Accounts Committee and the Estimates Committee. The public Account Committee oversees the financial functioning of the government based on the audits Comptroller and Auditor General.

Judicial Powers

Judicial powers of the parliament includes the power to impeach the President for violation of the Constitution, the power to remove the judges of Supreme Court and High Court on the grounds of proved misbehaviour and incapacity, the power to remove the Vice President etc.

Certain consequential powers are also vested in the Parliament so as to protect the privileges and immunities vested in it. It includes the power of the legislature to punish any person, whether he is a member or not, for the breach of privilege or for contempt of the house. This power is also the most important privilege too. Parliament and State Legislature has also the power to judge for themselves what is right and what is wrong. And if the contempt is committed in the immediate presence of the house, the contemnor may or may not be heard. He may be taken on immediate custody and if he apologizes and if the House pleases, he may be left free. Each House has also power to execute warrant to punish a person who commits the contempt. The punishment may range from admonishment which is the mildest form to reprimand, the most serious one. If the contemnor is a government officer or employee, punishment may extend to departmental action too. In case if the contemnor is a member of the house the punishment may range to suspension or expulsion of such person from the house.

Speaker of the House is the person who has the authority and power to inquire into a matter of contempt and pass orders. And if the speaker comes to the conclusion that a person has violated or committed an offence, he may report to the House and a motion may be moved to punish him for such contempt of the House. Speaker has the power to take action suomoto also.

The legislature also has certain other consequential powers such as the power to compel the attendance of witness and to provide documents, the power to regulate its own procedure and

conduct of business and also the power to exclude strangers from the house.

This power of the Indian parliament is similar to that of the Congress power to punish for contempt of Congress, for libelling a member of Congress. The power to punish its contemnor also vests with the House of Commons of UK, established through precedents there.

Electoral Powers

Elected members of the Parliament and elected members of the Legislative assemblies as well as the elected members of the legislative assemblies of the Union Territories participate in the election of the President, the head of the Executive. Members of both Houses of Parliament participate in the election of the Vice President. Houses also participate in the election of the Speaker and Deputy Speaker to the Lok Sabha and Deputy Chairman to the Rajya Sabha respectively.

Constituent Powers

Article 368 of the Indian Constitution provides specific provision for amendment of the Constitution and the Parliament is the repository of the constituent powers of the Union. For an amendment, a bill should be introduced in either Houses of the Parliament so that the constitutional amendment has been exclusively reserved for the Parliament. And the provisions of the Indian Constitution can be amended by the Parliament only by a special majority, not less than 2/3 rd members of each house present and voting. In case of limited categories of constitutional provisions, special majority needs to be ratified by the legislature by not less than half of the States. And also, the Constitution Amendment Bill, as duly passed or ratified should be presented to the President and the President should give his assent and there he has no option to withhold his assent or to return the bill to the House for reconsideration.

The Parliament also has the power to alter, repeal or amend any provision of the Constitution and such amendments cannot be question before any court of law on any ground unless they tend to alter or violate the 'basic structure' of the Constitution. The 'basic features' as defined by the court has not been foreclosed and the same has been interpreted by different judges in different cases in a very wide manner.

Control over the Judiciary

This can be said to be peculiar feature of the legislature in U.K, the best example of a Unitary Constitution. In England, the Courts are subordinate to the legislature. They do not derive their powers from a Constitution as there is no written Constitution. They derived certain powers from the common law and certain other powers from the statutes. And in any case these powers can always be diminished or increased by the legislature.

Another context is that they do not possess any power to override the legislation passed by the parliament. This position of judiciary emanates from the principle of parliamentary sovereignty.

But this concept does not apply to the case of judiciary in India. Framers of the Indian Constitution envisaged a higher Judiciary, independent, impartial and powerful to check the

arbitrary exercise of state power. Indian Constitution being a written Constitution imbibing in itself the federal characteristics, guarantees supremacy of the Constitution. Though we have adopted the parliamentary system of government from the British Constitution, as regards the position of the judiciary we have adopted the judicial system similar to that of the U.S. Constitution. U.S has adopted a constitutionally limited and controlled government. They have strong separation of powers between federation and federating units and give its prime importance to supremacy of constitution and judicial review.

Miscellaneous Powers

Miscellaneous powers of the Parliament of India includes

- The power of the parliament to create a new state or the power to change names or alter the boundaries of a State by procedure of law.
- Parliament's power to create or abolish the Legislative Council of a State on recommendation of the Legislative Assemblies of such State concerned.
- Parliament has the power to impose emergency.

Limitations of Legislative Organs

Parliament of India is a creation of the Constitution and hence for that reason itself, it has its limitations too. It means 'limited government', namely, that all the organs setup by the Constitution are vested with only limited powers by the Constitution, so that none can claim unlimited power or legal omnipotence.

Written Constitution as a Limitation

Written Constitution is a law which imposes limitations upon all organs of the state. It follows only when such constitution is treated as a legal instrument of a higher order than ordinary law, and acts as a legal limitation upon the powers of all the organs of State which are setup by the Constitution, as in the U.S and India.

Judicial review as a Limitation

Judiciary can be called to be the guardian of the Constitution and it enforces it and declares any law passed by the legislature void, if any of its provisions are violating of the constitutional provisions particularly the 'fundamental rights' and the 'basic features of the constitution'. The final authority of the Supreme Court in India to decide the validity of a law, gives the court a great discretionary power without any accountability whatsoever and a consequent development is the judicial activism. In a federal constitution, Judiciary apart from this function also has the function of guarding the Constitution against transgression by the organs of the National Government and the State Governments into their spheres. This has been well accepted in U.S.A as well as in India.

The doctrine of judicial review has acquired different nuances during the course of its evolution in the UK, U.S.A and India. While the origins of judicial review can be traced to the United Kingdom which has no written constitution, it has become firmly established in the U.S, with a

written constitution establishing a federal polity.

Judicial review of Parliamentary privileges and proceedings.

Though Constitution guarantees certain rights and immunities to the House and individual MPs so that they may discharge their parliamentary duties effectively, and though these may not be called in any court of law for irregularity of procedure, in several decisions court have asserted their power of judicial review over this. Supreme Court has held that the judiciary may examine whether this exercise of privileges is consistent with the fundamental rights of the citizens or not.

Procedural and Substantive Limitations.

Limitation may be either procedural or substantive. Procedural limitation may be on the mode of making a law. Such limitations exist both in federal as well as unitary constitutions. Whereas substantive limitation on the other hand, is with respect to the subject matter on which a law may be made. Such limitations exist in federal constitutions where legislative powers are distributed between the federal and state legislatures. Since States are territorial units, jurisdictions of various State legislatures under a federal constitution are also limited within their respective territories. So there exist territorial limitations too.

The essence of different kinds of limitations as aforesaid are intended to be mandatory or legally binding as limitations upon the legislative powers. So there arise a question as to whether the validity of an enactment can be challenged before a court on the ground that requirement of relevant constitutional provisions were not complied with, and whether the subsequent statute passed by such legislature is void or not?

In UK, as there is no written constitution, the Parliament possesses legislative sovereignty. So any law passed by it cannot be questioned before any court on such grounds. So even if any such breach of procedural rules exists, it is with the legal competence of the Parliament to determine the validity of the same. In US as well as in India, though Legislature has power to prescribe its own procedure ultimately the power to determine 'the validity of a law' or the competence of the legislature to enact such a statute vests with the courts. So if certain procedures are mandatory and are clearly prescribed in the Constitution, and if the same is not been followed, it could be interfered by the courts. But if such procedures are only directory in nature, it may not render itself act as a legal limitation upon the power of legislature to enact it.

Implied Limitations

There also exist many implied limitations which are not expressly provided in the constitution. They are not mere limitations upon the legislature but also upon the executive and the judiciary. These implied limitations have been judicially evolved.

So there also a question arise, as to how the court assumes such power to add implied limitations upon the express provisions of the written constitution.

The answer lies in the fact that, it is the courts power to interpret the express provisions of the constitution. And it is also the function of the courts to interpret the constitution. More of a kind, we call it the 'judicial activism'. That means an express limitation by way of a fundamental right may be amplified by this process and so implied limitations also becomes its integral part. 'Right to privacy' and 'Right to live with dignity', 'Right to free legal aid' are thus now an integral part of Article 21 and so on a number of principles has now become established by a catena of case laws.. And also principles such as 'Equal pay for equal work' have now become the integral part of 'Right to Equality' under Article 14.

Doctrine of 'Separation of Powers' as a Limitation

The doctrine of 'Separation of Powers' means that none of the three organs of the state can exercise any power which properly belongs to the other. There is complete absence of this doctrine in countries like U.S.S.R and China.

In India, Constitution vests only the executive power with the President and no such attempt of vesting has been done in the case of legislative and judicial functions. Hence there is no strict application of this doctrine in India.

In UK, as the constitution is unwritten, there is no constitutional limitation upon the powers of the legislature, and as it go by the name of the 'parliamentary sovereignty'. So there even if the legislature encroaches into the functions of the other organs, there is no authority including judiciary to declare it as void. In US, this doctrine strictly acts as a limitation upon the legislative organs as there is its strict application. So organs cannot encroach into any powers or functions of any other organ, which have been specifically vested by the Constitution.

Principle against delegation of constitutional powers as a Limitation.

It is the common law maxim that 'delegata potestas non potest delegare', which follows the theory of Separation of Powers, is also a limitation upon the legislature. Here the distinction has to be made between the delegation of essential functions of the legislature as well as the non-essential or ancillary functions. The delegation of essential legislative function will be construed to be violation of this principle. But 'subordinate legislation' and 'conditional legislation' is an exception to this.

Bar as to discussion of conduct of judges as a limitation.

No discussion shall take place in the Legislature of a state or in the Parliament with respect to the conduct of any judge of the Supreme Court or of the High court in the discharge of his duties(Article 121 and 211 of Indian Constitution). The only exception appears to be in the case of impeachment proceedings. But though it appears so even if there is any violation of these limits it would still be a matter that can be decided exclusively by the parliament and courts have no jurisdiction to inquire into such matters.

Legislative vacuum being a limitation as it paves way for 'judicial activism' and 'delegated legislation' in India.

Due to inadvertence, lack of exposure to the issues, the absence of legislation or indifference of the legislature has paved way for judicial activism as well as delegated legislation in India. Thus

it can be said to be failure of a competent legislature. Such an exercise by the Supreme Court could be seen in Vishaka v. State of Rajasthan where a three bench judges bench of the S.C headed by Chief Justice Verma, specifically declared that “ some guidelines should be laid down for the protection of these rights (of working women against sexual harassment) to fill the legislative vacuum.

The theory of basic structure as a limitation on the legislature’s amending power.

On the question of validity of the Constitution (24 Th amendment) Act of 1971, in the leading case of Keshavanda Bharati v State of Kerala, it has been upheld, that the power to amend the constitution is found in Article 368 itself. This empowers the basic structure doctrine which has been a non-exhaustive concept, interpreted by different judges in a number of cases. Post – Keshavanda Bharathi scenario is the best to analyse this. The amending power of the legislature being only a power conferred on it by the Constitution; it is a power within and not outside the constitution. Supreme Court is the custodian of the basic structure and this ‘limited’ amending power is a part of the same and hence the amending body cannot convert this limited power to unlimited power.

#Conclusion

Constitution of India is the law of our land and all the three organs, the Legislature, the Executive and the Judiciary are the machineries formed under the foundation of this Constitution. Constitution of India is been formed on the principles of rule of law, so Legislature in India has been vested with its constitutional functions and powers and so has limitation too. It can be said that the prime function of legislature is to anchor for the will of the people and to enact laws. But legislature is not the actual law makers but the executive is. And judiciary plays its vital role in guarding the constitution, the sentinel on the qui vive. But the most interesting is that, though separation of powers is been upheld to be basic structure of the Indian Constitution, since the past decades and especially through recently pronounced wide number of landmark judgements, it remains a question as to how far this is applicable in India. And the judiciary blames Legislature for not doing anything worthwhile, whereas the Legislature blames back the Judiciary of doing the job of the legislature. But it would wrong to conclude that legislative bodies have only small role in the law making process. The coordination of the legislature and the executive is necessary to realize the real concept of ‘rule of law’ in a State.

The Anti-Defection Law Explained

On Monday, December 4, the Chairman of Rajya Sabha disqualified two Members of Parliament (MPs) from the House under the Tenth Schedule of the Constitution (better known as the anti-defection law) for having defected from their party. These members were elected on a Janata Dal (United) ticket. The Madras High Court is also hearing petitions filed by 18 MLAs who were disqualified by the Speaker of the Tamil Nadu Assembly in September 2017 under the anti-defection law. Allegations of legislators defecting in violation of the law have been made in several other states including Andhra Pradesh, Arunachal Pradesh, Goa, Manipur, Nagaland, Telangana and Uttarakhand in recent years. In this context, we explain the anti-defection law.

What is the anti-defection law?

Aaya Ram Gaya Ram was a phrase that became popular in Indian politics after a Haryana MLA Gaya Lal changed his party thrice within the same day in 1967. The anti-defection law sought to

prevent such political defections which may be due to reward of office or other similar considerations.

The Tenth Schedule was inserted in the Constitution in 1985. It lays down the process by which legislators may be disqualified on grounds of defection by the Presiding Officer of a legislature based on a petition by any other member of the House. A legislator is deemed to have defected if he either *voluntarily gives up the membership of his party or disobeys the directives of the party leadership on a vote*. This implies that a legislator defying (abstaining or voting against) the party whip on any issue can lose his membership of the House. The law applies to both Parliament and state assemblies.

Are there any exceptions under the law?

Yes, legislators may change their party without the risk of disqualification in certain circumstances. The law allows a party to merge with or into another party provided that at least two-thirds of its legislators are in favour of the merger. In such a scenario, neither the members who decide to merge, nor the ones who stay with the original party will face disqualification.

Various expert committees have recommended that rather than the Presiding Officer, the decision to disqualify a member should be made by the President (in case of MPs) or the Governor (in case of MLAs) on the advice of the Election Commission. This would be similar to the process followed for disqualification in case the person holds an office of profit (i.e. the person holds an office under the central or state government which carries remuneration, and has not been excluded in a list made by the legislature).

How has the law been interpreted by the Courts while deciding on related matters? The Supreme Court has interpreted different provisions of the law. We discuss some of these below.

The phrase 'Voluntarily gives up his membership' has a wider connotation than resignation

The law provides for a member to be disqualified if he 'voluntarily gives up his membership'. However, the Supreme Court has interpreted that in the absence of a formal resignation by the member, the giving up of membership can be inferred by his conduct. In other judgments, members who have publicly expressed opposition to their party or support for another party were deemed to have resigned.

In the case of the two JD(U) MPs who were disqualified from Rajya Sabha on Monday, they were deemed to have 'voluntarily given up their membership' by engaging in anti-party activities which included criticizing the party on public forums on multiple occasions, and attending rallies organised by opposition parties in Bihar

Decision of the Presiding Officer is subject to judicial review

The law initially stated that the decision of the Presiding Officer is not subject to judicial review. This condition was struck down by the Supreme Court in 1992, thereby allowing appeals against the Presiding Officer's decision in the High Court and Supreme Court. However, it held that there may not be any judicial intervention until the Presiding Officer gives his order.

In 2015, the Hyderabad High Court, refused to intervene after hearing a petition which alleged that there had been delay by the Telangana Assembly Speaker in acting against a member under the anti-defection law.

Is there a time limit within which the Presiding Officer has to decide?

The law does not specify a time-period for the Presiding Officer to decide on a disqualification plea. Given that courts can intervene only after the Presiding Officer has decided on the matter, the petitioner seeking disqualification has no option but to wait for this decision to be made.

There have been several cases where the Courts have expressed concern about the unnecessary delay in deciding such petitions. In some cases this delay in decision making has resulted in members, who have defected from their parties, continuing to be members of the House. There have also been instances where opposition members have been appointed ministers in the government while still retaining the membership of their original parties in the legislature.

In recent years, opposition MLAs in some states, such as Andhra Pradesh and Telangana, have broken away in small groups gradually to join the ruling party. In some of these cases, more than 2/3rd of the opposition has defected to the ruling party.

In these scenarios, the MLAs were subject to disqualification while defecting to the ruling party in smaller groups. However, it is not clear if they will still face disqualification if the Presiding Officer makes a decision after more than 2/3rd of the opposition has defected to the ruling party. The Telangana Speaker in March 2016 allowed the merger of the TDP Legislature Party in Telangana with the ruling TRS, citing that in total, 80% of the TDP MLAs (12 out of 15) had joined the TRS at the time of taking the decision.

In Andhra Pradesh, legislators of the main opposition party recently boycotted the entire 12-day assembly session. This boycott was in protest against the delay of over 18 months in action being taken against legislators of their party who have allegedly defected to the ruling party. The Vice President, in his recent order disqualifying two JD(U) members stated that all such petitions should be decided by the Presiding Officers within a period of around three months.

Does the anti-defection law affect the ability of legislators to make decisions?

The anti-defection law seeks to provide a stable government by ensuring the legislators do not switch sides. However, this law also restricts a legislator from voting in line with his conscience, judgement and interests of his electorate. Such a situation impedes the oversight function of the legislature over the government, by ensuring that members vote based on the decisions taken by the party leadership, and not what their constituents would like them to vote for.

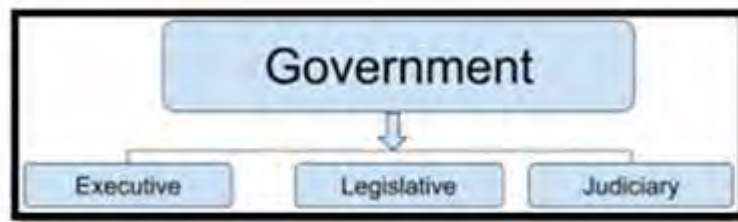
Political parties issue a direction to MPs on how to vote on most issues, irrespective of the nature of the issue. Several experts have suggested that the law should be valid only for those votes that determine the stability of the government (passage of the annual budget or no-confidence motions).

The Union Executive
(Articles 52 to 78 and 123 under Indian Constitution)

Parliamentary form of Government

Before talking of the Parliament and Union Executive, let us understand the form and nature of

the Indian government. The Structure of the Indian government can be understood by the following flow chart:



India is a form of Parliamentary Government. It is a form of government in which the executive is responsible and answerable to the legislative. It is also called the Cabinet Government due to the concentration of executive powers in the Cabinet. The Executive is a part of the Legislative.

This form of government was basically preferred by the leaders as:

- Leaders were aware of such a form of government.
- This government was considered a more responsible government as in this form of government, the executive is answerable to legislative and the legislative is answerable to the citizens.
- This type of government prevents Authoritarianism.
- This form helps to get representation from a Diverse Group of people.
- This form of government remains laden with the availability of Alternate Government.
- In this form of government, the head of the state holds a ceremonial position and is the nominal executive. For example, the President
- The real head of the State is the Prime Minister, who is the real executive.
- There is a majority party rule in such a form of government.
- There is always a Parliamentary Opposition to maintain a check on the actions of the ruling government.
- In this form of Government Civil Servants are Independent.

This is a famous concept of government followed in other countries like Japan, Canada, Britain. This form of government in India was majorly inspired by Britain.

Opposite of such a form of government is the Presidential form of Government. In this government, the President is answerable to citizens rather than the legislative.

If we dwell deep inside, we find further subdivision of the Executive Organs of the State. These subdivisions are:

The President (Article 52):

The first and foremost part of the Executive is the President. Article 52 states that there shall be a President of India. The President is considered the Executive head of the country. All the Executive business of the country is carried out in the name of the President.

So the question arises that if President is the executive head and all actions are in his name, and the President has to carry out many functions, then can there be the performance of an act not mentioned in any specific legislation by the Executive?

The same was answered in the case of **Ram Jawaya Kapoor v. the State of Punjab**, the

Government invited textbooks from authors for approval. When textbooks were approved, the authors were made to enter an agreement. According to this agreement, the copyright of these books vested solely in the Government. The authors only got 5% royalty on the sale of the textbooks. The Government took all the publishing, printing and selling rights of the books in their own hands.

The Court held that these provisions were ultra-vires to the constitutional power. The government being an executory body did not possess the power to enter into that activity or trade without specific legislations.

No restriction on the executive powers is defined in the Indian Constitution. The Court held that the executive cannot be restricted to mere implementations of legislations. There is a strict separation of powers but no strict separation of functions.

Qualifications: Article 58

After knowing that President is the Executive Head of the entire nation, you might too aspire to become a president. So let's analyze the eligibility and all the specific requirements, you would be needing to become the President of India?

Article 58 talks about the eligibility of a person to become President of India. It says that a person is eligible for election as President if he:

- is a citizen of India;
- completed the age of thirty-five years;
- is qualified for election as a member of the House of the People.

A person can be disqualified for election as President if he holds any office of profit under

- the Union of India or;
- the Government of any State or;
- under any local or other authority subject to the control of any Government of India.

Condition of President's Office: Article 59

The eligibility to become the President might seem simple but the conditions his office are quite strict. Article 59 of the Indian Constitution talks about the conditions of the President's office. It says:

- The President cannot be a member of either House of Parliament or of any other House of the Legislature of any State.
- If he is a member of either House of Parliament or a member of a House of the Legislature of any State, he will need to vacate his seat in that House on the date of entering into his office as President.
- The President shall not hold any other office of profit.
- The President shall be authorized to the use of his official residences without rent.
- He shall be also authorized to emoluments, allowances, and privileges determined by Parliament.
- The emoluments and allowances of the President cannot be diminished or reduced during his term of office.

Official residence, emoluments, and allowances of President

Apart from all these conditions and rules, you might crave for some advantage of being the President. Well, the President of India is also entitled to certain allowances and privileges, as he is the first citizen of the country. The President of India is entitled to rent-free accommodation, allowances, and privileges by law. He is also entitled to:

- Free medical facilities;
- Free accommodation;
- Free treatment for life;
- The official state car of the President.

The salary of the President has undergone several changes since independence. Some of these changes were:

- In 1951, the President of India used to get a salary of Rs. 10,000 and 15000 rupees as an allowance.
- In 1985, the President of India used to get a salary of Rs. 15,000 and 30000 rupees as an allowance.
- In 1989, the President of India used to get a salary of Rs. 20,000 and 10000 rupees as an allowance.
- In 1998, the salary was increased to Rs. 50,000 In 2008, the salary was increased to Rs. 1,50,000.
- In 2016, the salary was increased to Rs. 5,00,000.

Rashtrapati Bhavan is the President's official residence, including reception halls, guest rooms, and offices. It is the largest residence of any head of state in the world (You will get to live in it. After all, you have become the President of the largest democracy of the world).

Election of President: Article 54

The answer lies in Article 54 of the Constitution. It deals with provisions relating to the election of the President. It says that the President must be elected by the members of an electoral college. The electoral college consists of the elected members of both Houses of Parliament and the state Legislative Assemblies.

Mode of Voting

As per Article 55(3) of the Constitution of India, the election of the President should be held according to the system of proportional representation by means of a single transferable vote. The voting at the presidential election shall be by secret ballot.

Disputes regarding the election: Article 71

What if people raise issues regarding your elections as president? Who would clarify the dispute?

Well, Article 71 deals matters relating to the election of the President. It states that any dispute arising with respect to the election of the President will be adjudicated by the Supreme court and its decision will be considered final.

- If the election of a person as President is declared void, acts done by him in the exercise of the powers of the office of President will not be considered invalid by reason of the order of the Supreme Court.
- Parliament can formulate any law regarding the election of a President in consonance with the provisions of the Constitution.
- The election of a person as President or Vice President shall not be called in question on the ground of the existence of any vacancy for whatever reason among the members of the Electoral College electing him.

Oath by the President: Article 60

So, after you are elected, it is time to make an oath and get familiar with the term of office of the

President.

Any person holding the office of the President or delivering the functions of the President must, before entering into the office of the President, be made to subscribe in the presence of the Chief Justice of the country or any other senior-most judge of the Supreme Court, to an oath or affirmation in the name of God to faithfully execute the office of president of India and to preserve, protect and defend the Constitution and the law to the best of his abilities and that he would devote himself to serve the people of India and ensure their well being.

Term of office of the President: Article 56

Article 56 defines the term of the office of the President to be of five years unless:

- A new President enters the office, the incumbent President shall hold it;
- President resigns before the expiry of the term by writing it to the Vice President;
- The President is removed from his office, for violation of the Constitution, by the process of impeachment provided under article 61.

The article also states that any resignation made by the President to the Vice President must be communicated to the Speaker of the Lok sabha by the Vice President himself.

Time of holding the election on expiry of the term and filling casual vacancies

Article 62 provides for the filling up of the vacancy to the office of the President. It defines the terms of office of the person filling the casual vacancy as well as the time of holding elections to fill the vacancy.

It states that an election to fill the vacancies must be fulfilled before the expiration of the term of the office of the President.

An election to fill the vacancies, occurring due to the death, resignation or impeachment of the President, must be done as soon as possible. The elections, in any case, must be conducted within a time period of six months from the date of occurrence of the vacancy. The new person elected to the office of the President will be subject to all the provisions of Article 56 and will hold his office for a five-year term from the date of entering into the office.

Procedure for impeachment of the President: Article 61

The President of India can be impeached under Article 61, **for the violation of the Constitution, on the basis of charges preferred by either House of Parliament.**

A resolution with the proposal to prefer such charges must be signed by at least one-fourth of the total members of the house. The resolution also needs to be passed by at least two-thirds majority of the house.

When the resolution is passed by one of the Houses, the other House must investigate the charges. The President has been granted the right to be present or to be represented in such investigations.

When the House investigating the charges passes the resolution by a two-thirds majority and declares the charges as sustaining, it results in removing the President from his office from the date of passing of the resolution.

Privileges of the President: Article 361

As President, you also enjoy some degree of immunity. Under Article 361, the President is protected from being answerable to any court for:

- For exercise and performance of his powers and duties of his office;
- For doing any act or claimed of doing any act in the exercise of those powers and

duties;

The conduct of the President can be reviewed only if either House of Parliament designates or appoints any court tribunal or any other body to investigate the charges under Article 61.

But it bars no person from bringing any valid proceeding against the Governor or Government of India.

The Article immunises the President against all types of criminal proceedings during the term of his office.

No issuance of any order relating to the arrest and imprisonment of the President can be made by any court during his term of office.

A civil proceeding can be constituted against the president during his term of office if:

- The act is done or alleged to have been done, whether before or entering the office of the President, by him was in his personal capacity;
- Two months prior notice is provided, to the president or was sent to his office, stating:
 1. The nature of the proceeding;
 2. The cause of action;
 3. The details of the other party including name, description, and place of residence;
 4. The relief claimed by the other party;

Powers of the President

The President of India is provided with a wide range of power that we will discuss one by one. Let's start with the most interesting and important power i.e. the executive powers.

Executive powers

Article 53 of the Indian Constitution states that all the executive powers of the Union will be vested in the President of India. President is allowed to exercise his executive powers through officers subordinate to him, directly or indirectly, in consonance to the provisions of the Constitution.

Under this article, the President has powers regarding:

- Appointment of the high authorities of the Constitution like the Prime Minister and the Council of Ministers;
- Right of being informed about all the national affairs;
- Appointment of the judges of the constitutional courts (Supreme Court and High Courts);
- Appointment of the state Governors, the Attorney General, the Comptroller, and Auditor General, the Chief Commissioner and members of the Election Commission of India;
- Administration of Union territories and appointment of the Chief Commissioners and Lieutenant Governor of the Centrally Administered Areas;
- Removal of the Council of Ministers, the state Governors, the Attorney General.

Military powers

Article 53 also states that the President shall be the Supreme Commander of all the Armed Forces of the Union of India. It also states that no specific provisions can reduce the scope of this general principle.

As the Supreme Commander of the Armed Forces of the Union, President has powers

regarding:

- Appointment of all the officers, including the appointment of the chiefs of the forces;
- Wars are waged in the name of the President;
- Peace is concluded in the name of the President.

Diplomatic powers

The President forms the face of Indian diplomacy and helps the nation to maintain cordial relationships with countries across the globe.

- All the Ambassadors and high commissioners in foreign nations are his representatives;
- He receives the credentials of the Diplomatic representatives of other nations;
- Prior to ratification by Parliament, the treaties and agreements with other nations, are negotiated by the President.

Legislative powers

The President also enjoys certain legislative powers like:

- During the budget session, the President is the first to address the Parliament;
- The President is empowered to summon a joint session in order to break the deadlock in the legislation process between the two Houses of the Parliament;
- President sanction is mandatory in cases of provisions relating to:
 1. creating a new state;
 2. changes in the boundary of existing states;
 3. a change in the name of a state.
- Legislative provisions relating to fundamental rights of the citizens of India require the President's consent;
- President's consent is mandatory in cases of money bill originating in Lok sabha;
- President's consent is necessary for all the bills passed by the Parliament to become a law;
- President is empowered to promulgate ordinances when the Parliament is not in session;
- President also nominates the members of both the Houses.

Ordinance making power of the President: Article 123

Article 123 talks about the presidential powers to promulgate ordinances. An ordinance can be promulgated if:

- neither of the House of the Parliament is in session;
- and the President feels a need for immediate action.

The ordinance which is promulgated by the President will have the same effect as that of an act or law of the Parliament.

The essential conditions to be met by an ordinance are:

- It shall be presented before both the Houses of Parliament for passing when it comes to the session;
- The ordinance shall cease to operate six weeks after the date of reassembling of the parliament;
- The ordinance may also expire if the resolutions disapproving it are passed by both the Houses of Parliament;
- It can be withdrawn at any time by the President;

- The ordinance must be in consonance to the Constitution of India else it shall be declared void.

Financial Roles

- President receives reports of the Finance Commission and acts on its report.
- The Contingency Funds of India are at the disposal of the President.
- He also causes the presentation of audits in the Parliament.

Judicial powers

The President enjoys the following privileges as his judicial powers:

- He can rectify the judicial errors;
- He exercises the power of grant of pardons and reprieves of punishments;
- President can seek the advice of Supreme Courts on:
 1. Legal matters,
 2. Constitutional matter,
 3. Matters of national importance.

Pardoning power: Article 72

Article 72 provides for the provisions relating to the pardoning powers of the President. President can grant pardons, respites, reprieves, and remissions of punishments or remit suspend or commute the sentence given to a person by the court in the following cases:

- When the sentence is granted through a court-martial;
- When the sentence or punishment is given for offense of violation of any law relating to matters that fall in the ambit of Union's executive powers;
- When a death sentence is passed by a court.

Clemency Power not unbridled

Unbridled Ness of the pardoning powers of the president has always been a highly debated issue. Supreme Court in various cases has laid down provisions for exercising control over the pardoning powers of the Executive.

In **Maru Ram Etc. Vs. Union of India**, Supreme Court held that pardoning power under Article 72 is to be exercised by the President, on the advice of Central Government and not on his own will and that the advice is binding on the head of the Republic.

In **Dhananjay Chatterjee alias Dhana v State of West Bengal**, the Supreme Court reiterated the same.

Nature of Pardoning Power

Indian Presidents are known for the generous grant of pardons. Pardon is an act of grace and not a form of a right to be demanded by any person. Unlike the Constitutional provision, Pardon is granted by the executive as a whole and not by the President alone. This is done as it is necessary for the President to act on the aid and advice of the Council of Ministers.

A pardon completely sets free an offender of all his guilt. A full pardon makes the person innocent in the eyes of law as if he has never committed a crime. It gives him the identity as that of a new man with a new set of capacities.

The pardoning power comes with discretion on the part of the President. The practice to confer the right of pardon on some authority has long existed. It is also practised in other countries, for example, the U.S. Constitution prescribes for the power of pardon to the President whereas, In the United Kingdom, the same is conferred to the Crown.

Pardoning Power: subject to judicial review

The question that arises is whether the pardoning power of the president can be brought under the judicial review. Can the judicial review of such an order be done? What could be the grounds for judicial review of such orders?

In **Kuljit Singh Alias Ranga Vs Lt. Governor of Delhi & Ors** the court held that the pardoning powers of the president under Article 72 can be examined according to the facts and circumstances of each case. The Court has the power of judicial review even on a matter which the Constitution has vested solely in the Executive.

The most significant case of **Kehar Singh And Anr. Etc Vs. Union of India And Anr.** Dealt with the concept of judicial review of the President's pardoning power on grounds of its merit. In this case, the Supreme Court held that - The terms and history of Article 72 as well as the specific guidelines and case laws relating to Article 72 clearly indicate that the ambit of Article 72 very wide. The powers under this article cannot be clearly defined or channelized with specific guidelines. The term "pardon" itself signifies it to be discretionary. Hence, the grant or rejection of pardons cannot be reasoned and the order of President cannot be brought under judicial review with respect to its merits.

Whereas In **Epuru Sudhakar Case**, where a Congress activist faced ten years in prison in connection with the killing of two persons including a TDP activist. His punishment was remitted by the Governor of Andhra Pradesh. Contentions were raised regarding the immunity of the pardoning power. The Supreme Court bench stated that the exercise of pardoning powers would be subject to judicial review by the court against the maintenance of Rule of Law.

Exercising powers of clemency is a matter of discretion but still subject to certain standards and not a matter of privilege. The power of executive clemency is a matter of performance of official duty and not only for benefiting the convict. During exercising such powers the President must also consider the effect of his decision on the family of the victims, the society and the precedent it sets for the future.

Thus this judgment settled position of law that immunity from the judicial review can not be granted to the President for exercise or non-exercise of the pardoning power.

Articles 72 and 161 of Constitution

Article 161 grants the power to the Governor of the state to suspend, remit or commute sentences of the offenders in certain cases relating to a violation of provisions or laws to which the executive power of the state extends.

Article 72	Article 161
• Grants power to the President of India.	• Grants powers to the Governor of state.
• The power is wider in scope.	• The scope of powers is narrower.
• The powers of pardon extend to cases of Court Martial as well.	• Power cannot interfere with cases of Court Martial.
• Allows President to grant pardon in cases of death sentence.	• Governor cannot grant pardon in cases of death sentence.

Emergency Powers

Article 352 of the Constitution of India grants President, three kinds of emergency powers as well:

- When a National Emergency is declared in case of external aggression or internal armed rebellion, the President holds the powers to declare a state of emergency. Thus the President's rule gets established in the country. However, the prime minister and the Council of Ministers must recommend such an emergency;
- When there exists a constitutional or law and order breakdown situation in a state, the President may declare a state of emergency in such cases. The state would then come under Governor's rule;
- Whenever the financial stability of the nation or any country is seriously affected, the President has the right to intervene and direct the state to check and maintain public expenditure.

Position of the President

The position of the President has changed, with respect to his discretion to use his power, has changed since the inception of the Constitution. The two major changes came through the 42nd and 44th Amendment Act of the Constitution.

Prior to the 42nd Amendment Act of 1976

Prior to the 42nd amendment to the Constitution, the President was free to make decisions based on his wisdom. He may also consider the Council of Ministers for their advice on the action. As the Constitution at that time talks about constituting a Council of Ministers with a Prime Minister, as its head, to aid and advise the President in carrying out his duties.

After the 42nd Amendment Act, 1976

Later, the Constitution was amended to add the phrase that the President shall act on the aid and advice of the council of ministers. But the provision was still ambiguous whether the advice given by the Council of Ministers is binding on the president or not.

44th Amendment Act, 1978

This amendment was brought it to swipe off the ambiguity created by the 42nd amendment. This provision said that:

- President can send back the advice to the Council of Ministers for reconsideration once;
- If the same advice is sent again without modifications by the Council then President is bound to accept it.

The Vice President (Article 63)

Article 63 talks about the vice president of India.

Functions of the Vice-President

There are some important functions and duties to be performed by the Vice-President of India. Article 64 and Article 65 of the Indian constitution talks about the following functions:

- The Vice-President is the ex-officio Chairman of Rajya Sabha(the Council of States);
- The Vice President casts his vote in case of a tie in Rajya Sabha;

- The Vice President represents the Council of States on ceremonial occasions;
- He protects the rights and privileges of the members of the Rajya Sabha;
- He travels, for goodwill missions, to foreign countries;
- The Vice-President shall perform the functions of President, in cases where the President is not able to perform his functions due to absence or illness etc until the President resumes his duty;
- The Vice-President shall act as President, If the vacancy is created for the post of President due to his resignation, removal, and death or otherwise until a new President is elected;
- The period between the Vice-President acting as the President and the election of a new President can be extended for a maximum period of six months.

The Council of Ministers

Article 74 of the Indian constitution states that:

- There should be a Council of Ministers to aid and advise the president;
- The Council of Ministers must have a Prime Minister at the head to aid and advise the President;
- The President should exercise his functions and act in accordance with advice rendered by the Council of Ministers;
- The Council of Ministers should reconsider any advice sent back by the President;
- The President is bound to act in accordance with the advice tendered by the Council, after reconsideration.

Size of Ministries

The executive powers in India are exercised by the Council of Ministers. These ministers constitute ministries having cabinet minister, junior minister, etc. Before 2003, the size of ministries was not specified under any provision leading to a lot of chaos.

After the 91st amendment Act of 2003 came into existence, it marked a ceiling limit to the size of the ministries. The amendment stated that the strength of the Council of Ministers cannot exceed more than 15% of the total number of members of the Lok sabha or relevant Legislative Assembly of the state.

An exception was provided to the smaller states like Sikkim, Mizoram, and Goa, having a strength of lesser than 40 members in the legislative assemblies.

Disqualification on defection on the ground of split in a political party

Article 102(2) and Article 191(2) provides for Anti-Defection laws regarding the members of Lok sabha. According to this law, a member of a House, belonging to any political party, shall be disqualified as a member of the House on the following basis-

- If the person voluntarily gives up his/her membership of the political party to which he/she belongs; or
- If the person votes or abstains from voting in contrary to any direction issued by the political party or by any person or authority authorized to give directions.

In either case, the prior permission of such political party, person or authority must be sought. The voting or abstention must be approved by the political party, person or authority within fifteen days from the date of voting or abstention.

When a member of a House claims that he and any other members of his party have formed a group representing a faction emerging as a result of a split in his original political party. If such a

group consists of one-third or more of the members of such a political party then the ministers cannot be disqualified under Anti-Defection laws.

A non-member can become a Minister

Article 75 of the Constitution of India provides for provisions relating to the appointment of the Union Ministers.

At first, the Prime Minister is appointed by the President and then the President appoints other ministers on the advice of the Prime Minister.

The provision clearly states that any minister, who is not a member of either House of the Parliament, shall cease to be a minister after the period of six months from the date of his appointment.

The non-member must get elected to either House of the Parliament in order to continue as a Minister of Lok Sabha.

A convicted person cannot be appointed Chief Minister

When the question arose whether a convicted can be appointed as Chief Minister or not. The issue was decided in the negative by the Supreme Court in the famous case of **B.R. Kapoor v State of Tamil Nadu and Anr (Famously known as Ms. J. Jayalalitha Case)** – It was held that any person who is convicted for a criminal offense and sentenced to imprisonment, for a period of two years, or more, cannot be appointed the Chief Minister of any State under Article 164(1) of the Indian Constitution.

Dissolution of Parliament

In our country, the Lok Sabha has a five-year term but it can be dissolved earlier. Article 83(2) of the Indian Constitution states that at the completion of five years term, from the starting date of Lok Sabha meetings, it can be dissolved. In such cases, an election is held to elect the new Members of Parliament.

The Lok Sabha can also be dissolved by the President on the advice of the Prime Minister before the expiry of its term.

The President can also dissolve the Lok Sabha, if he feels that a viable government cannot be formed, after the resignation or fall of a regime, as the case may be.

Principle of Collective Responsibility

The principle of Collective Responsibility means that the Council of Ministers is collectively responsible as a body for all the actions, omissions and conduct of the government.

It states that all ministers stand or fall together in Parliament. The Government is considered as a unity of ministers instead of single individuals. It means that the minister should publicly support the decisions made by the cabinet, even if they disagree privately. This support even includes voting for government in the legislature.

Minister's Individual Responsibility

The Ministerial Individual Responsibility means that a cabinet minister is ultimately responsible for all the actions of his ministry or department.

Whenever there is an individual ministerial responsibility, the party to which the minister is a part is not answerable for the failure of the minister. The minister shall himself take the blame for the actions of his ministry and resign.

Appointment of Prime Minister

The Prime Minister of India is appointed by the President through provisions under Article 84 and Article 75. Prime minister is the leader of the majority party or coalition of parties of Lok Sabha. When a party achieves majority the leader of that party is called upon by the President to

be the Prime Minister of the country. He is considered as the real head of the country.

Constitutional Duties of Prime Minister

The constitution envisages the Prime Minister with certain rights and duties. The functions of the Prime Minister are as follows:

- The Prime Minister proposes the names of the members to President for appointment as Ministers of the government;
- Prime minister can reshuffle the Cabinet and decides for the distribution of charges of different ministries as well;
- He presides over the meetings of the Cabinet and can also change the decisions taken by the Cabinet;
- He suggests the President of India about the resignation or removal of any minister from the Cabinet;
- He also directs and controls the functioning of Ministers in the Cabinet;
- The Prime Minister may resign at any time and can even ask the President of India to dissolve the Cabinet.;
- He can advise the President to dissolve entire Lok Sabha to conduct fresh elections;
- The Cabinet stops functioning If the Prime Minister resigns from his post, and spontaneously dissolves after the death of the Prime Minister.

Rights and powers regarding Appointments:

Prime Minister can advise the President for the appointment of the following:

- Comptroller and Auditor General of India;
- Attorney General of India;
- Advocate General of India;
- Chairman and members of UPSC;
- Selection of Election Commissioners;
- Members and chairman of the Finance Commission.

Rights/Powers with regard to Parliament of India:

Prime Minister is the leader of the Lok sabha with rights to exercise the powers as follows:

- The prime minister decides the foreign policy of the country.
- He is the speaker of the Central Government.
- He is the leader of the majority party or coalition of parties in the Parliament.
- The Prime Minister is also is the chairman of various organizations including:
 1. NITI Aayog;
 2. National Development Council;
 3. National Integration Council;
 4. Inter-state Council;
 5. National Water Resources Council.
- He is also the head of the disaster management team during a political level emergency.
- He is also the political head of all the forces.

Dismissal of a Minister

The minister of the Lok sabha can be removed from his post under the following conditions:

- Upon the death of the minister;
- Upon self-resignation from the minister;

- If the minister is dismissed by the President, for unconstitutional his acts as per Article 75(2);
- Article 75 of the constitution states that the minister holds the office at the pleasure of the President;
- Upon direction from the Court for committing the violation of any law;
- If the minister loses the eligibility to be a member of Parliament.

Dismissal of the Cabinet

The Cabinet of Minister dissolves if:

- The Prime Minister asks the President of India to dissolve the Cabinet;
- The Prime Minister advises the President to dissolve entire Lok Sabha to conduct fresh elections;
- If the Prime Minister resigns from his post;
- The cabinet automatically dissolves after the death of the Prime Minister.

The Attorney-General of India

Article 76 and Article 78 speaks of the Attorney General of India. The Attorney General of India is the highest law officer in the country.

Term and Appointment

The Attorney General is appointed by the President and holds the office at the pleasure of the President.

Qualification

The person to be appointed as the Attorney General of India must be qualified to become a judge of the Supreme Court of India.

Functions and Duties of Attorney-General

Article 76(2) and (3) defines the functions and duties of the Attorney General of India. Article 76(2) states that:

- Attorney General can give advice to the Government of India regarding legal matters assigned to him by the President;
- He must also perform other duties of any legal character that are assigned to him by the President;
- He also has to discharge the functions given to him by the Constitution or any other legislation.

Whereas Article 76(3) states that in the performance of his official duties:

- The Attorney General can appear on behalf of the Government of India in the Supreme Court, in cases where the Government of India is a party concerned;
- He also has to appear on behalf of the government, in regards to references made by the President before the Supreme Court under Article 143 of the Constitution;
- He has to appear on behalf of the government in any case in the High Court, where the Government of India is a party in concern.

Conclusion

Wherefore, the Union Executive is one of the most important organs of the Indian democracy. It forms the soul of our Indian administrative system. Union executive act as the strong shoot for all the branches of administrative and executive bodies. The Constitution-makers have assembled together all the provisions needed to form a strong and responsible executive

system for our nation. Thus, it makes it important for the citizens as well to coordinate with the executive for the better functioning of our Indian democratic system.

The State Executive: Article 153-167 & Article 213

Introduction: The State Executive consists of the Chief Minister, the Council of Ministers and the Governor. It has the same Parliamentary pattern as followed by the Union Government with the upper hand being given to the Union in certain matters. This has been done to maintain the unitary spirit of the structure of the country. The Governor plays the twofold role of being the constitutional head at the state level as well as being a link between the state government and the centre. He/She acts on the advice of the Council of Ministers and all executive actions are taken in his name. This article extensively studies the relation between these various state functionaries, the distribution of power between them and their accountability.

The Governor

Article 153 of the Indian Constitution provides for every State to have a Governor. Just like the President is the nominal head of the republic, the Governor is the nominal head of a state. This means that he/she has powers and functions similar to the President of India but operates at the state level, with the real power lying in the hands of the State Chief Minister and his/her council of ministers. Further, the 7th Constitution Amendment Act of 1956 has added a provision under Article 153 which provides for the same person to act as the Governor of two states simultaneously. The term of office of the Governor is 5 years.

Appointment, Tenure and Removal of a Governor

Appointment of a Governor is talked about under Article 155 and information regarding his tenure and removal are provided under Article 156. It states that the President appoints the Governor by warrant under his hand and seal i.e., bearing his seal and signature. The Governor shall hold office as long as he/she enjoys the pleasure of the President. The Governor may resign his office by writing under his hand i.e., a written letter undersigned by him addressed to the President. In accordance with the foregoing provisions of this article, the Governor's term of office shall be five years from the date on which he/she enters upon his office, provided that the Governor shall continue to hold office until his/her successor enters upon his office, notwithstanding the expiration of his term.

Qualifications

Article 157 states the two qualifications to be fulfilled for a person to be appointed Governor. The two provisions are:

- He/She should be an Indian citizen.
- He/She should have completed 35 years of age.

Conditions of Governor's Office

Along with the above mentioned preliminary qualifications, there are a set of other criteria which need to be met. These are stated under Article 158. They are:

- He/She should not be holding any office of profit.
- He/She should not be a member of the Parliament or any other State Legislature. However, if someone holding these positions is appointed Governor, he/she would have to vacate their previously held office.

- He/She is provided with such allowances, emoluments and privileges which the Parliament provides by law and in case these provisions are absent, they are provided to him/her as per Schedule II.
- The above mentioned allowances, emoluments and privileges would not be diminished during his term. Further, if two states come under him/her, such expenses would be shared between them in accordance with the President's decision.

Oath

Every Governor, before entering his office is bound to take an oath before the Chief Justice of the High Court or the senior most judge, in the former's absence. This is mentioned under Article 159. The oath is as follows:

"I, A. B., do swear in the name of God that I will solemnly affirm faithfully execute the office of Governor (or discharge the functions of the Governor) of (name of the State) and will to the best of my ability preserve, protect and defend the Constitution and the law and that I will devote myself to the service and well-being of the people of (name of the State)."

Can the governor be dismissed arbitrarily?

As per Articles 155 & 156 of the Constitution, the Governor is an appointee of the President and holds office as long as he continues to enjoy his pleasure. This essentially means that the Governor can hold his office for the prescribed term of 5 years if he continues to enjoy the pleasure of the President. Article 74 states that the President is bound to act upon the aid and advice of the Council of Ministers. Therefore, the President's decision to remove the Governor, in effect, is actually the decision of the Centre. In the case of **B.P. Singhal vs UOI (2010)**, the Hon'ble Court's constitutional bench held that even though the Central Government holds the power to remove the Governor, they cannot do so arbitrarily and would have to prove the facts of the case and grounds for his/her removal. Thus, the Governor cannot be removed simply because the Union government has lost confidence in him/her.

B.P. Singhal VS Union of India (2010) case

The circumstances leading to this case revolve around the removal of the Governors of Uttar Pradesh, Gujarat, Haryana and Goa after the 14th Lok Sabha elections. The writ petition was filed by a former member of Parliament, B.P. Singhal and the matter was referred to a five judge constitution bench consisting of the then Chief Justice K.G. Balakrishnan and Justices S.H. Kapadia, R.V. Raveendran, B. Sudershan Reddy and P. Sathasivam.

Quoting Justice Raveendran, "What Article 156 (1) of the Constitution dispenses with, is the need to assign reasons or the need to give notice, but the need to act fairly and reasonably cannot be dispensed with by Article 156(1)."

The bench clarified that the exercise of powers by the President under Article 156(1) should not be arbitrary. In case the President withdraws his pleasure, the court will assume that it is for compelling reasons and where the aggrieved person is unable to point out mala fide reasons for his/her removal, the court won't interfere. But, in cases where the said person is able to prove that there existed a mala fide intention behind his/her removal, the court would cause the Union government to produce records/material to satisfy itself that the withdrawal of pleasure was for good and compelling reasons. What constitutes good and compelling reasons would depend upon the facts of the case. Thus, there won't be any interference from the judiciary unless the executive makes a strong case based on malafide intentions.

In summary, the Court made it clear that even though the Union and the President held the power to remove the Governor, such could not be effected in an arbitrary manner or in bad faith even if his/her policies and ideologies were different from those of the Union Government.

Discharge of his functions in certain contingencies: Article 160

The article means that in case there's a certain eventuality where the President thinks the Governor needs to discharge certain duties not mentioned in this chapter, then the President can do so via this provision.

Powers of Governors

As it has already been made clear in the beginning of the article, the position, power and functions of the Governor are analogous to that of the President. His/Her powers are discussed below under four heads.

Executive power

Under Article 154(1), the executive powers have been vested to the Governor and he can choose to exercise them either directly himself or indirectly through his Council of ministers.

- As such, the Governor makes important appointments of the state such as the Chief Minister and Council of Ministers, Chairman and members of State Public Service Commission, State election commissioner, Advocate General, Chief Justice of the High Court, District judges and the Vice chancellors of Universities.
- Under Article 356, the Governor can recommend the President for the imposition of a State Emergency and during such emergency he/she enjoys extensive executive powers as an agent of the President.
- He/She runs the state administration by extending control over the subjects in the state list and deciding the policies and portfolios of the various ministers.

Financial power

- A money bill cannot be introduced in the state legislature without prior approval of the Governor.
- The state Contingency Fund is at his/her disposal and he/she can make withdrawals out of it to meet unforeseen expenditures.
- He/She makes sure that the Annual state budget is discussed and put before the State Legislature.

Legislative power

- The Governor has the power to summon and prorogue both houses of the Legislature. He/She has to make sure that the maximum gap between the two sessions of the houses is 6 months.
- Under Article 192, the Governor has the authority to disqualify any legislator who fails to comply with the conditions given under Article 191.
- The Governor has to address the state legislature at the beginning of the first session every year and after the state assembly elections.
- The Governor can hold a bill and send it to the President for his consideration. Other than this, the Governor can either give assent to a bill or withhold it or send it back for reconsideration (except for money bills).

Pardoning power

According to Article 161, the Governor can grant pardons, reprieves, respites and remissions of punishment or suspend, remit and commute the sentence of any person convicted of any

offence relating to matters under the state executive power, exception being cases decided by a court martial. However, in cases where a death penalty has been granted the Governor cannot pardon it.

Is this power subject to judicial review ?

According to the Constitution, the judiciary should not encroach upon the powers of the executive. However, in certain cases this has been seen.

In the case of ***Epuru Sudhakar & Anr. v. Govt. of AP & Ors.***, the issue of whether the pardoning power of the Governor is subject to judicial review or not came up. The Hon'ble Supreme Court set aside the decision of the then Andhra Pradesh Governor, Sushil Kumar Shinde. The Governor had advised for remitting the punishment of a Congress activist in connection with the murder of two persons, one of whom was a TDP activist. The division bench consisting of Justices S.H. Kapadia and Arijit Pasayat expressly mentioned that the exercise of the pardoning power should be in compliance with the Rule of Law.

“Rule of Law is the basis for evaluation of all decisions (by the court)... That rule cannot be compromised on the grounds of political expediency. To go by such considerations would be subversive of the fundamental principles of the Rule of Law and it would amount to setting a dangerous precedent,” the bench warned.

Justice Kapadia, while concurring with the main ruling delivered by Justice Pasayat, sought to remind “exercise of executive clemency is a matter of discretion and yet subject to certain standards. It is not a matter of privilege. It is a matter of performance of official duty... the power of executive clemency is not only for the benefit of the convict but while exercising such a power the President or the Governor as the case may be, has to keep in mind the effect of his decision on the family of the victims, the society as a whole and the precedent it sets for the future.”

He also said “An undue exercise of this power is to be deplored. Considerations of religion, caste or political loyalty are fraught with discrimination”. Thus, this judgment gave a final conclusion that the settled position of law that exercise or non-exercise of the pardoning power by the Governor would not be immune from judicial review.

Ordinance making power of the Governor

Under Article 213, the Government can issue an ordinance if the circumstances compel him to do so, when either houses of the legislative assembly are not in session. However, there are two circumstances under which the Governor cannot issue an ordinance. They are:

- If the ordinance has certain provisions which the Governor would have reserved for the President in case it were a Bill.
- If the State Legislature has an act with similar provisions and the same would be declared invalid without the President's assent.

The Council of Ministers

The Council of Ministers is appointed by the Governor. It along with the Chief Minister exercise the real power and implement policies and rules in the State. Hence, together they form the executive head of the State.

Maximum size of ministries

The total number of Ministers, including the Chief Minister, in the Council of Ministers in a State shall not exceed fifteen per cent of the total number of members of the Legislative Assembly of that State, provided that the number of ministers, including the Chief Minister in a State shall not be less than twelve; And that where the total number of Ministers including the Chief Minister in

the Council of Ministers in any State at the commencement of the Constitution (Ninety-first Amendment) Act, 2003 exceeds the said fifteen per cent then the total number of ministers in that State shall be confined to such number within six months from such date.

Disqualification of defection on the ground of split abolished

In order to protect the true essence of democracy, the Anti-defection law was introduced in the 10th schedule. It was a measure to reduce the rampant horse trading that was happening under the popular phenomenon of “Aaya Ram Gaya Ram” in the political parties. Initially, the law allowed defection if 1/3rd of the party members agreed to split their party. But this provision backfired and resulted in mass defections. So this was subsequently changed in the 91st amendment and the bar was raised to 2/3rd. Under the new provisions, a member won't be disqualified in case of a split in the following two conditions:

- that he/she has willingly given up his membership in his original political party; or
- that he/she has voted or not voted in the House contrary to the instructions by such political party or by any person or authority authorised by it and such an act has not been condoned by such political party, person or authority within fifteen days.

Can the Governor sanction for Prosecution of Ministers under Corruption Act?

The Governor can sanction for the prosecution of the ministers but the proof for the same needs to be satisfactory. There have been many cases where the Governor has ordered a sanction for the prosecution of a Minister, sometimes with the advice of the Council of Ministers and at times on his own discretion and one such case has been discussed below.

M.P. Special Police Establishment v. State of M.P., 2005

In this case, the issue was whether or not the Governor should give the sanction for the prosecution of the Chief Minister without the aid and advice of the Council of Ministers. The Supreme Court held that the Governor could make use of his discretionary powers in this case and is not bound by the aid and advice of the Council of Ministers. Thus, Governor sanctioned for the prosecution of the Chief Minister.

Non-legislator can be appointed as Minister

Going by the established practices, it is mostly a legislator who is appointed minister. But an exception to this rule exists under Article 164(4). This provision provides that if a non-member is appointed minister, he/she must get elected within the next 6 months. This has happened in numerous cases, for e.g., Kamaraj Nadar in Madras in 1954, T.N. Singh in U.P. in 1971.

A non-member cannot be reappointed Minister without getting himself elected

In 2001, the then Governor of Tamil Nadu had appointed Jayalalitha as the Chief Minister of Tamil Nadu. Now, Jayalalitha was not an elected member of the house and additionally had corruption charges against her which caused her nomination papers to be rejected.

The Hon'ble Supreme Court ruled that it would be a clear violation of the Constitution if it allowed any individual to be appointed Minister for a second term of “six consecutive months” without getting elected to the legislature. The court also held that Article 164(4) can be put to the best use when its effectiveness restricted to a short period of six consecutive months. Quoting the judgement: “The clear mandate of Article 164(4) that if an individual concerned is not able to get elected to the legislature within the grace period of six consecutive months, he shall cease to be a Minister, cannot be allowed to be frustrated by giving a gap of few days and re-appointing the individual as a Minister, without his securing the confidence of the electorate in

the meanwhile.”

A convicted person cannot be appointed as Chief Minister: Constitution Superior, not mandate

After the Supreme Court verdict last year in *Lily Thomas vs. Union of India*, striking down Section 8(4) of the Representation of the People Act, legislators have lost their protection from immediate disqualification. In the light of this ruling, Ms. Jayalalithaa will be disqualified as an MLA the moment conviction is awarded, say legal experts. The SC held that “ a person who is convicted for a criminal offence and sentenced to imprisonment for a period of not less than two years cannot be appointed the Chief Minister of a State under Article 164(1) read with (4) and cannot continue to function as such.

Relationship between the Governor and Council of Ministers

The relationship between the Governor and the Council of Ministers is analogous to that between the President and the Council of Ministers. Article 163 says that there shall be a Council of Ministers to aid and advise the Governor. These group of ministers hold office during the pleasure of the Governor and are directly responsible to the Legislative Assembly. Under normal conditions, the Governor is bound by the advice and opinions of the Council of Ministers but there are certain circumstances under which the Governor functions according to his/her own discretion.

Appointment of the Chief Minister

The Chief Minister is the most powerful functionary at the State Government level and is the executive head of the state. He/She is appointed by the Governor. Post the general elections, the party with the majority votes and elects its leader.

This person is then appointed as Chief Minister. In case, no particular party secures majority support, the Governor asks the leader of the single largest party to form the Government or in case of a coalition, the group’s leader is appointed as Chief Minister.

Dismissal of a Minister

The ministers of a state holds office during the pleasure of the President. However, since the ministers are chosen by the Chief Minister, in practice it is the Chief Minister who decides whom to retain and whom to oust. Thus there are two provisions here:

- The Governor cannot dismiss a Minister against the advice of the Chief Minister.
- The Governor cannot retain a Minister against the wishes of the Chief Minister.

Dissolution of the Legislative Assembly

There are two provisions in the Constitution under which the State Legislative Assembly can be dissolved. One is under Article 174(2)(b) which states that the Governor may dissolve the Legislative Assembly from time to time. This was recently seen when the Governor of Telangana dismissed the State’s Legislative Assembly after being advised by the Chief Minister to do so. The other is under Article 365 which can be applied during a state emergency i.e., President’s Rule. Under Article 365, if the state government fails to comply with the instructions of the Union Government, then it is up to the Governor to assess the ground situation and then call for its dissolution, after approval by both houses of the Parliament. But this decision comes under the judicial review of both the High Court and Supreme Court and they can declare it invalid if it is found to be done on mala fide grounds. Since 2000, President’s Rule has been applied 15 times in the country.

Advising the President for the Proclamation of an Emergency under Article 356 When the

State Government is unable to function in accordance to the constitutional machinery, then the Governor sends a report to the President briefing him/her about the grievousness of the situation. This power has been granted to the Governor under Article 356. This may happen when there is a vote of no confidence in the house or a government breakdown in the state.

Protection of Governor

Article 361 lays down the provisions for the protection of the Governor. The Governor shall not be answerable to any court for the performance and disposal of his/her duties. There can be no criminal proceedings against him/her during the term of his/her office. Neither can there be a process to arrest him/her during the term of his/her office. Any civil proceedings in which relief is claimed against the Governor of a State, shall be instituted during his/her term of office in any court in respect of any act done or purporting to be done by him/her in his personal capacity.

Conclusion

The Indian Government's structure is Quasi-Federal in nature. The President operates at the National Level, the Governor operates at the State Level. The Governor being the nominal head doesn't possess any real power but does have some important discretionary functions. This distribution of power between the Governor and the Chief Minister helps maintain balance in a state and also to keep a check on the functioning of the individual machineries.

The State Executive: Article 153-167 & Article 213

Introduction: The State Executive consists of the Chief Minister, the Council of Ministers and the Governor. It has the same Parliamentary pattern as followed by the Union Government with the upper hand being given to the Union in certain matters. This has been done to maintain the unitary spirit of the structure of the country. The Governor plays the twofold role of being the constitutional head at the state level as well as being a link between the state government and the centre. He/She acts on the advice of the Council of Ministers and all executive actions are taken in his name. This article extensively studies the relation between these various state functionaries, the distribution of power between them and their accountability.

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Appointment, Tenure and Removal of a Governor

Appointment of a Governor is talked about under Article 155 and information regarding his tenure and removal are provided under Article 156. It states that the President appoints the Governor by warrant under his hand and seal i.e., bearing his seal and signature. The Governor shall hold office as long as he/she enjoys the pleasure of the President. The Governor may resign his office by writing under his hand i.e., a written letter undersigned by him addressed to the President. In accordance with the foregoing provisions of this article, the Governor's term of office shall be five years from the date on which he/she enters upon his office, provided that the Governor shall continue to hold office until his/her successor enters upon his office, notwithstanding the expiration of his term.

Qualifications

Article 157 states the two qualifications to be fulfilled for a person to be appointed Governor.

The two provisions are:

- He/She should be an Indian citizen.
- He/She should have completed 35 years of age.

Conditions of Governor's Office

Along with the above mentioned preliminary qualifications, there are a set of other criteria which need to be met. These are stated under Article 158. They are:

- He/She should not be holding any office of profit.
- He/She should not be a member of the Parliament or any other State Legislature. However, if someone holding these positions is appointed Governor, he/she would have to vacate their previously held office.
- He/She is provided with such allowances, emoluments and privileges which the Parliament provides by law and in case these provisions are absent, they are provided to him/her as per Schedule II.

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Every Governor, before entering his office is bound to take an oath before the Chief Justice of the High Court or the senior most judge, in the former's absence. This is mentioned under Article 159. The oath is as follows:

"I, A. B., do swear in the name of God that I will solemnly affirm faithfully execute the office of Governor (or discharge the functions of the Governor) of (name of the State) and will to the best of my ability preserve, protect and defend the Constitution and the law and that I will devote myself to the service and well-being of the people of (name of the State). "

Can the governor be dismissed arbitrarily?

As per Articles 155 & 156 of the Constitution, the Governor is an appointee of the President and holds office as long as he continues to enjoy his pleasure. This essentially means that the Governor can hold his office for the prescribed term of 5 years if he continues to enjoy the pleasure of the President. Article 74 states that the President is bound to act upon the aid and advice of the Council of Ministers. Therefore, the President's decision to remove the Governor, in effect, is actually the decision of the Centre. In the case of **B.P. Singhal vs UOI (2010)**, the Hon'ble Court's constitutional bench held that even though the Central Government holds the power to remove the Governor, they cannot do so arbitrarily and would have to prove the facts of the case and grounds for his/her removal. Thus, the Governor cannot be removed simply because the Union government has lost confidence in him/her.

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In summary, the Court made it clear that even though the Union and the President held the power to remove the Governor, such could not be effected in an arbitrary manner or in bad faith even if his/her policies and ideologies were different from those of the Union Government.

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The article means that in case there's a certain eventuality where the President thinks the Governor needs to discharge certain duties not mentioned in this chapter, then the President can do so via this provision.

Powers of Governors

As it has already been made clear in the beginning of the article, the position, power and functions of the Governor are analogous to that of the President. His/Her powers are discussed below under four heads.

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- A money bill cannot be introduced in the state legislature without prior approval of the Governor.
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- He/She makes sure that the Annual state budget is discussed and put before the State Legislature.

Legislative power

- The Governor has the power to summon and prorogue both houses of the Legislature. He/She has to make sure that the maximum gap between the two sessions of the houses is 6 months.
- Under Article 192, the Governor has the authority to disqualify any legislator who fails to comply with the conditions given under Article 191.
- The Governor has to address the state legislature at the beginning of the first session every year and after the state assembly elections.
- The Governor can hold a bill and send it to the President for his consideration. Other than this, the Governor can either give assent to a bill or withhold it or send it back for reconsideration (except for money bills).

Pardoning power

According to Article 161, the Governor can grant pardons, reprieves, respites and remissions of punishment or suspend, remit and commute the sentence of any person convicted of any offence relating to matters under the state executive power, exception being cases decided by a court martial. However, in cases where a death penalty has been granted the Governor cannot pardon it.

Is this power subject to judicial review ?

According to the Constitution, the judiciary should not encroach upon the powers of the executive. However, in certain cases this has been seen.

In the case of ***Epuru Sudhakar & Anr. v. Govt. of AP & Ors.***, the issue of whether the pardoning power of the Governor is subject to judicial review or not came up. The Hon'ble Supreme Court set aside the decision of the then Andhra Pradesh Governor, Sushil Kumar Shinde. The Governor had advised for remitting the punishment of a Congress activist in connection with the murder of two persons, one of whom was a TDP activist. The division bench consisting of Justices S.H. Kapadia and Arijit Pasayat expressly mentioned that the exercise of the pardoning power should be in compliance with the Rule of Law.

"Rule of Law is the basis for evaluation of all decisions (by the court)... That rule cannot be compromised on the grounds of political expediency. To go by such considerations would be subversive of the fundamental principles of the Rule of Law and it would amount to setting a dangerous precedent," the bench warned.

Justice Kapadia, while concurring with the main ruling delivered by Justice Pasayat, sought to remind "exercise of executive clemency is a matter of discretion and yet subject to certain standards. It is not a matter of privilege. It is a matter of performance of official duty... the power of executive clemency is not only for the benefit of the convict but while exercising such a power the President or the Governor as the case may be, has to keep in mind the effect of his decision on the family of the victims, the society as a whole and the precedent it sets for the future."

He also said "An undue exercise of this power is to be deplored. Considerations of religion, caste or political loyalty are fraught with discrimination". Thus, this judgment gave a final conclusion that the settled position of law that exercise or non-exercise of the pardoning power by the Governor would not be immune from judicial review.

Ordinance making power of the Governor

Under Article 213, the Government can issue an ordinance if the circumstances compel him to do so, when either houses of the legislative assembly are not in session. However, there are two circumstances under which the Governor cannot issue an ordinance. They are:

- If the ordinance has certain provisions which the Governor would have reserved for the President in case it were a Bill.
- If the State Legislature has an act with similar provisions and the same would be declared invalid without the President's assent.

The Council of Ministers

The Council of Ministers is appointed by the Governor. It along with the Chief Minister exercise the real power and implement policies and rules in the State. Hence, together they form the executive head of the State.

Maximum size of ministries

The total number of Ministers, including the Chief Minister, in the Council of Ministers in a State

shall not exceed fifteen per cent of the total number of members of the Legislative Assembly of that State, provided that the number of ministers, including the Chief Minister in a State shall not be less than twelve; And that where the total number of Ministers including the Chief Minister in the Council of Ministers in any State at the commencement of the Constitution (Ninety-first Amendment) Act, 2003 exceeds the said fifteen per cent then the total number of ministers in that State shall be confined to such number within six months from such date.

Disqualification of defection on the ground of split abolished

In order to protect the true essence of democracy, the Anti-defection law was introduced in the 10th schedule. It was a measure to reduce the rampant horse trading that was happening under the popular phenomenon of “Aaya Ram Gaya Ram” in the political parties. Initially, the law allowed defection if 1/3rd of the party members agreed to split their party. But this provision backfired and resulted in mass defections. So this was subsequently changed in the 91st amendment and the bar was raised to 2/3rd. Under the new provisions, a member won't be disqualified in case of a split in the following two conditions:

- that he/she has willingly given up his membership in his original political party; or
- that he/she has voted or not voted in the House contrary to the instructions by such political party or by any person or authority authorised by it and such an act has not been condoned by such political party, person or authority within fifteen days.

Can the Governor sanction for Prosecution of Ministers under Corruption Act?

The Governor can sanction for the prosecution of the ministers but the proof for the same needs to be satisfactory. There have been many cases where the Governor has ordered a sanction for the prosecution of a Minister, sometimes with the advice of the Council of Ministers and at times on his own discretion and one such case has been discussed below.

M.P. Special Police Establishment v. State of M.P., 2005

In this case, the issue was whether or not the Governor should give the sanction for the prosecution of the Chief Minister without the aid and advice of the Council of Ministers. The Supreme Court held that the Governor could make use of his discretionary powers in this case and is not bound by the aid and advice of the Council of Ministers. Thus, Governor sanctioned for the prosecution of the Chief Minister.

Non-legislator can be appointed as Minister

Going by the established practices, it is mostly a legislator who is appointed minister. But an exception to this rule exists under Article 164(4). This provision provides that if a non-member is appointed minister, he/she must get elected within the next 6 months. This has happened in numerous cases, for e.g., Kamaraj Nadar in Madras in 1954, T.N. Singh in U.P. in 1971.

A non-member cannot be reappointed Minister without getting himself elected

In 2001, the then Governor of Tamil Nadu had appointed Jayalalitha as the Chief Minister of Tamil Nadu. Now, Jayalalitha was not an elected member of the house and additionally had corruption charges against her which caused her nomination papers to be rejected.

The Hon'ble Supreme Court ruled that it would be a clear violation of the Constitution if it allowed any individual to be appointed Minister for a second term of “six consecutive months” without getting elected to the legislature. The court also held that Article 164(4) can be put to the best use when its effectiveness restricted to a short period of six consecutive months. Quoting the judgement: “The clear mandate of Article 164(4) that if an individual concerned is not able to get elected to the legislature within the grace period of six consecutive months, he

shall cease to be a Minister, cannot be allowed to be frustrated by giving a gap of few days and re-appointing the individual as a Minister, without his securing the confidence of the electorate in the meanwhile.”

A convicted person cannot be appointed as Chief Minister: Constitution Superior, not mandate

After the Supreme Court verdict last year in *Lily Thomas vs. Union of India*, striking down Section 8(4) of the Representation of the People Act, legislators have lost their protection from immediate disqualification. In the light of this ruling, Ms. Jayalalithaa will be disqualified as an MLA the moment conviction is awarded, say legal experts. The SC held that “ a person who is convicted for a criminal offence and sentenced to imprisonment for a period of not less than two years cannot be appointed the Chief Minister of a State under Article 164(1) read with (4) and cannot continue to function as such.

Relationship between the Governor and Council of Ministers

The relationship between the Governor and the Council of Ministers is analogous to that between the President and the Council of Ministers. Article 163 says that there shall be a Council of Ministers to aid and advise the Governor. These group of ministers hold office during the pleasure of the Governor and are directly responsible to the Legislative Assembly. Under normal conditions, the Governor is bound by the advice and opinions of the Council of Ministers but there are certain circumstances under which the Governor functions according to his/her own discretion.

Appointment of the Chief Minister

The Chief Minister is the most powerful functionary at the State Government level and is the executive head of the state. He/She is appointed by the Governor. Post the general elections, the party with the majority votes and elects its leader.

This person is then appointed as Chief Minister. In case, no particular party secures majority support, the Governor asks the leader of the single largest party to form the Government or in case of a coalition, the group's leader is appointed as Chief Minister.

Dismissal of a Minister

The ministers of a state holds office during the pleasure of the President. However, since the ministers are chosen by the Chief Minister, in practice it is the Chief Minister who decides whom to retain and whom to oust. Thus there are two provisions here:

- The Governor cannot dismiss a Minister against the advice of the Chief Minister.
- The Governor cannot retain a Minister against the wishes of the Chief Minister.

Dissolution of the Legislative Assembly

There are two provisions in the Constitution under which the State Legislative Assembly can be dissolved. One is under Article 174(2)(b) which states that the Governor may dissolve the Legislative Assembly from time to time. This was recently seen when the Governor of Telangana dismissed the State's Legislative Assembly after being advised by the Chief Minister to do so. The other is under Article 365 which can be applied during a state emergency i.e., President's Rule. Under Article 365, if the state government fails to comply with the instructions of the Union Government, then it is up to the Governor to assess the ground situation and then call for its dissolution, after approval by both houses of the Parliament. But this decision comes under the judicial review of both the High Court and Supreme Court and they can declare it invalid if it is found to be done on mala fide grounds. Since 2000, President's Rule has been applied 15 times in the country.

Advising the President for the Proclamation of an Emergency under Article 356 When the State Government is unable to function in accordance to the constitutional machinery, then the Governor sends a report to the President briefing him/her about the grievousness of the situation. This power has been granted to the Governor under Article 356. This may happen when there is a vote of no confidence in the house or a government breakdown in the state.

Protection of Governor

Article 361 lays down the provisions for the protection of the Governor. The Governor shall not be answerable to any court for the performance and disposal of his/her duties. There can be no criminal proceedings against him/her during the term of his/her office. Neither can there be a process to arrest him/her during the term of his/her office. Any civil proceedings in which relief is claimed against the Governor of a State, shall be instituted during his/her term of office in any court in respect of any act done or purporting to be done by him/her in his personal capacity.

Conclusion

The Indian Government's structure is Quasi-Federal in nature. The President operates at the National Level, the Governor operates at the State Level. The Governor being the nominal head doesn't possess any real power but does have some important discretionary functions. This distribution of power between the Governor and the Chief Minister helps maintain balance in a state and also to keep a check on the functioning of the individual machineries.

Unit - II TOPICS COVERED

Judiciary under Constitution - Supreme Court - Appointment of Judges, Powers and Jurisdiction
- High Courts - Appointment and Transfer of Judges - Powers and Jurisdiction - Subordinate
Judiciary - Independence of judiciary - Judicial Accountability

Supreme Court of India: Composition, Power and Functions

The Indian constitution under Article 124(1) states that there shall be a Supreme Court of India consisting of a Chief justice of India (CJI) and 31 judges including the CJI. The Jurisdiction of the Supreme Court of India can broadly be categorised into original jurisdiction, appellate jurisdiction and advisory jurisdiction. However, there are other multiple powers of the Supreme Court.

Supreme Court at the apex of Indian Judiciary is the highest authority to uphold the constitution of India, to protect rights and liberties of citizens and to uphold the values of rule of law. Hence it is known as the guardian of our Constitution.

The Indian constitution provides for a provision of Supreme Court under Part 5 (The Union) and Chapter 6 titled The Union Judiciary. Indian Constitution has provided an independent judiciary with a hierarchical setup containing High Courts and Subordinate Courts under it.

Composition of the Supreme Court

Article 124(1) and Amendment act of 2008 states that there shall be a Supreme Court of India consisting of a Chief justice of India (CJI) and 31 judges including the CJI. Article 124(2) states that every judge of the Supreme Court shall be appointed by the President by warrant under his hand and seal after consultation with such of the judges of Supreme Court and of the High Courts in the states.

Here the collegium system (appointment of judges to the courts) was followed also known as the three judges cases, which comprises of the Chief Justice of India and four senior most judges of the SC, one chief justice of a high court and two of its senior most judges. This system demanded a consensus decision of all the senior most judges in conformity with the Chief Justice of India.

However due to lack of transparency and delay in appointment, a new article 124 A was incorporated in the constitution, under which the National Judiciary Appointments Commission (NJAC) replaced the collegium system for the appointment of judges as mandated in the existing pre-amended constitution by a new system.

Appointment of the Judges

The procedure of appointment of the Chief Justice and other judges has created a lot of controversy because it is the key aspect of the independence of the judiciary. Art 124 specifies that the Chief Justice is appointed by the president after consulting with the judges of the Supreme Court and the high courts. Further, that while appointing other judges, the CJ must be consulted. Thus, the constitution clearly tried to prevent the executive from having complete discretionary powers in the appointment of the judges.

Until 1973, the senior most judge of the Supreme Court was appointed as the Chief Justice. However, this convention was broken when Justice AN Ray was appointed as the CJ by passing 3 more senior judges. This was seen as a blatant assault on the independence of the judiciary. The govt. pleaded that the word "consult" does not mean that the president is bound by the advice. He is free to make his own decision.

In 1977, in the case of **Union of India vs Sankalchand Seth**, which was related to the transfer of a Judge from one high court to another under art 222, SC held that the President has the right to differ from the advice provided by the consultants.

Judges Transfer Case 1

In the case of **S P Gupta vs Union of India, 1982** SC unanimously agreed with the meaning of the word 'consultation' as determined in the Sankalchand's case. It further held that the only ground on which the decision of the govt. can be challenged is that it is based on mala fide and irrelevant consideration. In doing so, it substantially reduced its own power in appointing the judges and gave control to the executive.

Judges Transfer Case 2

This matter was raised again in the case of **SC Advocates on Record Association vs Union of India, AIR 1982**. In this case, the SC overruled the decision of the S P Gupta case and held that in the matter of appointment of judges of high courts and supreme court, the CJ should have the primacy and the appointment of the CJ should be based on seniority. It further held that the CJ must consult his two senior most judges and the recommendation must be made only if there is a consensus among them.

Judges Transfer Case 3

A controversy arose again when the CJ recommended the names for appointment without consulting with other judges in 1999. The president sought advice from the SC (**re Presidential Reference 1999**) and a 9 member bench held that an advice given by the CJ without proper consultation with other judges is not binding on the govt.

As of now, due to the decision in Judges Transfer Case 2, the appointment of the judges in SC and High Courts are fairly free from executive control. This is an important factor that ensure the independence of the judiciary and the appointment shall be made through the collegium system.

What is the Collegium System?

The Collegium System is a system under which appointments/elevation of judges/lawyers to Supreme Court and transfers of judges of High Courts and Apex Court are decided by a forum of the Chief Justice of India and the four senior-most judges of the Supreme Court.' There is no mention of the Collegium either in the original Constitution of India or in successive amendments.

The Collegiums System of appointment of judges was born through "**three judges case**" which interpreted constitutional articles on **October 28, 1998**.

The recommendations of the Collegium are binding on the Central Government; if the Collegium sends the names of the judges/lawyers to the government for the second time.

The NJAC consists of the following persons:

1. Chief Justice of India (chair person)
2. Two senior most Supreme Court judges
3. The Union Minister of Law and Justice
4. Two eminent persons nominated by committee consisting of CJI, Prime minister of India and leader of opposition.

Functions of the Commission are as follows:

- Recommending persons for CJI, judges of supreme court, Chief Justice of High court, Judges of High court,

- Transfer of Chief justices and judges from one court to other
- Ensure persons recommended are of ability and integrity

How Collegium System Works?

The Collegium sends the recommendations of the names of lawyers or judges to the Central Government. Similarly, the Central Government also sends some of its proposed names to the Collegium. The Central Government does the fact checking and investigate the names and resends the file to the Collegium.

Collegium considers the names or suggestions made by the Central Government and resends the file to the government for final approval. If the Collegium resends the same name again then the government has to give its assent to the names. **But time limit is not fixed to reply.** This is the reason that appointment of judges takes a long time.

Here i would like to give the **example of Chief Justice of the Uttarakhand High Court.** In this case the Collegium is recommending the name of the Chief Justice K.M. Joseph for the judge of the Supreme Court but the central government is not giving its assent due to political reasons.

Points against the Collegium System;

1. In spite of being a democracy, the judges appoint judges in India.
2. Collegium System could not appoint judges as per the vacancies in the courts due to various reasons.
3. If the constitution makers had liked this way of appointment of judges, they would have envisaged it in the original constitution itself.
4. In the year 2009, Law Commission of India said that nepotism and personal patronage is prevalent in the functioning of the Collegium System.
5. Collegium System is recommending the appointment of the judges without considering the talent available in the market.

Based on the complete information given above, it became clear that the current Collegium System of the country is trying to make **"wrestler's son wrestler" and "judge's son judge"** without giving chance to talent available in the market. So Collegium System is not a healthy practice for a democratic country like India. The Collegium System is not the constitutional system so the central government should make appropriate laws to pull out the Indian Judicial System from the monopoly of some families.

Jurisdiction of the Supreme Court of India (Articles 141, 137)

Articles 137 to 141 of the Constitution of India lay down the composition and jurisdiction of the Supreme Court of India. Art 141, states that Law declared by Supreme Court is binding on all the courts in India and Art 137 empowers SC to review its own judgment. The Jurisdiction of the Supreme Court of India can broadly be categorised into three parts: **Original Jurisdiction- (Art 131)**

This jurisdiction extends to cases originating in SC only and states that Indian SC has original and exclusive jurisdiction in cases between:

- Government on one hand and one or more states on the other
- Government and one or more states on one side and other states on the other
- Two or more states

Appellate Jurisdiction- (Art 132,133,134)

Appeal lies with SC against high court in following 4 categories

1. Constitutional matters-if high court certifies that the case involves substantial question of law that needs interpretation of constitution.
2. Civil matters- if case involves substantial question of law of general importance
3. Criminal matters-if high court has on appeal reversed the order of acquittal of an accused and sentenced him to death or has withdrawn for trial before itself any case from subordinate court
4. Special leave to appeal is granted by SC if it is satisfied that the case does not involve any question of law. However it cannot be passed in case of judgment passed by a court or tribunal of armed forces.

However, under this jurisdiction SC can transfer to itself cases from one or more high courts if it involves question of law in the interest of justice.

Advisory Jurisdiction (Art 143)

The Article 143 authorises the President to seek advisory opinion from the Supreme Court in the two categories of matters-(a) matters of public importance (b) of any question arising out of pre-constitution, treaty, agreement, engagement, sanad or other similar instruments.

Also Art 144 states that all authorities civil and judicial in the territory of India shall act in aid of the Supreme Court.

Powers of the Supreme Court

1. Power to punish for contempt (civil or criminal) of court with simple imprisonment for 6 months or fine up to 2000. Civil contempt means wilful disobedience to any judgment. Criminal contempt means doing any act which lowers the authority of court or causing interference in judicial proceedings
2. **Judicial review** - to examine constitutionality of legislative enactments and executive orders. The grounds of review is limited by- Parliamentary legislation or rules made by Supreme Court.
3. Deciding authority regarding election of President and Vice President
4. Enquiring authority in conduct and behaviour of UPSC members
5. Withdraw cases pending before high courts and dispose them itself
6. **Appointment of ad hoc judges**-Art 127 states that if at any time there is lack of quorum of Judges of Supreme Court, the CJI may with previous consent of the President and Chief Justice of High Court concerned request in writing the attendance of Judge of High Court duly qualified to be appointed as Judge of SC.
7. **Appointment of retired judges of supreme court or high court** - Art 128- The CJI at any time with the previous consent of the President and the person to be so appointed can appoint any person who had previously held office of a Judge of SC.
8. **Appointment of acting Chief Justice**- Art 126- when the office of CJI is vacant or when the Chief Justice is by reason of absence or otherwise unable to perform duties of office, the President in such case can appoint Judge of the court to discharge the duties of office.

9. **Revisory Jurisdiction:** The Supreme Court under Art. 137 is empowered to review any

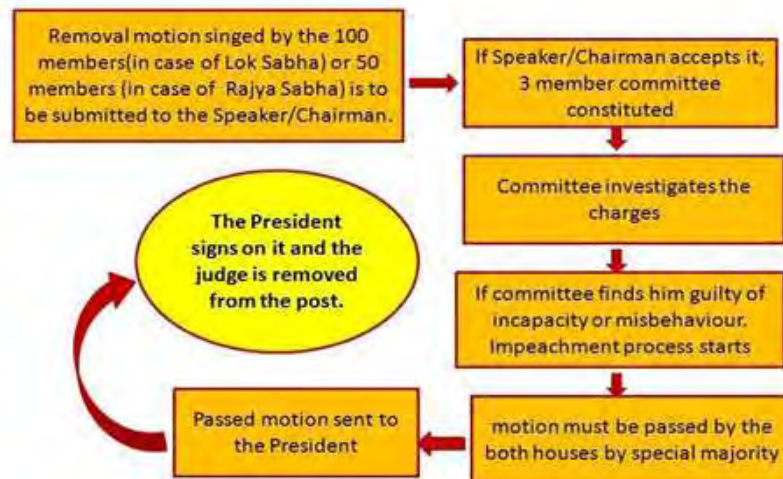
judgement or order made by it with a view to removing any mistake or error that might have crept in the judgement or order.

10. **Supreme Court as a Court of Record:** The Supreme Court is a court of record as its decisions are of evidentiary value and cannot be questioned in any court.

Removal of Supreme Court Judge:

A judge of Supreme Court can be removed only from the office by the President on the basis of a resolution passed by both the Houses of parliament with a majority of the total membership and a majority of not less than two-thirds of the members present and voting in each house, on the grounds of proved misbehavior or incapacity of the judge in question. Hence, a democratic country like India needs a judiciary because democratic values tend to lose their prominence without proper checks and balances.

How the judge of the Supreme Court be removed?



A judge may be removed from office through a motion adopted by Parliament on grounds of 'proven misbehaviour or incapacity'. While the Constitution does not use the word 'impeachment', it is colloquially used to refer to the proceedings under Article 124 (for the removal of a Supreme Court judge) and Article 218 (for the removal of a High Court judge). The Constitution provides that a judge can be removed only by an order of the President, based on a motion passed by both Houses of Parliament. The procedure for removal of judges is elaborated in the Judges Inquiry Act, 1968. The Act sets out the following steps for removal from office:

- Under the Act, an impeachment motion may originate in either House of Parliament. To initiate proceedings: (i) at least 100 members of Lok Sabha may give a signed notice to the Speaker, or (ii) at least 50 members of Rajya Sabha may give a signed notice to the Chairman. The Speaker or Chairman may consult individuals and examine relevant material related to the notice. Based on this, he or she may decide to either admit the motion or refuse to admit it.
- If the motion is admitted, the Speaker or Chairman (who receives it) will constitute a three-member committee to investigate the complaint. It will comprise: (i) a Supreme

Court judge; (ii) Chief Justice of a High Court; and (iii) a distinguished jurist. The committee will frame charges based on which the investigation will be conducted. A copy of the charges will be forwarded to the judge who can present a written defence.

- After concluding its investigation, the Committee will submit its report to the Speaker or Chairman, who will then lay the report before the relevant House of Parliament. If the report records a finding of misbehaviour or incapacity, the motion for removal will be taken up for consideration and debated.
- The motion for removal is required to be adopted by each House of Parliament by:
 - (i) a majority of the total membership of that House; and (ii) a majority of at least two-thirds of the members of that House present and voting. If the motion is adopted by this majority, the motion will be sent to the other House for adoption.
- Once the motion is adopted in both Houses, it is sent to the President, who will issue an order for the removal of the judge.

Past instances of attempted removal

Given the procedure involved, it is not surprising that no judge has been removed till date in independent India. So far, six judges (excluding Justice Misra) have faced attempts to have them removed from office.

Justice **V Ramaswami**, then Chief Justice of the Punjab and Haryana High Court, has the dubious honour of being the first judge to have impeachment proceedings initiated against him in 1991. Although the Inquiry Committee had found Justice Ramaswami guilty on 11 out of 14 charges, the impeachment motion failed on account of insufficient votes at the penultimate stage.

Proceedings initiated against Sikkim High Court Judge, **PD Dinakaran** in 2011, for alleged judicial misconduct met with success up to the point of the constitution of an Inquiry Committee. However, the removal was halted following Justice Dinakaran's resignation, on grounds of *lack of faith and confidence* in the impartiality of the Inquiry Committee.

The furthest impeachment proceedings have been taken forward was against Justice **Soumitra Sen** of the Calcutta High Court, for cited misappropriation of public funds. Following the Inquiry Committee's finding that Justice Sen was guilty, the impeachment motion found overwhelming support in the Rajya Sabha. However, in September 2011, Justice Sen resigned before the motion could be voted on in the Lok Sabha.

In 2015, Justice **JB Pardiwala** of the Gujarat High Court ran into trouble after he made certain 'casteist' remarks against reservation in a judgment. However, the motion for impeachment lost steam after the judge removed the controversial remarks from the judgment.

The same year, impeachment proceedings were initiated against Justice **SK Gangele** of the Madhya Pradesh High Court on allegations of sexual misconduct. However, the Inquiry Committee set up by the Rajya Sabha ended up giving a clean chit to the judge, after finding that the allegations were unfounded.

Two attempts to remove Justice **CV Nagarjuna Reddy** as a judge of the Andhra Pradesh and Telangana High Court in 2016 and 2017 also failed to materialise. The impeachment motion initiated on alleged grounds of casteist acts, saw loss of support before an Inquiry Committee could be constituted.

Tenure of Office –

A Supreme Court judge shall hold office until he attains the age of 65 years [article. 124(2)].

High Courts:

According to the Indian Constitution, Articles 214-231 deals with the provisions of High Courts in India. It provides for separate high courts for separate states but according to 7th constitutional amendment act the same high court can be the court for more than one state. At present Punjab Haryana and Chandigarh have a common High Court? Besides this, there is a common High Court for seven North-eastern states—Assam, Nagaland, Manipur, Tripura, Meghalaya, Arunachal Pradesh and Mizoram. Tamil Nadu and Pondicherry also have a common High Court.

Appointment of Judges in the High Courts

Qualifications

There are certain qualifications which have to be fulfilled in order to appoint a person as a judge in the High Courts. The qualifications regarding the appointment are provided in Article 217. According to the Article,

- The person appointed must be a citizen of India;
- The person appointed should have held a judicial office in the territory of India for at least ten years;
- The person appointed should have been an advocate in the High Court for at least ten years.

Procedure

Article 217 of the Indian Constitution provides the procedure regarding the appointment of judges in the High Courts. According to this Article,

- The judges of the High Courts can be appointed only by the warrant of the President and his seal;
- The appointment can be done only after consulting the Chief Justice of India and the Governor of the State;
- The appointment of Judges other than the Chief Justice can be done after consulting the Chief Justice of the High Court;
- The provisions under this article must be followed even while appointing the Additional Judges according to Article 224.
- The person can hold the office as a judge until he is sixty-two years old;
- The consultation must be very effective, that is all the necessary information about the person being recommended must be revealed and no information should be hidden in order to facilitate the appointment;
- The Judges appointed must take an oath before the Governor of the State according to Article 219. The oath must be according to the form that is provided for the purpose in the Third Schedule.

Salary for the Judges appointed

Article 221 of the Indian Constitution provides various provisions regarding the salaries of High Court Judges. The salaries shall be determined by the Parliament by law and until the provision on the behalf is made, the salaries provided in the Second schedule must be followed. The article also says that the judges are entitled to receive pension and allowances which is decided by the Parliament and it varies from time to time.

Procedure for appointment of additional and acting judges

The appointment of additional judges is governed by Article 224 of the Indian Constitution. The President has the power to appoint additional judges. The State Government should obtain the permission and sanction of Central Government in order to create a post for additional judges and for appointing additional judges. Article 224 also deals with the appointment of acting judges. They are appointed for a period of three months. The members of the bar are not preferred for the appointment.

Transfer of Judges

Transfer of Judges in the High Court

Article 222 of the Indian Constitution provides the transfer of Judges from one High Court to another. The same procedure is also followed even for the transfer of Chief Justice. The President has the power to transfer the Judges from one High Court to another. This transfer must be made only after consulting the Chief Justice. There is also a provision for providing a compensatory allowance to the Judges who are transferred in addition to their salary.

Landmark Judgments

S.P Gupta v Union of India

Several writ petitions were filed in the various High Courts regarding the appointment of High Court Judges as well as the Supreme Court judges in the form of public interest litigation. These petitions were transferred to the Supreme Court using suo moto cognizance. The main issue was to decide whose opinion in the collegium should be given primary importance while appointing the judges. The majority opinion was that “the opinions of Chief Justice of India and opinions of the Chief Justice of High Court were merely consultative and that power of appointment solely resides in the Central Government”.

The meaning of the word consultation was also discussed in the case. The word consultation mentioned in Article 124 and Article 217 in relation to all consultees and final decision in the matter was left to the Central executive. The majority took an extremely literal and positivistic view of Article 217. The central government even after this judgment followed the old practice and no judge was appointed without the name being cleared by the Chief Justice of India.

Supreme Court Advocates on record association v. Union of India

This case was a landmark judgment which constituted a bench of nine judges. This case is popularly known as the Second Judges case. The main question that was decided was whether the independence of the judiciary is the basic feature of the constitution. The Supreme Court Advocates-on-Record Association and Senior Advocates filed writ petitions before the Supreme Court which questioned the constitutionality of the 99th Amendment and the NJAC Act. The petitions accused that the NJAC violated the basic structure of the Constitution by compromising the judiciary's independence. The majority verdict the Chief Justice has the power to appoint and transfer Judges. The Chief Justice of India needs to consult only two senior-most judges during the time of appointment.

The first major issue which was in question was the meaning of the term “consultation” which is present in Article 124. The majority came to a conclusion that it means an “integrated, participatory and consultative process”. This leads to complete discharge of constitutional obligations on the part of constitutional functionaries. Various methods have

been used by the Judges in the case to establish that “consultation” means occurrence or primacy notably among which are” The Chief Justice of India as a ‘*Pater Familias*’ would be competent enough and has the best qualities to judge and differentiating the Indian constitution

with other constitutions, our constitution does not vest absolute discretion in the hands of the executive. Hence, the Chief Justice of India cannot be considered as an inferior position.

In re Special Reference 1 of 1998

This is another famous case which decided various regarding the appointment of Judges. The main issue that was to be decided was whether the expression “consultation with the Chief Justice of India” which are mentioned in articles 217(1) and 222(1) requires consultation with a many Judges when the opinion of the Chief Justice of India is formed or does the single individual opinion of the Chief Justice of India constitute a valid consultation that comes under the meaning of the term “consultation” which is mentioned in the above said articles. The case also decided various other issues like whether any recommendations made by the Chief Justice of India without following the rules and the process of consultation are binding upon the Government of India.

It was held in the case that the expression “consultation with the Chief justice of India” in Articles 217(1) and 222(1) of the Constitution of India requires consultation with a majority of Judges in the formation of the opinion of the Chief Justice of India. The individual and personal opinion of the Chief Justice of India do not constitute a valid “consultation” which comes under the meaning of the term in the said Articles.

Constitution and composition of High courts

Every high court consists of a Chief Justice and a number of judges, who are determined by the President from time to time. Article 217 deals with the appointment of judges and states that every judge of high court shall be appointed by the President by warrant under his hand and seal after consultation with the Chief Justice of India, the Governor of the state.

Jurisdiction and powers of High Court

The powers and jurisdiction of High Court can be classified under following heads:

1) **Original Jurisdiction-** it means that applicant can directly go to High Court and not by means of appeals. This power is used in the following matters –

- Disputes arising out of relating to members of Parliament and state legislative assembly
- Relating to marriage, law, admiralty divorce, contempt of court etc
- Enforcement of fundamental rights (Supreme Court also has this power)
- Cases transferred from other court to itself which involves a question of law.

2) **Writ Jurisdiction-** Article 226 states that High Court shall have power throughout the territories in relation to which it exercises jurisdiction to issue to any person or authority including in appropriate cases, any government, within those territories directions, orders, or writs.

3) Appellate Jurisdiction-

It is said that the high court is the primary court of appeal i.e. it has power to hear the appeals against the judgment of the subordinate courts within its territories. This power can be classified in to 2 categories-Civil jurisdiction and Criminal jurisdiction

In civil cases its jurisdiction includes to the orders and judgments of the district courts, additional district courts and other subordinate courts.

In criminal cases its jurisdiction includes judgments relating to sessions courts and additional sessions court. These cases should be involving imprisonment for more than 7 years, confirmation of any death sentence awarded by session court before execution

4) Power of Superintendence –

The High Court has this power over all courts and tribunals except those dealing with the armed forces functioning in the state. Hence in the exercise of this power it may –

- Call for return from such courts
- May issue general rules and prescribe forms for regulating the practice and proceedings of such courts
- Prescribe the form in which books and accounts are being kept by the officers of any court
- Settle fees payable to the sheriff clerks, officers and legal practitioners

The constitution does not place any restriction on this power of superintendence over the subordinate courts, it is not only by means of appeal by the person, it can be suo motto. It is of the nature of revision as it verifies the earlier judgments. In this regard it is considered as a special function as the Supreme Court has no similar power vis a vis the High Court.

5) Control over Subordinate Courts –

This is an extension of the above supervisory and appellate jurisdiction. It states that the High Court can withdraw a case pending before any subordinate court, if it involves the substantial question of law. The case can be disposed of itself or solve the question of law and return back to the same court. In the second case the opinion tendered by High court would be binding on the subordinate court. It also deals with matters pertaining to posting promotion, grant of leave, transfer and discipline of the members there in. In this regard it appoints officers and servants to be made by Chief Justice or such other judge of High Court as the Chief Justice may direct.

6) **Court of Record** – It involves recording of judgments, proceedings and acts of high courts to be recorded for the perpetual memory. These records cannot be further questioned in any court. Based on this record it has power to punish for the contempt of court either with simple imprisonment or with fine or both.

7) Judicial Review –

This power of High Court includes the power to examine the constitutionality of legislative and executive orders of both central and state government. It is to be noted that the word judicial review is nowhere mentioned in our constitution but the Article 13 and 226 explicitly provide High Court with this power.

8) Extension of jurisdiction of High Court to Union Territories –

Parliament by law may extend the jurisdiction of a High Court to or exclude the jurisdiction of a high court from any union territory.

Procedure for removal of Judges:

The judge's enquiry act governs the removal or impeachment of judges of High Court. Hence the grounds for removal are:

- Proved misbehaviour
- Incapacity

He is removed by the President as per the removal order passed by each house of the parliament by a special majority i.e. a majority of the total membership of the house and a majority of not less than two thirds of members present and voting. A detailed procedure followed is as follows: (The procedure is similar as the Removal of the Supreme Court Judges)

1. The initial removal motion to be signed by 100 members in Lok Sabha or by 50 members of Rajya Sabha and be presented to the speaker/ chairman of the house.
2. The speaker has the option of either accepting or rejecting the motion
3. If it is accepted a committee would be constituted to investigate the matter

4. The committee so constituted consists of chief justice or judge of Supreme Court, chief justice of high court and a distinguished jurist.
5. If the committee ascertains the guilty of the judge then the houses take up the issue.
6. If the motion is passed in each house of the parliament by a special majority then the it is later presented to the President for his assent.
7. The President then passes order for removal of judge. The judge is considered removed from that day. (In fact no judge has been removed till now)

Transfer of a judge from one high court to another (Article 222) – according to it the President may after consultation with the chief justice of India transfer a judge from one High Court to any High Court. Also when a judge has been or is so transferred he shall during the period he serves, after the commencement of the constitution act as a judge of the other high court, so shall be entitled to receive in addition to his salary such compensatory allowance as may be determined by Parliament by law and until so determined such compensatory allowance as the President may by order fix.

Later on in 1977 in K Ashok Reddy case ruled that there requires judicial review in case of arbitrary transfer of judges. Hence as to locus standi only the judge who is transferred can challenge it.

Appointment of acting Chief Justice (Article 223) - when the office of Chief Justice of a High Court is vacant or when any such Chief Justice by reason of absence or otherwise, unable to perform the duties of his office, the duties of the office shall be performed by such one of the other Judges of the court as the President may appoint for the purposes.

However, appointments of persons other than district judges to the judicial service of a state shall be made by the Governor of the state in accordance with rules made by him after consultation with the state public service commission and with the high court exercising jurisdiction in relation to such state.

Independence of Judiciary:

An independent judiciary is the sine qua non of a vibrant democratic system. Only an impartial and independent judiciary can stand as a bulwark for the protection of the rights of the individuals and mete out even handed justice without fear or favour. The judiciary is the protector of the constitution and, as such, it may have to strike down executive, administrative and legislative acts of the centre and the states. For Rule of law to prevail, judicial independence is of prime necessity. The independence of the judiciary is normally assured through the Constitution but it may also be assured through legislations, conventions and other suitable norms and practices. The constitutions or the foundational laws on judiciary are however, only the starting point in the process of securing judicial independence. Ultimately the independence of the judiciary depends on the totality of a favorable environment created and backed by all state organs including the judiciary and the public opinion. The independence of judiciary also needs to be constantly guarded against the unexpected events and the changing social, political, economic conditions; it is too fragile to be left unguarded. In India, the question of independence of the judiciary has been a subject of heated national debate over the last many years. It has exercised the minds of legislators, jurists, politicians and the laymen. Both the supporters and the opponents have cogent arguments in support of their views. This question assumes great importance whenever the Supreme Court holds a particular Act or particular Clause of an Act passed by Parliament ultravires of the Constitution.

Meaning of Independence of Judiciary:

The independence of the judiciary is not a new concept but its meaning is still imprecise. The starting and the central point of the concept is apparently the doctrine of the separation of powers.⁸ Therefore, primarily it means the independence of the judiciary from the executive and the legislature. But that amounts to only the independence of the judiciary as an institution from the other two institutions of the state without regard to the independence of judges in the exercise of their functions as judges. In that case it does not achieve much. The independence of the judiciary does not mean just the creation of an autonomous institution free from the control and influence of the executive and the legislature. The underlying purpose of the independence of the judiciary is that judges must be able to decide a dispute before them according to law, uninfluenced by any other factor. For that reason the independence of the judiciary is the independence of each and every judge. But whether such independence will be ensured to the judge only as a member of an institution or irrespective of it is one of the important considerations in determining and understanding the meaning of the Independence of the judiciary.

Constitutional Provision:

The Constitution of India is the fundamental law of the land from which all other laws derive their authority and with which they must conform. All powers of the state and its different organs have their source in it and must be exercised subject to the conditions and limitation laid down in it. The constitution provides for the parliamentary form of government which lacks strict separation between the executive and the legislature but maintains clear separation between them and the judiciary. The Indian Constitution specifically directs the state "to separate the judiciary from the executive in the public services of the State. The Supreme Court has used this provision in support of separation between the judiciary and the other two branches of the state at all levels, from the lowest court to the Supreme Court. Although the nature of the Indian Constitution-whether it is federal or unitary-is doubtful, basically it provides for a federal structure of government consisting of the Union and the States. The Union and the States have their distinct powers and organs of governance given in the constitution. While the Union and States have separate legislatures and executives, they do not have a separate judiciary." The judiciary has a single pyramidal structure with the lower or subordinate courts at the bottom, the High Courts in the middle, and the Supreme Court at the top. For funding and some administrative purposes, the subordinate courts are subject to regulation by the respective States, but they are basically under the supervision of the High Courts. The High Courts are basically under the regulative powers of the Union, subject to some involvement of the States in the appointment of judges and other staff and in the finances. The Supreme Court is exclusively under the regulative powers of the Union. Subject to territorial limitations, all courts are competent to entertain and decide disputes both under the Union and the State laws. The unitary character of the judiciary is not an accident but rather a conscious and deliberate act of the constitution makers for whom a single integrated judiciary and uniformity of law were essential for the maintenance of the unity of the country and of uniform standards of judicial behavior and independence. The members of the constituent assembly were very much concerned with the question of independence of judiciary and accordingly made several provisions to ensure this end. The supreme court has itself laid emphasis on the independence of judiciary from time to time. As the court has observed in *A.C. Thirumala Vs High Court Of Himachal Pradesh* - The constitutional scheme aims at securing an independent judiciary which is the bulwark of democracy.

Objective of independence of judiciary

Independence of Judiciary is sine qua non of democracy. In a democratic polity, the supreme power of state is shared among the three principal organs constitutional functionaries namely the legislature and executive. Indeed it is the role of the Judiciary to carry out the constitutional message and it is its responsibility to keep a vigilant watch over the functioning of democracy in accordance with the dictates, directives, and imperative commands of the constitution by checking excessive authority of other constitutional functionaries beyond the ken of constitution. So the Judiciary has to act as the sentinel sine qua vive. Our Constitution does not strictly adhere to the doctrine of separation of powers but it does provide for distribution of power to ensure that one organ of the govt. does not trench on the constitutional powers of other organs. The distribution of powers concept assumes the existence of judicial system free from external as well as internal pressures. Under our constitution the Judiciary has been assigned the onerous task of safeguarding the fundamental rights of our citizens and upholding the Rule of Law. Since the courts are entrusted the duty to uphold the constitution and the laws, it very often comes in conflict with the state when it tries to enforce orders by exacting obedience. Therefore, the need for an independent and impartial Judiciary manned by persons of sterling quality and character, underling courage and determination and resolution impartiality and independence who would dispense justice without fear or fervor, ill will or affection. Justice without fear or fervor, ill will or affection, is the cardinal creed of our constitution and a solemn assurance of every Judge to the people of this great country. Secondly, the Judiciary, which is an equal branch of the state, to transform the status quo into a new human order in which justice, social, economic and political will inform all institutions of national life and there will be equality of status and opportunity for all. The Judiciary has therefore a socio- economic distinction and creative function. It has, to use the words of Granville Austin to become an arm of the Socio-economic revolution and perform an active role calculated to bring social justice within the reach of common man. Approach to judicial function is entirely different for a society pulsating with needs and urges of gender justice, worker justice minorities justice and equal justice between chronic unequal. Where the contest is between those who are socially or economically unequal, the judicial process may prove disastrous from the point of view of social justice, if the Judge adopts a merely passive or negative role and does not adopt a proactive and creative approach. The Judiciary cannot remain a mere bystander or spectator but it must become an active participant in the judicial process ready to use law in the service of social justice through a proactive goal oriented approach. But this cannot be achieved unless we have judicial cadres who share the fighting faith of the constitution and are imbued with constitutional values. Constitutional Provision about Independence of Judiciary in India: The constitution of India adopts diverse devices to ensure the independence of the judiciary in keeping with both the doctrines of constitutional and Parliamentary sovereignty. Elaborated provision are in place for ensuring the independent position of the Judges of the Supreme Court and the High Courts. Firstly, the judges of the Supreme Court and the High Courts have to take an oath before entering office that they will faithfully perform their duties without fear, favour, affection, ill-will, and defend the constitution of India and the laws. Recognition of the doctrine of constitutional sovereignty is implicit in this oath. Secondly, the process of appointment of judges also ensures the independence of judiciary in India. The judges of the Supreme Court and the High Courts are appointed by the President. The constitution of India has made it obligatory on the President to

make the appointments in consultation with the highest judicial authorities. He of course takes advice of the Cabinet. The constitution also prescribes necessary qualifications for such appointments. The constitution tries to make the appointments unbiased by political considerations. Thirdly, the Constitution provides for the security of tenure of Judges. The judges of the Supreme Court and the High Court's serve "during good behavior" and not during the pleasure of the President, as is the case with other high Government officials. They cannot be arbitrarily removed by the President. They may be removed from office only through impeachment. A Judge can be removed on the ground of proved misbehavior or incapacity on a report by both Houses of Parliament supported by a special majority. Fourthly, their salaries and allowances are charged upon the Consolidated Fund of India. Further, the salaries and allowances of Judges of Supreme court and High courts cannot be reduced during their tenure, except during a financial emergency under Article 360 of the constitution. Fifthly, the activities of the Judges cannot be discussed by the executive or the legislature, except in case of removal of them. Sixth, the retirement age is 65 years for Supreme court judges and 62 years for High court judges. Such long tenure enable the judges to function impartially and independently. Seventh, a retired Supreme court judge cannot practice or engage in legal practice in any court in India. However, a retired High court judge can practice law in a state other than the state in which he served as a High Court judge. These restrictions ensure that a retired judge is not able to influence the decision of the courts. The hierarchy of judicial system in India plays an important role in maintaining the independence of judiciary. Supreme Court is the highest court for justice. Then, there are High Court and District Courts in every states. Then, there are People's courts known as Lok Adalats. If no decision is reached at these Lok Adalats, then the cases move to courts.

The constitution provides for a judiciary, which is independent. Independence of judiciary is important for the purpose of fair justice. There should be no interference by the legislature or the executive, in the proceedings of the judiciary so that it may take a judgment that seems reasonably fair. In case of intervention, there may be an element of bias on the part of the judges in taking a fair decision. It is difficult to suggest any other way to make the Indian courts more self reliant and keep them away from the influence of the other two organs.

Judicial Accountability:

"Ironically the Higher Judiciary in India has powers of control over every organ under the Constitution but there exists no effective method of disciplining its own members."

The Preamble to our Constitution declares India is a 'Democratic' State. This broadly means that we have a government by the people, of the people and for the people'. It follows from this principle that, the Government should be accountable for all its acts or omissions to those for whom it exists.

The third branch of the government- the judiciary. The power that Judiciary enjoys, the role that it plays in our lives and the onerous task that it performs is beyond comprehension. Infact, it would be no exaggeration to say that of the three branches of the Government, Judiciary is perhaps of the greatest significance to the people, it being closest to them in the sense that anybody (even an ordinary citizen) can approach the Judiciary when he has any grievance.

Judicial Accountability can be defined as the costs that a judge expects to incur in case his/her behavior and/or his/her decisions deviate too much from a generally recognized standard, in this case referring to the letter of the law.

Judicial independence was not intended to be a shield from public scrutiny. Judicial independence is not only a necessary condition for the impartiality of judges, it can also endanger it. Higher judiciary in our country is the only institution that is virtually not accountable and at the same time enjoys exceptional constitutional protection and formidable weaponry such as contempt of court to silence the critics. Accountability of the judiciary in respect of its judicial functions and orders is safeguarded by provisions for appeal, reversion and review of orders. But there is no mechanism for accountability for serious judicial misconduct, for disciplining errant judges.

JUDICIAL ACCOUNTABILITY: JUDGING THE JUDGES

Realizing the important role that judiciary plays, and the possibility of misuse of the power conferred, the Constitution-makers primarily made two provisions (those relating to the appointment and removal of judges) which ensured that Legislature and the Executive, the other two branches of the government (which are directly or indirectly responsible to the people) had some kind of control over the Judiciary. Here it would be interesting to mention the following cases

1st phase- the judges case one: S.P. Gupta v Union of India – the details of the case has already been discussed above, Please refer

2nd phase- the judges case two: Supreme Court Advocates on Record Association v Union of India – the details of the case has already been discussed above, please refer

Deliberating on the issue, involved in the Supreme Court Advocates on Record Association v Union of India, the Court pointed out that this provision of ‘consultation’ with the Chief Justice was introduced because of the realization that the Chief Justice is best equipped to know and assess the worth of the candidate and his suitability for appointment.

Accordingly, the Court has ruled that “in the choice of a candidate suitable for appointment, the opinion of the Chief Justice of India should have the greatest weight.....the selection should be based on a participatory consultative process in which the Executive has the power to act as a mere check on the power of the Chief Justice

The Judiciary has for all practical purposes had become its own appointing authority. The Supreme Court replaced the Executive primacy with that of the CJI, which in effect has done away with the role of the Executive. The Collegium that decides the matter lacks transparency and is likely to be considered a cabal. Here the obvious question that arises is, in the absence of substantially any role of any other body, who are the CJI and other members of the Judiciary answerable to? Consumers of justice being people, whether the Judiciary is in any way answerable to the people? The Majority in the Second Judges case tried to answer it-“The CJI and the Chief Justice of the High Court, being responsible to the functioning of the Courts, have to face the consequence of any unsuitable appointment which gives rise to the criticism. Similarly, the Judges of the Supreme Court and the High Courts, whose participation are involved in the functioning of the Courts and in the selection process bear the consequences and become accountable.”

The researcher submits that this reasoning is not only insufficient and incomplete but also unsatisfactory. Besides, the little that it says in support of its stand, the argument itself seems to be paradoxical if we look at the reality. The Judiciary has taken a rather too strict a stand against the writers who have criticized the judges or their judgments (the Contempt of Court Act

1971 punishes the scandalizing of the Court. The Supreme Court has held that Fundamental Right of the citizens to of free speech and expression has not abolished the offense of scandalizing the Court). The symbolic punishment given to Arundhati Roy and the more recent controversy surrounding Sabarwal J. and the subsequent action taken by the Delhi High Court against the “erring” editors of a leading local newspaper are points in case.

Now the 2nd major area of focus is what action can be taken if a judge misuses or abuses his power, acts with negligence or contrary to the interest of the people.

In this regard the Constitution has laid down only one provision- Article 124 whereby it lays down that a judge can be removed from his office by following an elaborate procedure, on the ground of ‘proved misbehavior or incapacity.’ The points to be pondered over here are:

This is the only provision on what action can be taken against an errant Judge. The action that I envisaged here is a drastic one, that of removal from office.

The procedure mentioned here being so elaborate (being analogous to the impeachment) signifies that ‘proved misbehavior or incapacity’ should be of a very high degree.

Not only does this provision lay down too complex a procedure, but it also fails to take care of the deviant acts not amounting to ‘misbehavior or incapacity’. Added to this Ramaswami J. controversy is a case in point as it reflects the deep anomalies and loopholes with which this provision is ridden.

Hence while the existing provision is insufficient in so far as erroneous acts not amounting to ‘misbehavior or incapacity’ have not been taken care of, the remedy that does exist is rendered useless by the loopholes that have been exploited.

Thus (practically) answerable to no one and for all intent and purposes having no efficient mechanism to discipline the judges, the Judiciary has become its own master. At least theoretically it can be said that this will lead to abuse of power.

But having said this do we really urgently need to reform the legal provisions relating to Judiciary? Do the apprehensions have any real basis? Several instances will show that these are not mere apprehensions.

In 1958 the Law Commission of India in its 14th Report on the Reform of Judicial Administration submitted that-“It is widely felt that communal and regional considerations have prevailed in making the selection of judges.....best talent among the judges of the High Courts has not always found its way to the Supreme Court...We are concerned that the views expressed to us have show a well founded and acute public satisfaction at these appointments”. While this report was compiled at a time when the Executive had a significant role to play in the judicial appointments, it is submitted that the position has not changed much (as will be clear from the illustrations that follow) after the Second Judges Case.

In 1964, Committee on Prevention of Corruption remarked that it had been informed by Vigilance and Special Police Establishment, that the corruption is rampant at the lower levels and in some place, it has spread to the higher ranks.

Then we have the 1993 case of Ramaswami J. who was sought to be removed from office and who after having been found guilty of misbehavior in misappropriating and misusing public property, by a Committee constituted under the Judges’ Inquiry Act 1968, still managed to go scot free because the motion in Parliament of his removal failed as the ruling majority abstained from voting for his removal.

Again the charges of misconduct against two sitting judges of the Supreme Court were made in 1997 and 2000. In the first case, the judge in question was due by seniority to be appointed as

the Chief Justice and an in house committee of the Supreme Court Judges is reported to have considered the charges. But the judge was recommended for appointment as the CJI by the outgoing CJI. In the second case which related to a CJI though considerable publicity was given to the charges, no action was taken either within or outside the Court.

In the absence of an effective remedy for removal of a judge, the Bar of the Bombay High Court resorted to the unconventional method of disciplining by passing the resolutions against them to resign and requesting the Chief Justice of the High Court not to assign work to them.

On another occasion, the Chief Justice of the Bombay High Court was charged with misconduct by the Bar. Going by the earlier experiences the Bar had no other option but to resort to extra-constitutional way out. They made an application to the CJI to requesting the CJI to seek his resignation. The Chief Justice of that High Court under the advice of the CJI tendered the resignation.

Judicial accountability has today become the catch word all over the world. The judges can no longer oppose calls for greater accountability on the ground that it will impinge upon their independence. Independence and accountability must be sufficiently balanced so as to strengthen judicial integrity for effective judicial impartiality.

Discussion of the conduct of the judges in the legislature:

“In accordance with the Universal Declaration of Human Rights, members of the judiciary are entitled to freedom of expression, belief, association and assembly; provided, however, that in exercising such rights, judges shall always conduct themselves in such a manner as to preserve the dignity of their office and the impartiality and independence of the judiciary.” Neither in Parliament nor in a State Legislature a discussion can take place with respect to the conduct of the Supreme Court in discharge of his duties.

Articles 121 and 211 provide immunity to the members of Higher Judiciary, with respect to the conduct of the Judges in the discharge of their duties. Article 211 amounts to an absolute constitutional prohibition against any decision in the Legislature of a State in respect of the judicial conduct of the Supreme Court or of the High Court. Article 121 on the other hand provides for a general rule that no discussion shall take place in the Parliament with respect to the conduct of any judge of the Supreme Court or of the High Court in the discharge of his duties except upon a motion for presenting an address to the President praying for the removal of the judge under the circumstances stated in the Constitution. Thus, reading Article 121 and 211 together, it is clear that the judicial conduct of a judge can not be discussed in the State Legislature. It can be in Parliament only, upon a motion for presenting an address to the President praying for the removal of the Judge. The Constitutional makers attached so much importance to the independence of judiciary that they thought necessary to place them beyond any controversy except in the manner provided in Article 121.

The fact that Article 211 appears under a topic dealing with “Procedure Generally” cannot mean that the prohibition prescribed by it is not mandatory. In trying to appreciate the full significance of this provision, Article 121 and 211 should be read together. It is true that Article 194(2) in terms provide for immunity of action in any court in respect of a speech made by a member or a vote given by him in the Legislative Assembly. Undoubtedly, the Speaker would not permit a member to contravene Article 211, but, if inadvertently or otherwise, a speech is made within the legislature which contravenes Article 211, the Constitution-makers have given protection to such speech from any action in any court. The House itself may and would, no doubt, take action against the member.

Removal of a judge:

“A charge or complaint made against a judge in his/her judicial and professional capacity shall be processed expeditiously and fairly under an appropriate procedure. The judge shall have the right to a fair hearing. The examination of the matter at its initial stage shall be kept confidential, unless otherwise requested by the judge.”

“Judges shall be subject to suspension or removal only for reasons of incapacity or behavior that renders them unfit to discharge their duties.”

“All disciplinary, suspension or removal proceedings shall be determined in accordance with established standards of judicial conduct.”

“Decisions in disciplinary, suspension or removal proceedings should be subject to an independent review. This principle may not apply to the decisions of the highest court and those of the legislature in impeachment or similar proceedings.”

The manner of removal of a Judge, as brought out and made clear by Constitutional provisions, SC interpretations and the Judges Inquiry Act, 1968, and Judges Inquiry Rules, 1969, stands summed up in Krishna Swami v. UOI as follows, “Every judge of the Supreme Court & High Court on his appointment is irremovable from office during his tenure except in the manner provided in Cls. (4) & (5) of Art. 124. The law made by the Parliament under Art. 124(5), namely the Judges Inquiry Act, 1968, (and Judges Inquiry Rules, 1969 framed there under) are to be read along with Article 124(4), to find out the constitutional scheme....for the removal of a judge. The law so made under Art. 124(5), provides that any accusation against a sitting Judge to initiate the process of his removal has to be by not less than minimum number of members of the Parliament specified in the Act, all other method being excluded. On initiation of the process, the Speaker/Chairman has to decide whether the accusation requires investigation. If he chooses not to act, the matter ends there.....otherwise on a consideration of the material available and after consulting such persons as he thinks fit, forms opinion that a prima facie case is made out, he constitutes a Committee in accordance with s.3(2) of the Act. If thisCommittee..... records a finding that a Judge is not guilty, the process ends there.....If the finding of the Inquiry Committee is that the Judge is guilty, then the Parliament considers the motion for removal of the Judge along with the Committee’s Report and other available materials including the cause, if any, shown by the Judge concerned against his removal for which he has to be given an opportunity after the submission of the report to the Speaker/Chairman under s. 4(2) of the Act.....If the Parliament does not adopt a motion for removal of the Judge, the process ends there...If the motion is adopted by the requisite majority of the Parliament, culminating in the order for removal of the Judge by the President of India under Art.124(4), then only the Judge shall have remedy of Judicial Review available on the permissible grounds against the order of removal....”

In matter of appointment, a lot has been said about the dangers of substituting absolute Executive authority with absolute ‘Chief Justice Authority’. It is important to have a more important broad based appointing body in the legal system, incorporating undoubtedly the higher judicial functionaries but also giving representation to some outside elements from the categories of eminent jurists, academics and both the ruling executive and the opposition. Moreover this process would certainly be more transparent and open. In such broad based appointing body at least two leading members of the bar must find representation. The manner of selection/ nomination of those persons should be carefully thought out to ensure objectivity and absence of conflict of interest.

The second crucial aspect which cannot be separated from the first is the vital necessity of a workable mechanism for regulating judicial conduct, taking corrective action and if necessary disciplining the errant judges shot of and up to removal.

Unless one puts in place a reasonable, internal, fair, expeditious and effective in house regulatory regime short of impeachment, allegations against judges will always be on the rise. So any new step towards revamping the Judicial System should aim at balancing in the best possible manner judicial independence and judicial accountability.

Unit-III

Topics Covered

Centre State Relations - Legislative, Administrative and Financial Relations - Cooperation and Coordination between the Centre and States - Judicial Interpretation of Centre-State Relations - Doctrines evolved by Judiciary

Centre State Legislative Relations

Articles 245 to 255 in Part XI of the Constitution deal with the legislative relations between the Centre and the State.

Extent of laws made by Parliament and by the Legislatures of States

The Parliament can make laws for the whole or any part of the territory of India. Territory of India includes the states, UTs and any other area for the time being included in the territory of India. Whereas, the state legislature can make laws for whole or any part of state.

The Parliament can alone make 'extra territorial legislation' thus the laws of the Parliament are applicable to the Indian citizens and their property in any part of the world.

Subject-matter of laws made by Parliament and by the Legislation of States

The Constitution divides legislative authority between the Union and the States in three lists- the Union List, the State List and the Concurrent List. **The Union list consists of 100 items.** The Union Parliament has exclusive authority to frame laws on subjects enumerated in the list. These include foreign affairs, defence, armed forces, communications, posts and telegraph, foreign trade etc.

The State list consists of 61 subjects on which ordinarily the States alone can make laws. These include public order, police, administration of justice, prison, local governments, agriculture etc.

The Concurrent list comprises of 52 items including criminal and civil procedure, marriage and divorce, economic and special planning trade unions, electricity, newspapers, books, education, population control and family planning etc. Both the Parliament and the State legislatures can make laws on subjects given in the Concurrent list, but the Centre has a prior and supreme claim to legislate on current subjects. In case of conflict between the law of the State and Union law on a subject in the Concurrent list, the law of the Parliament prevails.

Residuary powers of legislation

The constitution also vests the residuary powers (subjects not enumerated in any of the three Lists) with the Union Parliament. The residuary powers have been granted to the Union contrary to the convention in other federations of the world, where the residuary powers are given to the States. However, in case of any conflict, whether a particular matter falls under the residuary power or not is to be decided by the court.

Parliament's Power to Legislate on State List

Though under ordinary circumstances the Central Government does not possess power to legislate on subjects enumerated in the State List, but under certain special conditions the Union Parliament can make laws even on these subjects.

a) In the National Interest (Art.249)

If the Rajya Sabha declares by a resolution supported by not less than 2/3 of its members present and voting, that it is necessary or expedient in the national interest that the Parliament should make laws with respect to any matter enumerated in the State List (Art.249). After such a resolution is passed, Parliament can make laws for the whole or any part of the territory of India. Such a resolution remains in force for a period of 1 year and can be further extended by one year by means of a subsequent resolution.

b) Under Proclamation of National Emergency (Art.250)

Parliament can legislate on the subjects mentioned in the State List when the Proclamation of National Emergency is in operation. However, the laws made by the Parliament under this provision shall cease to have effect on the expiration of a period of six months after the Proclamation has ceased to operate, except as respects things done or omitted to be done before the expiry of the said period.

c) By Agreement between States (Art. 252)

The Parliament can also legislate on a State subject if the legislatures of two or more states resolve that it is lawful of Parliament to make laws with respect to any matter enumerated in the State List relating to those State. Thereafter, any act passed by the Parliament shall apply to such states and to any other state which passes such a resolution. The Parliament also reserves the right to amend or repeal any such act.

d) To Implement Treaties (Art. 253)

The Parliament can make law for the whole or any part of the territory of India for implementing any treaty, international agreement or convention with any other country or countries or any decision made at any international conference, association or other body. Any law passed by the Parliament for this purpose cannot be invalidated on the ground that it relates to the subject mentioned in the State list.

e) Under Proclamation of President's Rule (Art.356)

The President can also authorize the Parliament to exercise the powers of the State legislature during the Proclamation of President's Rule due to breakdown of constitutional machinery in a state. But all such laws passed by the Parliament cease to operate six months after the Proclamation of President's Rule comes to an end.

Center's control over State Legislation

The Constitution empowers the centre to exercise control over the state's legislature in following ways:

1. The governor can reserve certain types of bills passed by the state legislature for the consideration of the President. The President enjoys absolute veto over them.
2. Bills on certain matters enumerated in the State List can be introduced in the state legislature only with the previous sanction of the President as imposing restrictions on freedom of trade and commerce.
3. The President can direct the states to reserve money bills and other financial bills passed by

the state legislature for his consideration during a financial emergency.

Doctrine of Territorial Nexus

Introduction

The term federalism means the division of powers between the centre and state. It is a very complex mechanism though it is the very purpose for which a federal state is formed includes the distribution of powers between the union and the centre. Their power is partitioned by the constitution so that they should their independence over the executive and legislative authority. As our constitution is of federal structure it establishes dual polity between the union and state. They are conferred with the sovereign powers which are to be used in a manner directed by the Constitution. Our constitution is of is the supreme law of the land provides the basic meaning of federalism that is the division of powers.

Territorial nexus

Under article 245 of the Indian constitution, it has been stated that:

1. Parliament has jurisdiction to make laws for extraterritorial operations or laws for the whole or any part of the country.
2. The state legislature has the jurisdiction to make laws for the whole or any part of the state.

Thus it can be said that both the union and the state have their own territorial jurisdiction to make laws.

Under article 246 it has been stated,

1. Parliament has the explicit power to make laws for the subject matters enumerated in the union list (list I of the 7th schedule)
2. The state has the power to make laws for the subject matter enumerated in the state list(list II of the 7th schedule)
3. Both the state and the union have the power to make laws for the subject matter enumerated in the concurrent list(list III of the 7th schedule)

Under article 245(2) of the Indian constitution, if any law is made by the parliament regarding the extraterritorial operations, no questions can be raised on its validity. Thus the validity of a legislation can't be questioned. In this case, a court is bound to enforce the laws made with regards to extra-territorial operations. This legislation can't be invalidated. Legislative relation between the centre and state

The legislative powers are distributed in two ways which are provisioned by the constitution.

- Distribution of legislative powers in respect of the territory
- With respect to the subject matters of the list under 7th schedule

Distribution of the legislative powers with respect to the territory

As enshrined under article 245(1) of the Indian constitution parliament can make laws for the whole or any part of the territory of India. Parliament also has extra-territorial jurisdiction for which it can make laws and these laws can't be invalidated on the grounds that they have no effect outside India.

In the case of **A.H. Wadia v. Income Tax Commissioner** it was held that a question of extraterritoriality of enactment can never be raised against a supreme legislative authority on

the grounds of questioning its validity. It may not comply with the rules of international law or while enforcing it practical difficulties may arise but they are subjected to questions of policy which is the concern of the national or domestic tribunal.

Theory of territorial nexus

In order to give effect to the laws made by a state for extraterritorial purpose, a nexus between the object and state must be shown. The state legislature has the jurisdiction to make laws within its territorial jurisdiction. Territorial nexus is one such exception which allows the state to make laws for extraterritorial operations if it shows that there exists a nexus between the object and the state.

Wallace Bros. And Co. Ltd. vs The Commissioner of Income Tax

In the instant case, a company which was registered and incorporated in also which also carried out its business in India through a sleeping partner. The firm made a staggering profit in that accounting year. The income tax authorities sought to levy a tax upon the company of the respondent. The income tax authority was challenged by the respondent, but it was held by the privy council that there existed the doctrine of territorial nexus and held the tax valid. It is said that the major part of that income was extracted from British India was the sufficient ground to establish a territorial nexus.

Territorial Nexus and the State Legislature

Our Constitution confers the power upon the state to make laws within its territorial jurisdiction Now a question on whether a law falls under the ambit of the state legislature enacting it. The state legislature is empowered to make laws for its own purpose. The doctrine of territorial nexus is only applicable when the following conditions are fulfilled. Those conditions are as follows;

1. The nexus must be legitimate.
2. The liability shall be related to the territorial connection.

These conditions are sufficient enough to show that the nexus was legitimate and the court would not question its validity. In several cases of the taxation law it has been held that the territorial limits of a state would not hamper the sale and purchase of the goods. Buying and selling of goods would be a reasonable ground to sustain the taxing power of the state. **Extra-**

Territorial Operations?

Parliament is conferred with the power to make laws within its territorial jurisdiction and also for extra-territorial purpose that has a legitimate nexus with India. Legislation or laws regarding this matter come under the ambit of the parliament as it has the power to do so. These laws can't be questioned on its validity. If the parliament enacts any law which doesn't establish any nexus with India will turn out to be ultra vires and would be considered as the laws made for a foreign land.

This can be concluded that if any law passed by the parliament has a real connection with India can't be deemed to held as invalid or unconstitutional. If such laws enacted by parliament establishes no nexus with India would be *ultra vires*.

Our constitution states that the legislative powers conferred upon the parliament in order to enact laws within the territorial jurisdiction as well as for the purpose may take the cognizance of the extraterritorial purpose and exercise the state powers or the collective powers Doctrine of public trust states that all the laws enacted by parliament with respect to extraterritorial operations shall be enacted for the purpose of safeguarding the welfare and security of India, which directly concludes that no laws shall be made for the extraterritorial operations if there is

no nexus of such law or legislation with India.

The role of territorial nexus in Indian Legislation

As it has been stated before in this article that **Article 245** of the Indian constitution states the extent to which the legislative powers are conferred in parliament and the state legislature in order to make laws with respect to the territory. Parliament has the power to make laws for the for which it has the jurisdiction. The jurisdiction of parliament extends to the whole or any part of India. They can also be enacted by the parliament for extraterritorial operations if there is sufficient nexus of the law with India. These laws cannot be questioned or held invalidated. However, all the laws must comply with the provisions of the Indian constitution.

The powers conferred in parliament are not absolute. Laws made by the parliament for Extraterritorial operations are for the purpose of operating outside the geographical limits of India. The state legislature doesn't have the power to make laws for extraterritorial operations. However, this limitation of the state legislature is subjected to one exception and that is territorial nexus. If it is established that there is sufficient connection with the object and the laws enacted by the state legislature will have an effect outside the territorial limits of the state.

The following circumstances are required in order to invoke the jurisdiction of territorial nexus-

- If there exist extraterritorial operations in a state
- If there is legitimate nexus between the object and the state. It should be clear that the object shall be situated outside the territorial limits of the state but it must have a territorial connection with the state.

State of Bombay vs R.M.D. Chamarbaugwala

In the instant case, the respondent who was not a resident of Bombay conducted a prize competition of a crossword puzzle through a newspaper which was printed and published in the Bangalore. This paper was widely published in Bombay to. For this competition depots were established so that the forms and fees can be collected. It attracted a lot of buyers for the ticket of that competition.

The state government then levy take over the respondents company for contesting a prize competition in the state. The respondent challenged the supreme court and a question was raised whether the tax can be levied upon a person who resides outside the territorial limits of the state. It was held by the supreme court that there was a sufficient territorial nexus and the legislature has the authority to tax the respondent for the revenue earned by his company through the prize competition.

Tata Iron and Steel Company vs. Bihar State Tax Act

The state of Bihar passed sales tax act for levying a tax in on the sales whether it took place within the territorial limits of the state or outside of that limit, it was also stated that the goods should be manufactured in the state. In the instant case, it was held that there was an established nexus between the object which was to be taxed and the law. These are the two essential elements that constitute the doctrine of territorial nexus.

State of Bihar v. Charusila Dasi

In the instant case, the state of Bihar passed a legislation which dealt with the motive to safeguard the properties relating to the Hindu religious trusts. This act consists of all the trusts within the territorial limits of Bihar. So the respondent Madea trust deed several of her properties in situated in Bihar and Calcutta, and the trust was inside the territorial limits of Bihar. Several questions were raised about the scope of this act.

It was held that the act passed by the state of Bihar could have the effect over the property

situated outside the territorial limits of Bihar keeping in mind that the trust must be situated within the limits of the state and there exist the sufficient nexus.

Shrikant Bhalchandra Karulkar v. State of Gujarat

The hon'ble supreme court in this instant case of ***Shrikant Bhalchandra Karulkar v. State of Gujarat*** held that the state legislature is conferred with the power to enact legislation for extra-territorial operations complying with the provisions enshrined under article 245 and 246. The laws made by the state legislature is applicable to a person and his acts within the territorial limits of a state is not considered as extra territorial.

Conclusion

It can be concluded that the legislative powers has been distributed in two folds between the centre and state. Federalism is a very complex mechanism though it is the very purpose for which a federal state is formed includes the distribution of powers between the union and the centre. Their power is partitioned by the constitution so that they should their independence over the executive and legislative authority.

As our constitution is of federal structure it establishes dual polity between the union and state. Parliament has the power to make laws for any or whole part of India as well is conferred with the power to make laws for extra territorial operations. However, a state legislature is not competent enough to make laws for the extraterritorial operations. However there is one exception which enables the state legislature to make laws for the extra territorial purposes if there exists a sufficient connection between the object and the state. It means that the object shall be located outside the territorial limits of the state and has a territorial connection with the state. The scope of territorial nexus is wide and can be applied outside the territorial limits of India. The doctrine of territorial nexus allows the effect of law out the territorial limits of a nation.

Doctrine of Pith and Substance

The basic purpose of this doctrine is to determine under which head of power or field i.e. under which list (given in the Seventh Schedule) a given piece of legislation falls.

Pith means 'true nature' or 'essence of something' and Substance means 'the most important or essential part of something'.

Doctrine of Pith and Substance says that where the question arises of determining whether a particular law relates to a particular subject (mentioned in one List or another), the court looks to the substance of the matter. Thus, if the substance falls within Union List, then the incidental encroachment by the law on the State List does not make it invalid.

This is essentially a Canadian Doctrine now firmly entrenched in the Indian Constitutional Jurisprudence.

This doctrine found its place first in the case of ***Cushing v. Dupey***. In this case the Privy Council evolved the doctrine, that for deciding whether an impugned legislation was intra vires, regard must be had to its pith and substance.

Need for the Doctrine of Pith and Substance in the Indian Context

The doctrine has been applied in India also to provide a degree of flexibility in the otherwise rigid scheme of distribution of powers. The reason for adoption of this doctrine is that if every legislation were to be declared invalid on the grounds that it encroached powers, the powers of

the legislature would be drastically circumscribed.

“It is settled law of interpretation that entries in the Seventh Schedule are not powers but fields of legislation. The legislature derives its power from Article 246 and other related articles of the Constitution. Therefore, the power to make the Amendment Act is derived not from the respective entries but under Article 246 of the Constitution.

The language of the respective entries should be given the widest scope of their meaning, fairly capable to meet the machinery of the Government settled by the Constitution. Each general word should extend to all ancillary or subsidiary matters which can fairly and reasonably be comprehended in it. When the vires of an enactment is impugned, there is an initial presumption of its constitutionality and if there is any difficulty in ascertaining the limits of the legislative power, the difficulty must be resolved, as far as possible in favour of the legislature putting the most liberal construction upon the legislative entry so that it may have the widest amplitude.”

Incidental or Ancillary Encroachment:

The case of **Prafulla Kumar Mukherjee v. The Bank of Commerce**, succinctly explained the situation in which a State Legislature dealing with any matter may incidentally affect any item in the Union List. The court held that whatever may be the ancillary or incidental effects of a Statute enacted by a State Legislature, such a matter must be attributed to the Appropriate List according to its true nature and character.

Thus, we see that if the encroachment by the State Legislature is only incidental in nature, it will not affect the Competence of the State Legislature to enact the law in question. Also, if the substance of the enactment falls within the Union List then the incidental encroachment by the enactment on the State List would not make it invalid.

However, the situation relating to Pith and Substance is a bit different with respect to the Concurrent List. If a Law covered by an entry in the State List made by the State Legislature contains a provision which directly and substantially relates to a matter enumerated in the Concurrent List and is repugnant to the provisions of any existing law with respect to that matter in the Concurrent List, then the repugnant provision in the State List may be void unless it can coexist and operate without repugnancy to the provisions of the existing law.

Important Supreme Court Judgments on the Doctrine of Pith and Substance

There are hundreds of judgments that have applied this doctrine to ascertain the true nature of a legislation. In the present post, I will discuss some of the prominent judgments of the Supreme Court of India that have resorted to this doctrine.

1. The State of Bombay And Another vs F.N. Balsara- This is the first important judgment of the Supreme Court that took recourse to the Doctrine of Pith and Substance. The court upheld the Doctrine of Pith and Substance and said that it is important to ascertain the true nature and character of a legislation for the purpose of determining the List under which it falls.

2. Mt. Atiqa Begam And Anr. v. Abdul Maghni Khan And Ors.– The court held that in order to decide whether the impugned Act falls under which entry, one has to ascertain the true nature and character of the enactment i.e. its ‘pith and substance’. The court further said that “it is the

result of this investigation, not the form alone which the statute may have assumed under the hand of the draughtsman, that will determine within which of the Legislative Lists the legislation falls and for this purpose the legislation must be scrutinized in its entirety”.

3. Zameer Ahmed Latifur Rehman Sheikh v. State of Maharashtra and Ors.— Pith and Substance has been beautifully explained in this case:

“This doctrine is applied when the legislative competence of the legislature with regard to a particular enactment is challenged with reference to the entries in various lists. If there is a challenge to the legislative competence, the courts will try to ascertain the pith and substance of such enactment on a scrutiny of the Act in question. In this process, it is necessary for the courts to go into and examine the true character of the enactment, its object, its scope and effect to find out whether the enactment in question is genuinely referable to a field of the legislation allotted to the respective legislature under the constitutional scheme.

This doctrine is an established principle of law in India recognized not only by this Court, but also by various High Courts.

Where a challenge is made to the constitutional validity of a particular State Act with reference to a subject mentioned in any entry in List I, the Court has to look to the substance of the State Act and on such analysis and examination, if it is found that in the pith and substance, it falls under an entry in the State List but there is only an incidental encroachment on any of the matters enumerated in the Union List, the State Act would not become invalid merely because there is incidental encroachment on any of the matters in the Union List.”

Centre State Administrative Relations (Article 256-263)

The framers of Indian Constitution made detailed provisions in the Constitution in regard to administrative relations between the Centre and State to ensure minimization of conflict between the two. They have been elaborated below:

a) Directives by the Union to the State governments: **Article 256** mentions that the **executive power of every state shall be so exercised as to ensure compliance with laws made by Parliament** and any existing laws, which apply in that state, and the executive power of the Union shall extend to the giving of such directions to a state as may appear to the Government of India to be necessary for that purpose.

This provision is looked upon with suspicion in many countries.

Dr. Ambedkar explained the aim of Article 256 through two important propositions:

“The first proposition is that generally the authority to execute laws, which are related to what is called the Concurrent field, whether the law is passed by the Central Legislature or is passed by the State Legislature shall ordinarily apply to the State.

The second proposition it lays down is that if, in any particular case, Parliament thinks that in passing a law, which relates to the Concurrent field, the execution ought to be retained by the Central Government, Parliament shall have the power to do so.”

This power of the Union extends to the limit of directing a State in a manner it feels essential for the purpose.

For instance, the Union can give directives to the State pertaining to the construction and maintenance of means of communication, declared to be of national or military importance, protection of railways within the State, the provisions of adequate facilities for instructions in mother tongue at the primary stage of education to children belonging to linguistic minority groups in the State and for the drawing up and execution of the specified schemes for the welfare of the Schedule Tribe in the State.

This is essential to ensure the implementation of Parliamentary laws throughout the country. Non-compliance of the directives might lead to a situation mentioned under Art.365 and then it shall be lawful for the President to hold that a situation has arisen in which the government of the State cannot be carried on in accordance with the provisions of the Constitution.

Thus, the Union can invoke **Article 356**, for the imposition of **President's rule** in the State and take over the administration of the State.

b) Delegation of Union functions to the States: Usually executive powers are divided on the basis of subjects in the lists, but under the constitutional provision of Article 258(1) the

President may, with the consent of the State government, entrust (either conditionally or unconditionally) to that government any of the executive functions of the Centre.

Under **Art 258(2)**, the Parliament is also entitled to use the state machinery for enforcement of the Union laws, and confer powers and entrust duties to the State. Under Art 258A, the State can also, with the consent of the Union government, confer administrative functions to the Union. In respect of matters in the Concurrent list, executive powers rest with the State, except when a constitutional provision or a Parliamentary law specifically confers it to the Centre.

c) All India Services: Besides the Central and State services, the Constitution under **Article 312** provides for the creation of an additional “**All-India Services**”, common to both the Union and States. The State has the authority to suspend the officials of All India Services, but the power of appointment and taking disciplinary action against them vests only with the President of India.

The idea of having an integrated well-knit All India Services to manage important and crucial sectors of administration in the country was incorporated in our Constitution. Their recruitment, training, promotion, disciplinary matters are determined by the Central government. A member of the Indian Administrative Service (IAS), on entry into the service is allotted a State, where he/she serves under a State government.

Though, it can be argued that the All India Services violate the principle of federalism, but such an arrangement, wherein a person belonging to the All India Service being responsible for administration of affairs, both at the Centre and States, brings cooperation in administration and helps to ensure uniformity of the administrative system throughout the country. Currently, there

are three All India Services, namely IAS, IPS and IFoS (the Indian Forest Service was created as the third All India Service in 1966 by Art.312).

d) Constitution of Joint Public Service Commission for two or more States: When two or more states, through a resolution to that effect, in their respective legislatures agree to have one such Commission, the Parliament may by law, provide for a Joint Commission.

There is also a provision in the Constitution, wherein on request by two or more States, the UPSC can assist those states in framing and operating schemes of joint recruitment to any service for which candidates with special qualifications are required.

e) Inter-State Council: India is a Union of States, wherein the Centre plays a prominent role, but at the same time is dependent on the States for the execution of its policies. The Constitution has provided for devices to bring about inter-governmental cooperation, effective consultations between the Centre and States so that all important national policies are arrived at through dialogue, discussion and consensus.

One such device is the setting up of the **Inter-State Council**. The President is given powers **under Article 263** of the Constitution to define the nature of duties of the Council. The Council is to inquire into and advise upon disputes, which may have arisen between the States.

In addition, it may investigate and discuss subjects of common interest between the Union and the States or between two or more States, in order to facilitate co-ordination of policy and action. The inter-state council was set up under Article 263 of the Constitution in 1990. The ISC has held 10 meetings so far and has taken several important decisions. Some of them are:

1. Time-bound clearance of bills referred for the President's consideration
2. Approved the Alternative Scheme of Devolution of Share in Central Taxes to States
3. Indiscrete use of Article 356 in the country

f) Inter-State river water dispute: **Article 262** states that the **Parliament may, by law, provide for the adjudication of any dispute or complaint with respect to the use, distribution or control of the waters of, or in, any inter-state river or river valley** and **it may by law provide that neither the Supreme Court, nor any other court shall exercise jurisdiction in respect of any such dispute.**

Apart from this, **Art.355 imposes duties on the Centre to protect every State against external aggression and internal disturbances** and to ensure that the Government of every State is carried on, in accordance with the provisions of the Constitution.

In case of **National Emergency (Art. 352)**, the Centre becomes entitled to give executive directions to a State on any matter.

Similarly, during **President Rule (Art. 356)**, the President can assume to himself the functions

of State government and the power vested in Governor or any other executive authority in the State.

During operation of **Financial Emergency (Art.360)**, the Centre can direct the States over certain financial matters and the President can give other necessary directions, including reduction in salary of persons serving in the State and the Judges of the High Court.

Centre State Financial Relations:

Indian Constitution has made elaborate provisions, relating to the distribution of the taxes as well as non-tax revenues and the power of borrowing, supplemented by provisions for grants-in-aid by the Union to the States.

Article 268 to 293 deals with the provisions of financial relations between Centre and States.

The Constitution divides the taxing powers between the Centre and the states as follows:

The Parliament has exclusive power to levy taxes on subjects enumerated in the Union List, the state legislature has exclusive power to levy taxes on subjects enumerated in the State List, both can levy taxes on the subjects enumerated in Concurrent List whereas residuary power of taxation lies with Parliament only.

Distribution of the tax-revenue

1. Duties Levied by the Union but Collected and Appropriated by the States: Stamp duties on bills of Exchange, etc., and Excise duties on medical and toilet preparations containing alcohol. These taxes don't form the part of the Consolidated Fund of India, but are assigned to that state only.

2. Service Tax are Levied by the Centre but Collected and Appropriated by the Centre and the States.

3. Taxes Levied as Well as Collected by the Union, but Assigned to the States: These include taxes on the sale and purchase of goods in the course of inter-state trade or commerce or the taxes on the consignment of goods in the course of inter-state trade or commerce.

4. Taxes Levied and Collected by the Union and Distributed between Union and the States: Certain taxes shall be levied as well as collected by the Union, but their proceeds shall be divided between the Union and the States in a certain proportion, in order to effect an equitable division of the financial resources. This category includes all taxes referred in Union List except the duties and taxes referred to in Article 268, 268-A and 269; surcharge on taxes and duties mentioned in Article 271 or any Cess levied for specific purposes.

5. Surcharge on certain duties and taxes for purposes of the Union: Parliament may at any time increase any of the duties or taxes referred in those articles by a surcharge for purposes of the Union and the whole proceeds of any such surcharge shall form part of the Consolidated Fund of India.

Grants-in-Aid

Besides sharing of taxes between the Center and the States, the Constitution provides for Grants-in-aid to the States from the Central resources.

There are two types of grants:-

1. Statutory Grants: These grants are given by the Parliament out of the Consolidated Fund of India to such States which are in need of assistance. Different States may be granted different sums. Specific grants are also given to promote the welfare of scheduled tribes in a state or to raise the level of administration of the Scheduled areas therein (Art.275).

2. Discretionary Grants: Center provides certain grants to the states on the recommendations of the Planning Commission which are at the discretion of the Union Government. These are given to help the state financially to fulfill plan targets (Art.282).

Effects of Emergency on Center-State Financial Relations:-

1. During National Emergency: The President by order can direct that all provisions regarding division of taxes between Union and States and grants-in-aids remain suspended. However, such suspension shall not go beyond the expiration of the financial year in which the Proclamation ceases to operate.

2. During Financial Emergency: Union can give directions to the States:-

- (a) To observe such canons of financial propriety as specified in the direction.
- (b) To reduce the salaries and allowances of all people serving in connection with the affairs of the State, including High Courts judges.
- (c) To reserve for the consideration of the President all money and financial Bills, after they are passed by the Legislature of the State.

Finance Commission

Although the Constitution has made an effort to allocate every possible source of revenue either to the Union or the States, but this allocation is quite broad based. For the purpose of allocation of certain sources of revenue, between the Union and the State Governments, the Constitution provides for the establishment of a Finance Commission under Article 280. According to the Constitution, the President of India is authorized to set up a Finance Commission every five years to make recommendation regarding distribution of financial resources between the Union and the States.

Constitution

Finance Commission is to be constituted by the President every 5 years. The Chairman must be a person having 'experience in public affairs'. Other four members must be appointed from amongst the following:-

1. A High Court Judge or one qualified to be appointed as High Court Judge;
2. A person having knowledge of the finances and accounts of the Government;
3. A person having work experience in financial matters and administration;
4. A person having special knowledge of economics.

Functions

The Finance Commission recommends to the President as to:-

1. The distribution between the Union and the States of the net proceeds of taxes to be divided between them and the allocation between the States of respective shares of such proceeds;
2. The principles which should govern the grants-in-aid of the revenue of the States out of the Consolidated Fund of India;
3. The measures needed to augment the Consolidated Fund of a State to supplement the resources of the Panchayats and Municipalities in the State;
4. Any other matter referred to the Commission by the President in the interest of sound finance

Conclusion:

In India, the Centre-States relations constitute the core elements of the federalism. The Central Government and State Government cooperate for the well-being and safety of the citizens of India. The work together in the field of environmental protection, terror control, family control and socio-economic planning.

The Indian constitution aim at reconciling the national unity while giving the power to maintain state to the State governments. It is true that the union has been assigned larger powers than the state governments, but this is a question of degree and not quality, since all the essential features of a federation are present in the Indian constitution. It is often defined to be quasi-federal in nature. Thus, it can be safely said that Indian Constitution is primarily federal in nature even though it has unique features that enable it to assume unitary features upon the time of need. Federal but its spirit is unitary.

Difference between Tax and Fees

Tax is levied compulsorily by the government on its citizens to defray the expenses of the government. A tax, by definition, is a payment in return for which no direct and specific quid pro quo is rendered to the taxpayer. From the definition of a tax, we can pinpoint some of the important characteristics of tax.

Firstly, a tax is a compulsory payment levied by the government on its citizens and various business firms. As payment of tax is compulsory, refusal to pay tax invites punishment.

Secondly, there is no direct quid pro quo relationship between the taxpayer and the tax-levying authority. That is to say, a taxpayer cannot demand any reciprocal benefits for paying taxes.

Thirdly, a tax is levied to incur public expenditure for the benefit of the country as a whole.

Fourthly, the basis of taxation cannot be the same for all periods. It is reviewed periodically by the taxing authority.

On the other hand, a fee is a voluntary payment to the government for the special services rendered by it in the public interest, but conferring a specific advantage on the person paying it.

In the first place, a tax is a compulsory contribution made by a taxpayer. A fee, by definition, is a voluntary payment.

Secondly, as far as tax is concerned, there is no direct give-and-take relationship between the taxpayer and the tax-levying authority.

A taxpayer cannot demand any special favour from the authority in return for taxes paid by him. A fee is a direct payment by those who receives some special advantages or the government guarantees the services who pays fees. Fees are, therefore, deemed to be the by-products of the administrative activities of the government.

Thirdly, fees are mostly imposed to regulate or control various types of activities. But the objectives of taxation are many. It has no separate objective. Taxes are levied in the greater interests of the country.

The Supreme Court: Shirur Mutt Judgement

Section 76. (1) of the Charitable Endowments Act states that," In respect of the services rendered by the Government and their officers, every religious institution shall, from the income derived by it, pay to the Government annually such contribution not exceeding five per centum of its income as may be prescribed." Apart from this there are provisions for payment of auditing of the books of the charitable trust and the payment of employment of commissioners, deputy commissioners etc. for the act by the government, however executive employees of the trust have been kept out of the remuneration fold of the government.

Supreme court's engagement with this contested section is a matter of great interest for inquiries being made into tax and fees jurisprudence. The claim and provision has been contested on primarily two grounds. The first one being, whether the 'charge' imposed is a tax or not and if at all it is a tax, then the state legislature lacks the authority to impose this tax. The second ground on which this is contested is that if the charge collected is indeed a tax and then it is being used for the purposes of maintenance and propagation of a religion then it comes under direct conflict with Article 27 of the Indian Constitution which says that," Freedom as to payment of taxes for promotion of any particular religion No person shall be compelled to pay any taxes, the proceeds of which are specifically appropriated in payment of expenses for the promotion or maintenance of any particular religion or religious denomination." This provision is then a mischief of Article 27 of the Indian Constitution.

Constitutional Grounding

The first ground was largely not disputed. The charge was deemed as tax. The legislation discussed was covered by entries 10 and 28 of List III in the schedule VII of the constitution. Had the contribution payable under section 76 been a fee, it would have come under entry 47 of the concurrent list which deals with matters related to fee as discussed on the list. The particular

tax discussed here does not have specific entry in any three lists and therefore only falls under entry 97 of list I or article 248(1) of the constitution which only allows for union legislature to legislate on the matter. (The commissioner, hindu religious endowments, madras vs sri lakshmindra thirtha swamiar of sri shirur mutt 1954) Additionally, the lists as discussed here and reflect a clear demarcation between revenue appropriation authorities of the state and the center, which is further an example of the federal structure of the country and concept of 'dual polity'.

Primarily now, point being that the charge discussed was certainly not fee. The court gives various arguments to support its judgement made in favor of the Commissioner, Hindu Religious Endowments. The court says that the charge levied was a legitimate tax and this view is governed by the definition of tax as given by Chief Justice of High Court of Australia in Matthews vs Chicory Marketing board(I). As per the judgment a tax is, "Compulsory exaction of money by public authority for public purposes enforceable by law and is not payment for services rendered." Through this definition, the Supreme Court successfully articulated few fundamental characteristics of tax, some of them directly and some of them implicitly through ancillary arguments. These include a binding compulsion enforced by law, charged without taxpayer's consent and imposition for public purpose explicitly articulated or not. Considering the definition of tax, the court also throws light on the definition of fees. It explicitly lays down that fees is a charge collected almost proportionate to expenditure incurred by the government in provision of a certain service. The nature of fees is said to be voluntary and people can choose to opt out of it. It is the same for everyone availing the said service and does not change as tax does for example in the case of income tax.

Even though the Shirur Mutt case judgement is a landmark judgment about tax and fees jurisprudence in India, it fails to engage on certain levels to offer a clear marker or test between the two fundamental concepts of revenue generation in the realm of public finance. The component of coercion as the court discusses, is a principal indicator of a tax. This coercion is complemented by a person's unwillingness to pay. However, coercion is also present in the concept of fees. You are bound to pay for the service you receive. It is also complemented by a general feeling of not wanting to part with one's monetary possessions. Another reason why a charge is considered as tax and not fees given by the court was, a tax is applicable to all and fees is selectively applicable. However, the understanding of this in grounded terms brings you to conclude that every kind of tax is not applicable on everyone. House tax for example, will only be applicable to those in possession of houses and not to those who have no registered land in their names. The concept of voluntary charge, you can wish to opt out of it, thus making it a fee, is also applicable to house tax. One can choose to not possess land or a house and therefore get free from paying house tax, thus essentially giving the payment a character of a fee.

The only defense that could be fathomed from the judgement for the distinction laid down is that the principals must be read in accordance to each other and the absence of even one element could change the nature of the concept. However, a reliable principal test that the judgment does discuss, not in great depth though is the idea of burden of charge. The idea of tax within entails within itself a common burden or incidence and fees is for specific burden, within which no issue or public service is earmarked.

Cooperation between the Centre and the States

The constitution lays down various provisions to secure cooperation and coordination between the centre and the states. These include:

- (i) Article 261 states that "Full faith and credit shall be given throughout the territory of India to public acts, records and judicial proceedings of the Union and of every State".
- (ii) According to Article 262, the parliament may by law provide for the adjudication of any dispute or complaint with respect to the use, distribution or control of the waters of, or in, any inter-State river or river valley.
- (iii) Article 263 empowers the President to establish an inter-State Council to inquire into and advise upon disputes between states, to investigate and discuss subjects in which some or all of the States, or the Union and one or more of the States, have a common interest.
- (iv) As per Article 307, Parliament may by law appoint such authority as it considers appropriate for carrying out the purposes of the constitutional provisions related to the inter-state freedom of trade and commerce.

Centre-State Relations during Emergency

- (i) During a national emergency (under Article 352), the state government become subordinate to the central government. All the executive functions of the state come under the control of the union government.
- (ii) During a state emergency (under Article 356), the president can assume to himself all or any of the functions of the Government of the State and all or any of the powers vested in or exercisable by the Governor or authority in the State other than the Legislature of the State.
- (iii) During the operation of financial emergency (under Article 360), the Union may give directions to any State to observe such canons of financial propriety as may be specified in the directions, and to the giving of such other directions as the President may deem necessary and adequate for the purpose.

Financial Relations

The Constitution deals with the centre-state financial relations in Article 268-293 of Part XII.

Allocation of taxing powers

The Constitution has provided the union government and the state governments with the independent sources of revenue. It allocates the powers to centre and the states in the following way:

(i) The parliament has exclusive power to levy taxes on the subjects mentioned in the Union List.

(ii) The state legislatures has exclusive power to levy taxes on the subjects mentioned in the State List

(iii) Both the parliament and the state legislature are empowered to levy taxes on the subjects mentioned in the Concurrent List.

(iv) The parliament has exclusive power to levy taxes on the matters related to the residuary subjects.

However, in case of tax revenue distribution,

- article 268 states that duties are levied by the Union but are collected and appropriated by the States;
- Service tax levied by Union and collected and appropriated by the Union and the States (Article 268-A);
- Taxes levied and collected by the Union but assigned to the States (Article 269);
- Taxes levied and collected by the Union but distributed between the Union and the States (Article 270).
- Surcharge on certain duties and taxes for purposes of the Union (Article 271)
- Under Article 275, the parliament is authorized to provide grants-in-aid to any state as parliament may determine to be in need of assistance, and different sums may be fixed for different States.

Under Article 282, the union or a state may make any grants for any public purpose, notwithstanding that the purpose is not one with respect to which Parliament or the Legislature of the State, as the case may be, may make laws.

Under Article 352, during the operation of national emergency, the distribution of revenues between the centre and the states can be altered by the president.

Under Article 360, during the financial emergency, the executive authority of the Union shall give directions to any State to observe such canons of financial propriety as may be specified in the directions and to the give the directions as the President may deem necessary and adequate for the purpose.

The important recommendations of the first administrative reforms commission related to the centre-state relations are:

Establishment of an Inter-state council under Article 263

1. Decentralization of powers to the states as much as possible
2. More transfer of financial resources to the states
3. Arrangements for devolution in such a way that the states can fulfil their obligations
4. Advancement of loans to states should be related to as 'the productive principle'.
5. Deployment of central armed forces in the states either on their request or otherwise During state emergency, under Article 356, President's Rule can be imposed in event of the failure of constitutional machinery in a state.

Unit –IV

Topics Covered

Liability of State in Torts and Contracts - Freedom of Interstate Trade, Commerce and Inter course - Services under the State - All India Services - Public Service Commissions

Liability of State in Torts and Contracts

Art. 298. The executive power of the Union and of each State shall extend to the carrying on of any trade or Business and to the acquisition, holding and disposal of property and the making of contracts for any purpose:

Provided that—

- (a) The said executive power of the Union shall, in so far as such trade or business or such purpose is not one with respect to which Parliament may make laws, be subject in each State to legislation by the State; and
- (b) The said executive power of each State shall, in so far as such trade or business or such purpose is not one with respect to which the State Legislature may make laws, be subject to legislation by Parliament.

299. (1) All contracts made in the exercise of the executive power of the Union or of a State shall be expressed to be made by the President, or by the Governor of the State, as the case may be, and all such contracts and all assurances of property made in the exercise of that power shall be executed on behalf of the President or the Governor by such persons and in such manner as he may direct or authorise.

(2) Neither the President nor the Governor shall be personally liable in respect of any contract or assurance made or executed for the purposes of this Constitution, or for the purposes of any enactment relating to the Government of India heretofore in force, nor shall any person making or executing any such contract or assurance on behalf of any of them be personally liable in respect thereof.

Liability of Administration in Tort

To what extent the administration would be liable for the torts committed by its servants is a complex problem especially in developing countries with ever widening State activities. The liability of the government and administration in tort is governed by the principles of public law inherited from British Common Law and the Provisions of the Constitution.

The whole idea of vicarious liability of the state for the torts committed by its servants is based on 3 principles.

1. *Respondeat Superior* (Let the principal be liable).
2. *Qui-Facit per Alium Facit per se* (He who acts through another does it himself).

3. Socialization of Compensation.

Article 300 of the Constitution of India deals with the extent of liability of the Union of India and the government of a State, but it does not lay down liability in specific terms. The root of the provision can be traced back to section 65 of the Government of India Act, 1858, which laid down that on the assumption of the Government of India by the British Crown, the Secretary of State for India-in-Council would be liable to the same extent as the East India Company was previously liable. This is certainly a strange way of determining the liability of a state governed by a Constitution. It is because of this 'Strange way' with *resultant* confusion and complexity that the Law Commission recommended a legislation on the subject too. Accepting the recommendation, the government introduced two Bills, 'The Government Liability in Tort', in Lok Sabha in 1965 and 1967, neither of which emerged as an Act. The government allowed the Bills to lapse on the ground that they would bring an element of rigidity in the determination of the question of liability.

The first judicial interpretation of State Liability during the East India Company was made in **John Stuart's case**, 1775. It was held for the first time that Governor-General in Council had no immunity from Court's jurisdiction in cases involving the dismissal of Government Servants. In **Moodaly v. The East India Company** 1775 (1 Bro-CC 469), the Privy Council expressed the opinion that Common law doctrine of sovereign immunity was not applicable to India.

Some judgments during British Rule India, do tell us, how the law of administrative tortious liability evolved in Indian conditions.

In **P. and O. Steam Navigation Co. v. Secy. Of State for India** [(1861) 5 Bom HC Report, Appendix 'A'] the Supreme Court allowed an action against the secretary of state for the negligent act of the government workers. In this case, the workers employed by the Kidderpore Dockyard, which was a government dockyard, were carrying iron bars across a public way passing through the port, which bars they dropped on the road. The noise so created scared the horses of the carriage in which the plaintiff was sitting and he sustained injuries. *Sir Barnes Peacock*, C.J. who delivered the judgment of the court, held that Company had been invested with sovereign functions but this did not make it a sovereign authority.

The term 'sovereign' and 'non-sovereign' function created confusion in the later development of the law, as has been *Peacock C.J.*, held, "*It is clear that East India Company would not have been liable for any act of any of its naval officers in seizing as prize property of a subject, under the supposition that it was the property of an enemy, nor for any act done by a military or naval officer, or by any soldier or sailor whilst engaged in military or naval duty, nor for any acts of any of its officers or servants in the exercise of judicial and sovereign functions.*"

The other interpretation of the *P and O's case* was that the immunity extended only to cases which may be covered within the definition only to cases which may be covered within the definition of the term 'acts of State'. The defense of an act of State is not available against a citizen. Acts of State are directed against another sovereign state or its sovereign personally or its subjects and is based on policy consideration and not on law administered by municipal courts, they are not justiciable. This line of reasoning was adopted by the court in **State of India-in-Council v. Hari Bhanji**. [(1882) ILR 5 Mad 273].

The evolution of law in this field was predominantly restricted to judicial pronouncements, even after the independence of India.

In **State of Rajasthan v. Vidyawati (Mst.)** [AIR 1962 SC 933], the Supreme Court of India held the

State vicariously liable for the tort committed by its servants. The facts of the case were that in February 1952, a driver of the government jeep, while driving back from the workshop, knocked down a person on the footpath, causing multiple injuries including fracture of the skull and the backbone, which resulted in his death. A suit by the widow of the deceased and her minor daughter for compensation was decreed by the trial judge against the driver but not against the State. On appeal, the High Court decreed the suit against the State also.

Hence, State of Rajasthan, went in appeal before the Supreme Court. The main argument on behalf of the State was that it was not liable for tortious acts of its employees for in similar circumstances the East India Company would not have been liable, as the jeep was maintained in the exercise of sovereign powers and not as a part of the commercial activity of the state. *Sinha, C.J.*, dismissing the appeal by the State of Rajasthan held that the immunity rule of the Crown in England cannot be applied in India. Holding, the state vicariously liable for the tortious acts of its servants. More importantly, the distinction between sovereign and non-sovereign functions for the purpose of determining the State liability was not recognized, and the only immunity which the state could have claimed was 'acts of state'.

Unfortunately, only 3 years later, in ***Kasturi Lal v. State of U.P.*** [AIR 1965 SC 1039], the Supreme court, speaking through *J. Gajendragadkar*, re emphasized on the difference between Sovereign and Non-sovereign functions. The facts involved that the plaintiff was going to Meerut to sell good, silver other goods. As he was passing through the city, he was taken into custody by three policemen. He was searched and all the gold and silver was taken into custody and he was put in the lock-up. On his release, his gold was not returned, though silver was immediately returned. The gold had been misappropriated by the Head Constable who fled to Pakistan. The Court held, that State is not liable because the functions of arrest and the seizure of the property are sovereign functions of the state. If the act is sovereign, no act of negligence on the part of employees of the State would render State liable.

The distinction between sovereign and non-sovereign functions is a juristic blasphemy which leads to absurd and arbitrary conclusions. There is no uniformity in decisions, and it becomes very complex to determine which function is sovereign. Differences of Opinion is clear in different judgments rendered by High Courts and Supreme Court.

In ***Khatri (II) v. State of Bihar*** [AIR 1981 SC 928], an important question was raised regarding the liability of the government for wrongful arrest and detention. Moving ahead in the direction of a new dimension of the right to life and person liberty, *Justice Bhagwati*, held that, "*Why should the court prepared not be prepared to forge new tools and devise new remedies for the purpose vindicating the most precious of the precious fundamental rights to life and personal property.*"

In ***Rudul Shah v. State of Bihar***, [AIR 1983 SC 1086], the Court speaking through *Justice Chandrachud*, provided compensation to the person who was under illegal detention for more than 14 years. The Court ordered compensation of Rs. 30,000 for the injustice and injury did to Rudul Shah and his helpless family, because of the wrong actions of officials of the Government. The Court similarly granted monetary compensation in the case of ***Nilabati Behra v. State of Orissa*** [AIR 1993 SC 1960] and spelt out the principles on the liability of the State in the case for payment of compensation for the tort so committed and also held, that if no other redress is available then the government is strictly liable to pay the victim the monetary compensation for breach of fundamental rights of the victim by State or its employees.

In ***Bhim Singh v. State of J.K.*** [1985 4 SCC 677], the Supreme Court awarded the exemplary cost of

Rs. 50,000 on account of the authoritarian manner in which the police played with the liberty of the appellant.

Similarly, in **Mahavir Singh v. State of Rajasthan** [1987 2 SCC 342], the court granted rupees one lakh for the custodial death of a young boy who had been arrested on a theft charge.

In **SAHELI, A Women's Resource Centre v. Commr. Of Police** [1990 1 SCC 422], the Supreme Court quoted with approval its decision in *Vidhyawati Case* and held that the State is responsible for the tortious acts of its servant committed within the scope of his employment like any other employer. It further that the doctrines of sovereign immunity, are of feudalistic origin, and cannot be applied in a democratic country like India. In this case, a women's organization known as SAHELI had filed a writ against the government for compensation on behalf of two poor women who had been mercilessly beaten by the landlord in collusion with the police. The Court not only awarded Rs. 75,000/- as compensation but also opined that amount can be recovered from the police officers responsible for the tort. Therefore, the classification of governmental functions into sovereign and non-sovereign for the purpose of determining governmental liability in tort is no longer a valid classification.

In **N. Nagendra Rao & Co. v. State of A.P.** [1994 6 SCC 205], the Court reiterated that the doctrine of sovereign immunity stands diluted in the context of the modern concept of sovereignty and thus the distinction between sovereign and non-sovereign functions no longer survives. The court observed that state is immune only in cases of facts of State like a defense of the country, administration of justice, maintenance of law and order and repression of crime except when article 21 of the constitution are breached. IN this case, the court also confirmed the principle of personal liability of the negligent officer.

In **Lucknow Development Authority v. M.K.Gupta** [1994 1 SCC 243], where supreme court observed that, *"when public servant by mala fide, oppressive and capricious acts in performance of official duty causes injustice, harassment, and agony to common man and renders the state or its instrumentality liable to pay the damages to the person aggrieved from public fund, the State or its instrumentality is duty-bound to recover the amount of compensation so paid from the public servant concerned."*

In **Chairman Railway Board v. Chandrima Das** [2000 2 SCC 465], court held that, when a woman even though a foreign national, is gang-raped by railway employees in Railways Yatri Niwas, held, the Union of India, which runs the Railways as a commercial activity, would be vicariously liable to a compensation to the victim of the rape.

Though the court has recognized the Governmental liability under tort law, but most of the cases have been fought with the sword of fundamental rights, hence the justice is meted out, because in Indian Conditions, getting Compensation for torts is cumbersome and time taking process, and problem aggravates when one of the party is the state itself.

Liability of Administration under Contract

According to Common Law, before 1947, the Crown could not be sued in a court on a contract. The privilege was traceable to the days of feudalism when a lord could not be sued in his own courts. Another maxim which was pressed into service was that the 'King can do no wrong'. A subject could, however, seek redress against the Crown through a petition of right in which he set out his claim, and if the royal fiat was granted, the action could then be tried in the court. The royal fiat was granted as a matter of course and not as a matter of right, and there was no remedy if the fiat was refused. The Crown Proceedings Act, 1947, abolished this procedure and

permitted suits being brought against the Crown in the ordinary courts to enforce contractual liability, a few types of contracts is, however, excepted.

The Contractual Liability of the Union of India and States is recognized by Constitution under art. 294, 298, 299, 300. Article 294 provides that executive powers of union and of each state shall extend to the carrying on any trade, business and the acquisition holding and disposal of property and the making of Contracts for any purpose. Article 299 lays down modes of the manner of execution of such contracts and some requirements. The requirements include, that Contracts be made in the name of President/Governor, all contracts to be executed by such persons and in such manner as president/governor directs, and the contract is to be executed on behalf of President/Governor.

The Supreme Court in **Karamshi Jethabhai v. The State of Bombay** [AIR 1964 SC 1714], emphasized that according to art. 299, the words “expressed to be made and executed” clearly shows that there must be a formal written contract executed by the duly authorized person.

But, in **Chatturbhujv. Parashram** [1954 SCR 817], the Supreme Court held that a contract could be oral, or maybe by correspondence, in an emergency, a contract may be made by Government, without following ‘ponderous legal document couched in a particular form’. Such a Contract was upheld in **Union of India v. Rallia Ram** [1963 AIR 1685] also.

There can be no implied contract between the government and another person, as has been held by the Supreme Court in **K.P. Chowdhary v. State of M.P.** [AIR 1967 SC 203].

In **Union of India v. N.K. (P) Ltd.** [AIR 1972 SC 915], the court held, that if the director was authorized to sign the contract, but it was signed by Secretary, Railway Board, the Contract is not valid. SO, if the Contract is not signed by an authorized officer, it is not binding.

In **D.G. Factory v. State of Rajasthan** [AIR 1971 SC 141], the court emphasized on the point that the contract must be executed ‘on behalf of the President/Governor.’ In the case, the Contract signed by IG Police, but it did not state that the agreement was executed “on behalf of the Governor”. The court held, that in a suit for damages filed by the Contractor for breach of Contract, as the requirement of art. 299(1) was not complied with, the contract was not enforceable.

The objective of article 299 (1) is to safeguard the Government and not to saddle the Government with obligations, which are made by unauthorized officers or in excess of authority. Saving public funds is essential. Hence, if the contract is invalid, the Government cannot later ratify and make it valid, as was held in **Mulamchandv. State of M.P.** [1968 AIR 1218]. The reason is that when there is no contract ‘at all’, the question of ratification does not arise.

Hence, article 299 is mandatory in the sense that Government is not bound by the contract if the requirements of article 299 are not complied with.

The Government, if enjoys the benefit of the performance of the other party to the contract, would be bound to give recompense on the principle of *quantum merit* or *quantum valebat* (service or goods received), principles of quasi-contract as provided under sections 65 and 70 of Indian Contract Act, 1872. Besides this, the doctrine of promissory estoppel may apply on the facts. But, the President or the Governor is not personally liable on the Contract. This is the modern principle which operates when governmental liability is to be fixed.

In **State of West Bengal v. B.k. Mondal** [1962 AIR 779], a Government officer ordered for the construction of a building for the Government office as per the rules of the Department. The Contractor completed the building. Government officer took possession and began using it. But, no payment was made. The Government argued that as the contract was not according to Art.

299(1) it was a 'no contract'. The Supreme court held indeed that there was no contract; but, Government is made liable to pay compensation, in accordance with section 70 of the Contract Act, i.e. for 'unjust enrichment'.

There are some exceptions too, which were earlier used by the administration to evade their liability. **Executive necessity** is one of them. The principle states that although government can be bound through its officers by a contract similar to anyone else is liable to pay damages; Government is not competent to fetter its future executive action, which must necessarily be determined by the needs of the community when the question arises. The essence of the doctrine is that Government cannot hamper the freedom of the future actions of Parliament in matters which concern the welfare of the State. It has been held that the Government cannot fetter its discretion in executive matters by contractual obligations. While the existence of executive necessity is firmly established, its parameters are neither firm nor fixed.

The **Amphirite v. the King** [1921 2 KB 500] was the first case where the exemption was given to the government. However, in **Robertson v. Minister of Pensions** [1949 1 KB 227], Lord Denning J. observing against the Government held that "*Crown cannot escape by saying that estoppels do not bind the Crown for that doctrine has long been exploded. Nor can the Crown escape by pressing in aid the doctrine of executive necessity that is the doctrine that the crown cannot fetter its executive action.*"

In India, this issue came in the **Indo Afghan case** [AIR 1968 SC 718], where the Supreme court held that, "*we are unable to accede to the contention that executive necessity releases the Government from honoring its solemn promises relying on which the citizens have acted to their detriment.*". Similarly in **M/s Sterling Comp. Ltd. v. M/s M&N Publication**, court negated the defense of executive necessity, and held that it can't be given liberally. So, now this exception is rarely given.

The other defense **Sovereign functions**. This defense is also obliterated as now the state's responsibility is recognised more broadly.

Besides all this, It has been observed in **Eurasian Equipment & Chemicals Ltd. v. State of West Bengal** [AIR 1975 SC 266] that, "*Judicial quest in administrative matters has to find the right balance between the administrative discretion to decide matters contractual or political in nature or issues of social policy and the need to remedy any unfairness. A state need not enter into a contract with anyone, but when it does so it must do so fairly without discrimination and without unfair procedure; and its action is subject to judicial review under Article 32 of the Constitution of India.*"

In **Mahabir Auto v. Indian Oil Corporation** [AIR 1990 SC 1031], the court recognised the freedom of government to enter into business with anybody, but subject to the condition of 'reason and fair play' as well as 'public interest'.

And where the government is dealing with the public, whether by way of giving jobs or by entering into contracts or issuing quotas etc. it cannot arbitrarily use its power of discretion and in such matters must conform to certain standards or norms which are not arbitrary, irrational or irrelevant, as has been held in **Y. Konda Reddy v. State of AP** [AIR 1997 AP 121].

Hence, courts can take up the contractual matters by exercising their powers of the judicial review too, if it violates any fundamental right of the persons involved therein, and the decision of the government involves arbitrariness.

Conclusion

As it is now clear that even personnel working under the 'authority' of 'administration' can be

held personally liable, in addition to 'liability of state' *per se*, but even with this, the number of wrong committed by the administration, are increasing day by day. The recent trend of the soaring number of Public Interest Litigation (PILs) being filed in administrative matters, both in High Courts and Supreme Courts, clearly show the situation that, the administration is not working properly even when the judiciary has tried to tighten its hands.

The situation can only be changed if the personal liability of individual neglecting officers, with their senior officials also, is strictly and rigorously recognised, and strict actions be taken against them, by emphasising on the human rights violation of the victims. The system can only be changed if 'administration' is changed, and the latter can be changed only if 'liabilities' are attracted to it, on both civil and criminal aspects.

FREEDOM OF TRADE COMMERCE AND INTERCOURSE

Part XIII of the constitution contains provisions relating to the freedom of trade, commerce and intercourse within the territory of India. The provisions are laid down in articles 301-307. While the general rule of freedom of trade and intercourse is enunciated in article 301, it may be subjected to restrictions laid down in articles 302-305.

The union control is predominant, as the union government can impose reasonable restrictions in the public interest, thus restricting the freedom of trade or commerce. a state legislature too can impose reasonable restrictions, but requires president's sanction for it. Thus the union possesses a control over the state legislature. Part 13 seeks to make india a single economic unit for the purposes of trade and commerce under the overall control of the union.

Article 301: Freedom of Trade & Commerce etc.

Article 301 reads: "subject to the other provisions of this part, trade, commerce and intercourse throughout the territory of India shall be free."

The "freedom" declared under article. 301 may be defined as a right to free movement of persons or things (goods), tangible or intangible, commercial or non-commercial, unobstructed by barriers, inter-state or intra-state or any other impediment operating as such barriers. Thus, 'freedom of trade, commerce and intercourse' means the free movement/transport and exchange of goods. It means that there shall be no prior restraint upon trade and commerce.

Article 301 is an adaptation from section 92 of the Australian constitution, which reads: "...trade, commerce and intercourse among the states, whether by means of internal carriage or ocean navigation, shall be absolutely free." it may be noted that, while section 92 guarantees the freedom among the states i.e. at inter-state level, article 301 guarantee it throughout the territory of India, inter-state as well as intra-state (within a state). Further, section 92 declares the freedom "absolutely free" leaving it for the courts to import certain restrictions/limitations on the freedom as dictated by common sense and the exigencies of changing society. Article 301, on the other hand, secure the freedom subjected to restrictions/limitations which may be imposed under other provisions of part 13.

The "commerce clause" contained in the American constitution gives power to the congress to regulate commerce with foreign nations and among the several states. it has been held that

where the subject-matter is national in character or requires uniform legislation, the power to regulate that matter is with the congress and the state regulation will not be permitted.

The word 'trade' under article 301, would mean some real, substantial and systematic or organized course of activity or conduct with a set purpose. It simply means buying and selling of goods. But it also includes other activities which may be regarded as integral parts of the transaction of buying and selling, such as transport of goods or merchandise from one place to another, the interchange or exchange of commodities. The word 'commerce' is wider than 'trade.' technically, it also means buying and selling of goods. But, what are essential for 'commerce' is transmission and not the profit-making as is there in 'trade.' it includes transportation of not only goods but also men or animals.

It has been held that the protection offered by article 301 is confined to such activities as may be regarded a lawful trading activity and does not extend to activities which are *res extra commercia* i.e. activities which could not be said to be trade or commerce or business (**State of Bombay versus RMDC**). In this case, the Bombay lotteries and Prize Competitions Control and Tax (amendment) Act, 1952, imposing restrictions on prize competition was upheld as not violative of article 301 for, being of gambling nature, holding of lotteries and prize competitions, could not be regarded as trade or commerce.

In 'lottery', there is no skill but only an element of chance, it falls outside the realm of *res commercia*. The right of sale of lottery tickets is not a right under article. 301. Even state lotteries cannot be said to constitute "trade" as contemplated by article. 301. since state lotteries cannot be construed to be trade and commerce within the meaning of article. 301, there could possibly be no question of any discrimination or violation of article. 303. Therefore, the central lotteries (regulation) act under which power is conferred on states to ban sale of lotteries of other states does not violate articles 301-303 of the constitution and is, thus, valid.

Thus, 'unlawful' trading activities example drug-trafficking, flesh trade, smuggling, liquor trade, hiring of goondas for committing crimes, gambling (holding of lotteries, etc.), rural money lending by unscrupulous persons etc., are not protected by article 301.

The word 'intercourse' is used to give the freedom declared by article 301 the largest import. It thus includes the freedom to import things for personal (non-commercial) or commercial use. It would thus mean the freedom of an individual to travel across the barriers and have dealings with the citizens of another part of the country. Thus, intercourse between citizens involving movement of property from one place to another is covered by article. 301. It may be noted that article. 301 guarantees freedom not only from geographical barriers but also from restrictions imposed upon the individual to carry on trade or business.

Object behind article 301

The main objective of article 301 is to break down the border barriers between the states and to create one economic unit with a view to encouraging the free movement and exchange of goods, which may be utilized to the common advantage of the entire nation. The object behind this all is to create and preserve a national economic fabric; at the same time, state or regional interests must not altogether be ignored.

In a federation, it is necessary to minimize the inter-state barriers as much as possible, so as to inculcate in the minds of the people the feeling that they are members of one nation, though residing in different geographical divisions of the country.

Regulatory measures or Compensatory Taxes

A regulation is not a restriction', the former applies to incidental or non-essential transactions of a trade (viz. matters relating to hours, equipment, weight/size of load, lights, which form the incidents of transportation), the latter applies to direct or essential transactions of a trade (viz. a total prohibition on movement of certain goods during a specified period, or prohibition of any class of commercial or financial transactions relating to any goods, such as forward contracts). The object of a regulation is to ensure the orderly conduct of a trade. Though such regulation may involve some restraints and such restraints do not restrict the flow of a trade, but rather facilitate such flow.

Regulations like rules of traffic facilitate freedom of trade and commerce, whereas restrictions impede that freedom. Requirement of export permit pass for the removal of timber from the forest, the authorities being bound to permit transportation of timber covered by the pass, was held to be valid as regulatory and not restrictive in nature.

However, it is not that regulatory measures cannot, in any case, be challenged as interfering with the freedom guaranteed by article. 301. these can be challenged when they are colourable measures to restrict the flow of trade, commerce and intercourse. thus, if the amount of a compensatory tax is unduly high or the regulatory measure is too burdensome or is discriminatory, it certainly would hamper trade.

Compensatory Taxes

It is only such taxes as directly and immediately restricts trade that fall within the purview of article 301. In determining whether a tax directly offends against article 301, it is the movement of the goods which are the subject of the trade that has to be borne in mind. If a tax is imposed solely on the basis that the goods are carried or transported, that directly affects the freedom of trade. On the other hand, a tax on 'luxuries' enjoyed by a person in a hotel cannot have a direct and immediate effect impeding the freedom of intercourse.

The very idea of a 'compensatory tax' is service more or less commensurate with the tax levied. Trade, commerce and intercourse must pay for the facilities provided by the state by way of constructing, maintaining and regulating roads, bridges and other means of transportation necessary for such trade, commerce or intercourse. All that is necessary to uphold a tax as compensatory is the 'existence of a specific, identifiable object behind the levy and a nexus between the subject and object of levy', though the exact determination of benefit received and expenditure incurred and levying the tax accordingly is not necessary. Once the nexus between the levy and service is seen, the levy must be upheld, unless the compensatory character is shown to be wholly or partly, a mere mockery and in truth restrictive of the freedom of trade.

So long as there is some correlation between the tax recovered and the cost incurred by the state, the tax cannot be challenged as expropriator, even though there may be a marginal excess over the cost. Merely because the budget estimates indicated that the income raised by

imposition of the tax was more than the expenditure incurred on roads/bridges, the tax cannot be said to be not compensatory in character. It is not necessary to show that the whole or a substantial part of collected is utilized. Once it is held that the tax is either compensatory or regulatory in character that would form the guideline for the state government to be kept in view to determine the rate at which the tax be levied.

A compensatory tax, however, becomes “confiscatory” and thus violative of the freedom contemplated by article 301, if:

- (1) it is so excessive or heavy and prohibitive as to become an impediment in the free flow of trade and commerce example an excise duty on foreign liquor, or
- (2) the burden imposed disproportionately exceeds the cost of the facilities, or
- (3) no facilities are provided by the taxing state and the tax is purely fiscal in its object, or
- (4) where no machinery is provided by the taxing state for the assessment and levy of tax, or
- (5) the tax is discriminatory i.e. discriminates between the goods produced within the taxing state and the similar goods brought from other states within the taxing state (see article 304).

But, a compensatory tax cannot be struck down as confiscatory merely because the tax, once imposed, is enhanced, and that, retrospectively. further, sales-tax as such, or a mere increase of a tax on the sale of particular commodity in a state at a rate higher than in a neighboring state, cannot be held to violate article 301.

Still further, an Octroi duty (i.e. a tax on the entry of goods in the corporate area) is not clearly a tax on any trade. The basis of such duty is not the movement or transport or the carriage of goods, thus, it is not violative of the freedom conferred by article 301. Similarly, a toll tax (a charge for the use of roads, bridges, market-place, etc.) cannot be equated with a general tax for the use of certain facilities, thus, not violative of article 301.

Restrictions upon the freedom of trade and commerce

The freedom granted under article 301 is not absolute freedom but freedom from all restrictions except those which are provided in other articles of part 13 (article 301 is subject to the other provisions of this part), as well as regulatory and compensatory measures. The power of the union or the state to exercise legitimate regulatory control is independent of the restrictions imposed by articles 302-305.

On the other hand, ‘restriction’ would not be valid if it does not come under articles. 302-305. now, since restrictions under the latter provisions can be imposed only by ‘law’ the freedom under article. 301 cannot be taken away by mere executive action (**Dy. Collector verses Ibrahim & Co.**). However, restrictions may be imposed by an executive action if taken in the exercise of power delegated by the parliament (Government of Tamilnadu verses Salem Association). The limitations imposed upon inter-state freedom of trade, commerce and intercourse, by the other provisions of part 13 are:

- (1) it is subject to non-discriminatory restriction imposed by parliament, in the public interest

[article. 302].

(2) even discriminatory or preferential provisions may be made by parliament, for the purpose of dealing with a scarcity of goods arising in any part of India [article 303(2)].

(3) non-discriminatory taxes may be imposed by states on goods imported from other states similarly as on goods produced within the state [article. 304(a)].

(4) reasonable restriction may be imposed by a state “in the public interest” [article 304(b)].

(5) restrictions imposed by “existing law” (an act passed before the commencement of the constitution) and laws providing for state monopolies to continue except in so far as provided otherwise by an order of the president [article 305].

(6) Article 307 empower parliament to appoint by law such authority, as it considers appropriate for carrying out the purposes of articles 301-304.

(a) restrictions on freedom of trade under parliamentary law [articles 302-303]

Article 302 reads: “parliament may by law impose such restrictions on the freedom of trade, commerce or intercourse between one state and another or within any part of the territory of India as may be required in the public interest.”

Article 303 reads:

(1) “Notwithstanding anything in article. 302, neither parliament nor a state legislature shall have power to make any law giving any preference to one state over another, or making any discrimination between one state over another, by virtue of any entry relating to trade and commerce in any of the lists in the seventh schedule.

(2) nothing in clause (1) shall prevent parliament from making any law giving any preference or making any discrimination if it is declared by such law that it is necessary to do so for the purpose of dealing with a situation arising from scarcity of goods in any part of the territory of India”.

Article 302 is, thus, subject to the condition that union law should not be discriminatory as between different states [article 303(1)] except where it is necessary for dealing with a situation of scarcity of goods [article 303(2)]. Article 303(2) was enacted with a view that it would be in the national interest as a whole that “the economy of the country will be balanced and everybody will be supplied with his necessities.”

However, article. 302 is restrictive of the freedom guaranteed under article. 301. This means that even where a restriction imposed by law imposes a direct burden on the freedom of trade under article. 301, it may be constitutionally valid, if it is required in the ‘public interest’ example to prevent evasion of tax, to canalize inter-state trade through registered or licensed dealers (**State of T.N. versus Seetalakshmi Mills**), or levying of terminal tax on all goods carried by railway/road into the territory of Delhi from any place outside.

In order to be protected by article 302, the nexus of the law with public interest must be

'reasonable', even though that word is not used in article 302. If the condition of public interest' is satisfied, article 302 would authorize both inter-state and intra-state restrictions. Some of the instances of legislation under article 302 are – essential commodities act, 1955 and orders made there under, defence of India act, 1962 and rules made there under, central sales tax act, 1956, mines & minerals (regulation & development) act, 1957.

In automobile co. case, the court observed that the expression "trade and commerce" in article 303(1) was capable of a liberal interpretation as to include any law made under any entry in the seventh schedule, if such law directly and immediately impeded the free flow of trade and commerce. Thus, the prohibition in article 303(1) did extend to taxing laws made by parliament.

it may be noted that a law applied uniformly in all parts of the country, in effect, may result in differential treatment of the states owing to economic conditions prevailing therein. Such a law, however, will not be hit by article 303(1).

(b) Restrictions on freedom of trade under a state law (article 304)

Article 304 reads: "notwithstanding anything in article 301 or article 303, the state legislature may by law:

(a) impose on goods imported from other states or the union territories any tax to which similar goods manufactured or produced in that state are subject, so, however, as .not to discriminate between goods so imported and goods so manufactured or produced; and

(b) Impose such reasonable restrictions on the freedom of trade, commerce or intercourse with or within that state as may be required in the public interest:

Provided that no bill or amendment for the purpose of clause (b) shall be introduced or moved in the state legislature without the previous sanction of the president."

Article 304 (a): non-discriminatory taxation of import

Article 304 (a) enabled a state legislature to impose taxes on goods from other states, provided similar goods as are produced within the state are subjected to similar taxes. In other words, it validates a taxation which undoubtedly fetters inter-state trade or commerce (i.e. a taxation which is violative of article 301), provided such taxation is non- discriminatory. If such tax is 'discriminatory', it will be hit by article 303(1).

Thus, article 304(a) has to be read with article 303(1). While article 303(1) prohibits discriminatory legislation in general being made by a state legislature, article. 304(a) strikes at discriminatory tax laws being made by state legislature.

Whether there has been discrimination between the imported goods and the local goods would depend upon a variety of factors, including the rate of tax and the item of goods in respect of the sale of which it is levied. Thus, discrimination takes place if tax at the same rate is imposed on differently priced goods or tax at a higher rate is imposed on the higher priced goods. Further, discrimination takes place if different rates of tax are imposed by a state on goods imported into the state and goods produced in that state. There is no discrimination unless the rate imposed is

higher in respect of the imported goods.

Article 304(b): Reasonable restrictions

Article 304(b) empowers a state legislature to impose such “reasonable restrictions” on the freedom of trade, etc., as may be required in the “public interest”. The word ‘reasonable’ enables the court to interfere where the state, under the pretense of preventing injury to the welfare of the citizens, intends to prevent the flow of legitimate articles of inter-state commerce or to impose needlessly burdensome conditions so as to substantially obstruct the commerce. The restrictions which may be validly imposed under article 304(b) are those which seek to protect public health, safety, morals and property within the territory of state.

Any restriction which does not impede the movement of goods but only facilitates their passage cannot be held to be unreasonable merely because they cause some inconvenience example insisting on a transit pass the requirement of permit was intended to prevent evasion and to facilitate assessment of sales tax. Similarly, a tax, which is regulatory or compensatory in nature, cannot be held to constitute an ‘unreasonable’ restriction, merely because a business rendered uneconomical by reason of the imposition.

Proviso to Article 304(b): president’s sanction

The proviso says that though a state legislature is empowered by cl. (b) to impose reasonable restrictions on the freedom of trade in the public interest, no law or amendment for this purpose may be introduced in the state legislature without the previous assent of the president.

Unless the presidential assent has been obtained, a law restricting trade or commerce cannot be upheld even if it imposes reasonable restriction or restriction which is merely regulatory with a view to facilitating trade. However, if the imposition of tax is compensatory or regulatory in nature, it will not be hit by article 301 or article 303, and thus, article 304 will not come into picture at all. In that case, there would be no question of obtaining the assent of the president under article 304(b)

The defect owing to want of previous assent may, however, be cured if the bill subsequently receives the president’s assent, by reason of article 255. Where the original act received the president’s sanction under article 304(b), no fresh sanction is required where the amending act, without imposing any additional restriction, merely varied the form of restriction. also, sanction for the rules framed under the act is not necessary.

Articles 301/304 vis-a-vis compensatory tax

Article 304(b) confers a power upon the state legislature similar to that conferred upon parliament by article 302 subject to the following differences:

(1) while the power of parliament under article 302 is subject to the prohibition of preference and discrimination decreed by article 303(1) unless parliament makes the declaration under article 303(2), the state power contained in article 304(b) is made expressly free from the prohibition contained in article 303(1) because the opening words of article 304 contain a non obstante clause both to article 301 and article 303.

(2) while parliament's power to impose restrictions under article 302 is not subject to the requirement of reasonableness, the power of the state to impose restrictions under article 304 is subject to the condition that they are reasonable.

(3) an additional requisite for the exercise of the power under article 304(b) by the state legislature is that previous presidential sanction is required for such legislation.

Broadly, the above analysis of the scheme of articles 301 to 304 shows that article 304 relates to the state legislature while article 302 relates to parliament in the matter of lifting of limitation, which flows from the freedom of trade and commerce guaranteed under article 301.]

Article 305: Saving of Existing Laws

Article 305 reads: "nothing in articles. 301 and 303 shall affect the provisions of any existing law except in so far as the president may by order otherwise direct, and nothing in

article 301 shall affect the operation of any law made before the commencement of the constitution (4th amendment) act, 1955, in so far as it relates to, or prevent parliament or a state legislature from making any law providing for state monopoly in a particular sphere of trade or commerce [i.e. a law under article 19(6)(2)]."

An act passed before the commencement of the constitution is included within the expression "existing law" even though the act has been brought into force after the commencement of the constitution. it has been held that where an "existing law" authorized the imposition of a tax, a resolution passed after the commencement of the constitution to levy such tax would be covered by the expression "existing law" (Bangalore woolen mills verses corporation. of Bangalore).

but if a bye-law, rule, order, notification or resolution made after the commencement of the constitution enhances or alters the rate of tax or duty authorized by the existing law, such subsequent bye-law, rule, etc. would not be "existing law". Such 'subordinate legislation' (i.e. rules, regulations or notifications) would not be covered by article 305.

Where under an "existing law", power was vested with an authority to impose a tax, the tax so levied by such authority would be saved by article 305 even though such a levy could not be imposed after the commencement of the constitution. If, by an amendment of "existing law" enacted after the commencement of the constitution, the character of the "existing law" is not changed, the amended law would be protected by article 305 (**Lila Vati Bai** verses State of Bombay).

Article 305 also lay down that laws creating state monopolies in a sphere of trade or commerce may not be declared invalid as infringing article 301. Article 19(6) (2) also provides for such state monopoly.

Article 307: Authority for carrying out purposes of articles 301-304

Article 307 empowers parliament to appoint by law such authority as it considers appropriate for carrying out the purposes of articles. 301-304. the exact composition of the authority to be established is left to the parliament.

Since the matters relating to trade, commerce and intercourse are more economic in content than legal, a body consisting of experts such as economists, businessmen and lawyers, may do a much better job in this area than a court having merely legal expertise.

Part 13: Difficulties in textual constructions

Text of the articles is a vital consideration in interpreting them. But, the text of-articles 301-307 are rather ambiguous. The expression 'subject to' and 'notwithstanding anything in article...' (i.e. non-obstante clause) are used inappropriately and indiscriminately.

Article 302 makes a relaxation in the favour of parliament, but art. 303 impose a restriction on that. Article 303 relates both to the parliament and state legislatures, though article 302 makes no relaxation in favour of the state legislature [(clause 1) relates to both, but (clause 2) only to the parliament]. Article 304 again begins with a non-obstante clause mentioning both the article 301 and article 303, though article. 304 relates only to the state legislature.

Freedom of trade and taxation

Part 12 of the constitution relates to 'taxation', while part 13 to 'freedom of trade, commerce and intercourse'. Part 13 of the constitution presents a number of problems in its interpretation. Two types of interpretation -wide and narrow, have been adopted by the courts in a number of cases.

Wider view – according to the wide view, article. 301 imposes a general restriction on the legislative power and grants a freedom of trade, commerce and intercourse in all its series of operations, from all barriers, from all regulations, and the only qualification (or restriction) that is to be found in the article is the opening clause, namely, 'subject to the other provisions of part 13'. The above view has two implications: firstly, article. 301 is not confined to the entries relating to 'trade and commerce'. Any law made under any entry in any of the three lists (under the seventh schedule), including taxing laws, May, accordingly interfere with the freedom guaranteed by article 301.

Secondly, regulatory measures or measures imposing compensatory taxes for the use of trading facilities also come within the purview of the restrictions contemplated by article.

301. this will mean that if a state legislature wishes to regulate trade or commerce, it cannot do so without obtaining the president's sanction as required by the proviso to article 304(b). the practical effect would be to stop or delay effective legislation which may be urgently necessary example in the interest of public health, and this would curb the autonomy of states (as the legislative powers of a state legislature has been held to be plenary with regard to subjects in list ii, which also includes imposition of taxes).

Narrower view – According to the narrow view, taxing laws are governed by part 12 provisions, and except article. 304(a) none of the other provisions of part 13 extend to the taxing laws. also, the provisions of part 13 apply only to such legislation as is made under the entries relating to 'trade and commerce'. this will mean that the prohibition in article 301 or article 303(1) did not extend to taxing laws, for, the taxing power was distinct from the entries relating to 'trade and commerce'. therefore, the freedom guaranteed by article 301 does not mean freedom from taxation, because taxation is not a restriction within the meaning of relevant articles in part 13. thus, taxation simpliciter is not within the terms of article 301.

In **Atiabari case**, the Supreme Court (dissenting opinion) adopted a narrower view of article 301 but not that narrow as discussed above. The majority, however, adopted a wider view of article 301, as discussed above.

In **Automobile Ltd. case**, the Supreme Court observed that neither the wide interpretation nor the narrow view is correct. "In our view, the concept of freedom of trade and commerce postulated by article 301 must be understood in the context of an orderly society and as part of a constitution which envisages a distribution of powers between states and union, and if so understood, the concept must recognize the need and legitimacy of some degree of regulatory control, whether by the union or the states; this is irrespective of the restrictions imposed by other articles in part 13". Thus, the Supreme Court in automobile case held that tax laws are not outside the comprehension of article 301 but regulatory/compensatory taxes do not come within the purview of the restrictions contemplated by article 301. Only the taxes which directly impede the flow of trade or commerce are violative of the freedom guaranteed under article 301.

Conclusions

(1) Taxes have been held to be generally outside the purview of art. 301 (viz. compensatory/regulatory taxes) unless the tax is shown to be a mere pretext designed to injure inter-state trade, commerce, etc., i.e. directly impedes the flow of trade.

(2) Every state has power under entry 56 and entry 57 of list ii to impose taxes to compensate it for the services, benefits and facilities provided by it. Thus, courts have rejected a construction of article 304 which would have rendered entries 56 and 57 otiose or inoperative without the consent of union executive.

(3) The word 'restriction' in article 304(b) has been held not to include regulation. Therefore, taxes or other measures which are regulatory will not come within article 304(b).

Public Service Commission

Articles 315 to 323 in Part XIV of the Constitution of India provides for the establishment of Public Service Commission for the Union and a Public Service Commission for each State. Each state has its own Public Service Commission with functions similar to the Union Public Service Commission. A difficult task in any country, it becomes all the more difficult in a multi-lingual, multi-religious country like India which has a number of minority groups and backward classes and where the state is the most significant employer and government service has a prestige of its own. The State Public Service Commissions were constituted under the provisions of the constitution of India. Union Public Service Commission is the India's central agency. The agency's charter was granted by the constitution of India. State Public service Commission is also a constitutional body.

Articles Relating To Public Service Commission:

- Article 315 - Public service commissions for the Union and for the States.
- Article 316 - Appointment and term of office of members.
- Article 317 - Removal and suspension of a member of a Public Service Commission.
- Article 318 - Power to make regulations as to conditions of service of members and staff

of the Commission.

- Article 319 - Prohibition as to the holding of offices by members of Commission on ceasing to be such members.
- Article 320 - Functions of Public Service Commission.
- Article 321 - Power to extend functions of Public Service Commission.
- Article 322 - Expenses of Public Service Commission.
- Article 323 - Reports of Public Service Commission.

Union Public Service Commission

(A) Composition:

The U.P.S.C. consists of a Chairman and a number of members who are appointed by the President who, of course, acts in this matter, on the advice of the concerned Ministers [Arts. 315(1) and 316(1)].

The President may appoint an acting Chairman of the Commission if the office of the Chairman falls vacant, or if the Chairman is unable to discharge his functions due to absence or some other reason. The acting Chairman functions till the Chairman is able to resume his duties, or the person appointed as Chairman enters on the duties of the office [Art. 316(1-A)].

A member of the Commission is to hold office for six years from the date he takes charge of his office, or until he attains the age of sixty-five years, whichever is earlier [Art. 316(2)]. A member may, however, resign from his office by writing to the President [Art. 316(2) (a)].

State of Mysore v. R.V.Bidap, AIR 1973 SC 2555: (1974) 3 SCC 337.

In this case, the Supreme Court held that a member, when appointed as Chairman in the middle of his term, starts a new six year term subject to other provisions of the Constitution.

(B) Removal of a Member:

The Chairman of the Public Service Commission is expected to show absolute integrity and impartiality in exercising the powers and duties as Chairman. His actions shall be transparent and he shall discharge his functions with utmost sincerity and integrity. If there is any failure on his part, or he commits any act which is not befitting the honor and prestige as a Chairman of the Public Service Commission, it would amount to misbehavior as contemplated under the constitution. If it is proved that he has shown any favor to the candidate during the selection process that would certainly be an act of misbehavior.

In R/O Ram Ashray Yadav, Chairman, State of Bihar, AIR 2000 SC 1448 at 1456: (2000) 4 SCC 309.

In this reference, the court concluded that no charge of misbehavior was established against Dr. Yadav, although, at times, he “did not exhibit exemplary behavior or conduct, expected of him”. There were “lapses” on his part but not “misbehavior” within the meaning of Art.317 of the Constitution inviting action of his removal from office under Art.317(1).

(C) Other Provisions:

A person who holds office as a member of the Commission cannot be re-appointed to that office on the expiry of his term of office [Art.316(3)], nor is he eligible for any other employment under the Central or the State Government [Art. 319(c)]. He can, however, be appointed as the Chairman of the Union Public Service Commission, or a State Public Service Commission [Art.319(c)].

The expenses of the UPSC, including any salaries, allowances and Pensions payable to or in respect of the members of the staff of the commission, are charged on the Consolidated Fund of India [Art.322]. This provision frees the Commission from parliamentary pressures.

(D) Functions Of The Commission:

It is the duty of the Union Public Service Commission to conduct examinations for appointment to the services of the Union [Art.320 (1)]. This does not mean that the examination should always be competitive and not selective. The object of holding the examination is to test the capacity of the candidates and just to have an idea whether a particular candidate is fit for the proposed appointment or not. In addition to the results of the examination, other considerations may also be kept in view in making appointments, e.g. the viva voce test. PSCs must scrupulously follow the statutory rules during recruitment and in making appointment.

H.S. Bedi v. Patiala, AIR 1953 Pepsu 196.

In this case, the Supreme Court held that the provision is directory and not mandatory and any appointment by the Government without consulting the Commission would not be invalid.

Kesava v. State of Mysore, AIR 1956 Mys. 20.

The Mysore High Court has held that since the Commission is an advisory or a consultative body to the Government, and also because under Art.323 the Government has to explain the reasons for non- acceptance of the Commission's advice, it is not open to the Commission to withhold any information wanted by the Government.

(E) Staff of the Supreme Court

The members of the staff of the Supreme Court do not fall within the purview of Art. 320(3) (c). The administrative control in respect of the staff of the Supreme Court is vested in the Chief Justice who has the power to appoint, remove, and make rules for their conditions of service. While the constitutional safeguards under Art.311 are available to every person in the civil service including persons employed in the Supreme Court, the safeguard in Art. 320(3) (c) is not available to the staff of the Supreme Court, otherwise it would be contrary to the implications of Art.146.

Jatinder Kumar v. State of Punjab, (1985) 1 SCC 122.

It has been held by the Supreme Court that the words "shall be consulted" in clause (3) of Article 320 are not to be construed as mandatory and accordingly in the absence of consultation the action of the Government under any of the sub-clauses of clause(3) shall not be null and

void.

State Public Service Commission

(A) Composition:

The Constitution establishes a Public Service Commission in each State [Art. 315(1)]. It is possible for two or more States to have a Joint Public Service Commission [Art.315 (2)]. The basic policy of the Constitution is that each State should have its own Public Service Commission, but if for administrative or financial reasons it is not possible for each State to have a Commission of its own, two or more States may have a Joint Public Service Commission. The composition of the State Commissions is governed by the same constitutional provisions as apply to the Union Commission. Thus, a State Commission consists of a Chairman and several members who are appointed by the Governor [Art 316(1)]. In case of a Joint Commission, the President makes these appointments [Art.316 (1)]. Like the U.P.S.C., as nearly as may be, one half of the members of a State Commission should be persons who have held a government office for at least ten years at the date of their appointment to the Commission [proviso to Art.316(1)].

All provisions regarding the tenure of a member of the Union Commission apply mutatis mutandis to a member of a State Commission except with the following differences:

1. The age of retirement of a member of a State Commission is 62 years instead of 65 years as in the case of a member of the U.P.S.C.
2. To resign, a member of a State Commission writes to the Governor and a member of a Joint Commission to the President [Arts. 316 and 317].
3. The expenses of the State Commission are charged on the Consolidated Fund of the State [Art.322]. The Governor makes provisions with respect to the number of the Commission's Staff and their conditions of service.
4. Under Art.317 (1), the President makes a reference to the Supreme Court, the question of misbehavior committed by the Chairman or a member of the State Public Service Commission for inquiry and report. If the court reports that he should be removed from office on any such ground, then the President shall remove him.

Hargovind Pant v. Raghukul Tilak

In this case, it has been ruled by the Supreme Court that a member of a State Public Service Commission can be appointed as the Governor of a State. The main reason for this ruling being that the office of the Governor, is a high constitutional office and cannot be said to be under the Government of India.

(B) Functions of the State Commission

A State Public Service Commission discharges all those functions in respect of the State Services as does the Union Commission in relation to the Union Services. The protection of Art. 320 (3) (c) does not apply to the staff of the High Court and, therefore, the Chief Justice need

not consult the State Public Service Commission when he dismisses a High Court employee. The State Legislature may impose additional functions on the State Commission regarding the State Services, local authority, public institutions or any other corporate authority constituted by law [Art. 321].

The State Commission is to be consulted by the Governor while framing rules for appointment to judicial service other than the posts of District Judges [Art. 234].

The State Commission is to present to the Governor an annual report of the work done by it. The report and the Governor's memorandum explaining as respects the cases where the Commission's advice was not accepted and the reasons for such non-acceptance, are to be laid before the State Legislature [Art. 323(2)]. A Joint Commission presents a similar report to each of the concerned State Governors and each Governor then takes the action as detailed above [Art.323(2)].

R. Hariharan v. K. Balachandran Nair, AIR 2000 SC 2933: (2000) 7 SCC 399.

In this case, a statutory provision requiring the Electricity Board to consult the State Public Service Commission in the matter of appointment of assistant engineers has been held to be mandatory.

Bihar Public Service Commission v. S.J. Thakur, AIR 1994 SC 2466: 1994 Supp SCC 220.

The Supreme Court has ruled that a member of the Commission could not question the validity or correctness of the functions performed or duties discharged by the Public Service Commission as a body. A member is regarded as a party to the function discharged or duty performed by the Commission, even though the member concerned might have been a dissenting member, or a member in a minority, or a member who abstained from participation in the function performed or duty discharged.

Conclusion

So, it is clear that the Public Service Commission is a constitutional and independent authority. It plays a pivotal role in the selection and appointment of persons to public services. The Commission has to perform its functions, and duties in an independent and objective manner uninfluenced by the dictates of any other authority. The Public Service Commission is expected to be fair and impartial and to function free from any influence from any quarter. Unfortunately, these bodies have not always maintained these high standards in some of the States.

Unit – V

Topics Covered

Emergency – Need of Emergency Powers - Different kinds of Emergency - National, State and Financial emergency - Impact of Emergency on Federalism and Fundamental Rights - Amendment of Indian Constitution and Basic Structure Theory

Emergency Provisions under Indian Constitution

Introduction

India is a federal country of “*its own kind*”. It acquires unitary features during an Emergency. Due to this reason, Dr B.R Ambedkar called the Indian Federal system as *unique* because it becomes entirely unitary during an Emergency. During an Emergency, as Constitutional machinery fails, the system converts itself into a unitary feature. The Emergency is a period of depression where all Fundamental Rights of a person is taken away except article 20 and 21.

Emergency Definition

An emergency is a situation which arises due to the failure of the government machinery which causes or demands immediate action from the authority.

According to the Black Law's Dictionary, “*Emergency is a situation which requires quick action and immediate notice as such a situation causes a threat to the life and property in the nation. It is a failure of the social system to deliver reasonable conditions of life*” .

Types of Emergency

Part- XVIII of Indian Constitution deals with the Emergency provisions i.e. Articles 352 to 360. There are three types of Emergencies mentioned in the Constitution. The power of imposing all three types of Emergencies is vested upon the President of India. The concept of Emergency was borrowed from the Weimar Constitution of Germany. The three types are as follows –

1. Article 352 – National Emergency
2. Article 356 – President's Rule
3. Article 360 – Financial Emergency

Grounds for the Proclamation of Emergency

National Emergency

Grounds for the proclamation of National Emergency are as follows:

War

When a country declares a formal war against India and there is a violent struggle using armed forces, the President of India may impose National emergency.

External Aggression

When a country attacks another country without any formal declaration of war. It is a unilateral attack by any country towards India. In such circumstances, the President of India may impose a National emergency.

Armed Rebellion

Emergency due to the armed rebellion may be imposed by the President of India when a group of people rebel against the present government which will lead to the destruction of lives and property.

State Emergency

Grounds for the Proclamation of the State Emergency is a failure in the Constitutional machinery of the state. In this Emergency, when Governor of the state is satisfied that the State is not functioning in accordance with the Constitutional provisions then he may write his report to the President of India. And the President, if satisfied by the report, may impose the President's rule. After that, the President will become the executive head of the state.

Financial Emergency

Grounds for the Proclamation of the Financial Emergency is that when a state arises in the Country which leads to a financial crisis in India, the President of India may impose emergency to tackle the situation. In this situation, the Central Authority may reduce the budget or cut the budget given to the State, salaries of the Government officials may be deducted.

Reason for Emergency in India

National Emergency

Article 352 deals with "*Proclamation of Emergency*" or "*National Emergency*". The President of India has the power to declare an Emergency in India or any part of India by making a Proclamation. Under this Article, if the President is satisfied that a grave emergency exists in India due to which there is a threat to the security of the nation, he may declare Emergency on the grounds of-

1. War
2. External Aggression
3. Armed Rebellion

The word "Armed Rebellion" was substituted for "Internal Disturbance" by the Forty-fourth Constitution Amendment Act, 1978.

National Emergency has been imposed three times in India so far. The time period in which this happened was from 1962-1977. Brief description of the emergencies are as follows – An emergency was imposed at the time of Indo-China war by the then President of India Dr Sarvepalli Radhakrishnan on the ground of external aggression from October 26, 1962, to January 10, 1968.

External Aggression means when a country attacks another country without any formal declaration of war. It is a unilateral attack by any country towards another country. **For example** – If a country attacks India without any formal declaration of war, in such a scenario, the President of India may impose a National Emergency.

Again, an Emergency was imposed from December 3, 1971, to March 21, 1977, by the then President of India Mr V.V. Giri during the Indo-Pakistan war. The reason was the same as above i.e. external aggression.

The third Emergency was imposed due to a clash between Legislature and Judiciary. Mrs Indira Nehru Gandhi, the then Prime Minister of India with the permission of the then President Fakhruddin Ali Ahmed declared an emergency. It was imposed for a period of 19 months from June 25, 1975 to March 21, 1977.

State Emergency

Article 356 deals with State Emergency or President's Rule in the State ("*Provisions in case of Failure of Constitutional Machinery in States*"). The President of India has the power to proclaim State Emergency when he receives a report from the Governor of that particular

State explaining that the situation in the State Government is such that they cannot carry out the Constitutional provisions.

President's Rule has been imposed on the State of Jammu and Kashmir for six years and 264 days from January 19, 1990, to October 9, 1996. The State has always been a target for many external elements. The Indian Government imposed President's Rule to control the situation of Jammu & Kashmir which was facing a military threat from Pakistan.

Punjab was under the President's Rule for 4 years and 259 days from June 11, 1987, to February 25, 1992. The reason for imposing President's rule in Punjab was the control of Khalistan Commando Forces which was a Sikh organisation which was involved in the genocidal attack on Hindus.

Till January 2016, the President's Rule has been imposed 124 times in India. During Indira Gandhi's regime, the President's Rule was invoked for maximum time. The President's Rule under her cabinet was imposed 35 times in various states.

The case **S.R Bommai v. Union of India** is a landmark case in respect of imposing President's Rule in any State. The case laid down the power of the Union Government in relation to the State Emergency under Article 356 of the Indian Constitution. Judicial Review of the President's Rule was made possible by this case. While giving the judgment, the court depended on ***Sarkaria's Commission Report, 1987.***

President's Rule can be judicially reviewed and the President becomes answerable only when the Emergency is imposed in certain cases, which are:

1. When there is Constitutional non-conformity by the State with the direction of Union
2. When there is a political crisis in the State.
3. When there is an internal subversion in the State

NUMBER OF TIMES PRESIDENT'S RULE HAS BEEN IMPOSED IN INDIAN STATES

Total 124



Source: <https://bit.ly/2OdQUIL>

Financial Emergency

Article 360 deals with “*Provisions as to Financial Emergency*”. Financial Emergency is imposed by the President when there arises any situation which causes a financial threat to India or any part of India.

Financial Emergency has never been imposed in India. However, in 1990, the possibility of financial emergency emerged but the situation was controlled by the Indian Government as in July 1991 the Reserve Bank of India pledged 46.91 tonnes of Gold with Bank of England and Union Bank of Switzerland to raise \$400 million.

Emergency Provisions

1. Article 352: Proclamation of Emergency.
2. Article 353: Effect of Proclamation of Emergency.
3. Article 354: Application of provisions relating to the distribution of revenues while a proclamation of emergency is in operation.
4. Article 355: Duty of the Union to protect States against external aggression and internal disturbance.
5. Article 356: Provisions in case of failure of constitutional machinery in State.
6. Article 357: Exercise of legislative powers under Proclamation issued under Article 356.
7. Article 358: Suspension of provisions of article 19 during Emergencies.
8. Article 359: Suspension of the enforcement of the rights conferred by Part III during emergencies.
9. Article 360: Provisions as to Financial Emergency.

Article 352

Article 352 (Part XVIII) talks about “*Proclamation of Emergency*”.

Clause 1 states that National Emergency may be imposed by the President if he is satisfied that there exists a grave situation due to which there is a threat to the security of India or any part of the territory because of:

- War
- External Aggression
- Armed Rebellion

The proviso of Clause 1 states that an Emergency may be proclaimed by the President even when there is no actual occurrence of war, external aggression, and armed rebellion. In this case, the President must be satisfied that there is an imminent danger.

Clause 2 states that another Proclamation may be issued to revoke and to make any variation in the previous Proclamation.

Clause 3 states that the President of India may declare an Emergency when Union Cabinet (Council of Minister headed by the Prime Minister) advice to him in writing.

Clause 4 states that before issuing Proclamation it is required to be placed before both the Houses of Parliament and shall end its effect at the expiration of one month unless both the Houses of Parliament approve it by resolution before the expiration of the said period.

Clause 5 states that proclamation approved in the second resolution shall have an effect up to six months and on expiry of six months, it will end to operate unless it is revoked in between the period.

44th Constitutional (Amendment) Act, 1978

The imposition of Emergency stressed the legislature to think again about the Constitutional provisions that provide power to the executive to supersede the judiciary hampering the basic structure of the Indian Constitution.

Under Article 352, the amendment had substituted the ground of “*Internal Disturbance*” with “*Armed Rebellion*”. The President is allowed to impose emergency only when the *Union Cabinet* communicates to him in writing about their decision.

The Proclamation is required to be approved by both the houses of Parliament by resolution within a month instead of two months by a total majority of the membership of each house of Parliament and by the ratification of not less than 2/3rd members present and voting in each house instead of a simple majority.

Under Article 356, the period for extension of a Proclamation from one month has been amended to six-months. Proclamation in the first instance can only be exceeded for six months.

Case Study

Indira Nehru Gandhi vs. Shri Raj Narain & Anr

Case No:- Appeal (civil) 887 of 1975

Bench:- **A.N. Ray J., H.R Khanna J., K.K Mathew J., M.H Beg J. and Y.V Chandrachud J.**

J. Facts

Raj Narain was a contender from Rae Bareilly Constituency in the 5th Lok Sabha Election 1971 against Indira Nehru Gandhi. Congress won the election with a majority in 1971 and Mrs Gandhi took the oath as a new Prime Minister of India. After the result of elections, Raj Narain approached the Allahabad High Court and filed a petition against Indira Nehru Gandhi contending that she had performed her election using corrupt practices.

Allahabad High Court observed in the case ***Raj Narain v. State of Uttar Pradesh*** that Indira Gandhi was guilty, as she misuses Government machinery under section 123(7) of Representation of Peoples Act, 1951. Indira Gandhi was barred to contest elections for six years and she was forbidden to continue as a Prime Minister of India.

Further, the court observed that “*Rules of evidence that prevent disclosure of certain government documents in court proceedings may be overridden if the public interest in disclosure outweighs the public interest in keeping documents secret*”.

The judgement led in a declaration of National Emergency under Article 352 by the then President of India Fakhrudeen A. Ahmad. The reason given for imposing an emergency was “*Internal Disturbance*”.

Raj Narain’s case was on conditional stay up to their appearance in the Supreme Court on August 11, 1975. However, on August 10, 1975, Thirty-Ninth Constitutional (Amendment) Act, 1971 was done and it inserted Article 329A which bar the Supreme Court to entertain the matter. Further on one can question the election of Prime Minister, President, Vice- President and the Speaker of Lok Sabha.

Issues

Whether the 39th Constitutional (Amendment) Act, 1971 was Constitutionally valid?

Judgment

Referring to the landmark judgment of ***Kesavananda Bharati v. State of Kerala*** for the first time the Supreme Court observed that Clause 4 of Article 329A is violative and unconstitutional. It violates the principle of separation of power as it provides functions of the judiciary to the

legislature. The amendment violated the “*Rule of Law*”.

The Apex Court finds the 39th Constitutional Amendment Act, 1971 as violative of the basic structure of the India Constitution and unconstitutional and therefore declares it as void.

Effects of National Emergency

Under Article 358, National Emergency suspends the rights guaranteed under Article 19 of the Indian Constitution. Also, other Fundamental Rights get suspended under Article 359 except Article 20 and 21.

Article 20 of the Indian Constitution deals with the “*Protection in respect of conviction from offences*”. This Article is pillars of all the Fundamental Rights which are guaranteed by the Indian Constitution. It protects the right of an individual in case of conviction.

Article 21 of the Indian Constitution deals with “*Protection of life and personal liberty*” because no person shall be deprived of his life and personal liberty except procedure established by law.

Under this kind of Emergency, the State Government comes under the direct control of the Central Government. The State Government has to work as per the direction is given by the Union.

The distribution of financial resources between the Union and the State may be suspended by the President.

The Parliament acquires power over the subjects of the State List which ceases on the expiry of six months.

Article 356

Part XVIII, Article 356 talks about “*Provision in case of failure of constitutional machinery in states*” or “*President’s Rule*”.

The State Emergency or President’s Rule is imposed by the President of India when the Constitutional machinery of State collapse and is unable to carry in accordance with the Indian Constitution. The President will impose an emergency when he will get a report of such a situation from the Governor of that particular state.

The Governor will report about the situation in the State that the government is unable to carry out in accordance to the provisions of the Constitution and the Emergency imposed upon such a report shall have an effect up to six months, after the expiry of which Emergency will end to have an effect on the State.

The maximum period for the State Emergency is three years after which it can be extended after a Constitutional amendment. It requires constant approval from the Parliament every six months.

Imposing of the State Emergency continuously became arbitrary in India. In the landmark judgment of ***State of Rajasthan & Ors v. Union of India***, the Supreme Court observed that Courts have no power to review the Proclamation passed under Article 352. Imposing the State emergency continuously becomes arbitrary in India due to this reason and, hence, the Supreme Court finds it necessary to overturn the decision.

In the case, ***S. R. Bommai V. Union of India***, the Supreme Court observed that, under Article 356, President of India has restricted power and they are subjected to judicial review. The Supreme Court has the power to declare the emergency void even if both the houses of Parliament passed the Proclamation.

Effects of State Emergency

During the State Emergency or President’s Rule, the entire State administrative machinery is

transferred to the Union. President becomes executive head of the State and Governor works under his name.

Legislative Assembly of the state may be dissolved or it may be suspended. Parliament took over the charge of making laws in the **66 subjects** of the **List-II** i.e. State List. All the ministers of State Legislative assembly were barred from performing any action as every money bill is required to be first referred to the Parliament for approval.

State's High Court functions independently in such a situation. There is no effect of an emergency in the State Judiciary. High Court may even entertain the petition filed against the President's Rule. In 2016, the Congress Government approached the Nainital High Court against the President's Rule imposed under Narendra Modi's regime.

It was imposed by the then President of India Pranab Mukherjee. The High Court of Uttarakhand gave its verdict in favour of Harish Rawat's government and declared to restore the Congress Government in the State of Uttarakhand. Later, the judgement was

upheld by the Supreme Court of India and the Congress Government continued its period of governance.

How many times State Emergency declared in India

There are different circumstances under which the President's Rule is imposed, these are:-



Image Source: <https://bit.ly/2Y9GpQb>

1. When the coalition government in the State collapses.
2. Law and orders are not followed in the State.
3. Failure to elect Chief Minister by the State Legislature.
4. Postponement of the State Elections due to any reasons.

In India, till 2018, the President's Rule was imposed 126 times by the President of India. Maximum times the President's Rule was invoked during Indira Gandhi regime i.e. 35 times.

Article 360

Part XIII, Article 360 talks about "*Financial Emergency*".

Financial Emergency is proclaimed by the President of India if he is satisfied that a situation of financial instability has arisen in the nation or any part of the nation. Emergency imposed under Article 360 shall not have effect after the expiration of two months from the date it was issued unless both the Houses of Parliament approve it by passing a resolution.

The situation of 1991 led to the circumstances of the financial crisis. But it was solved after introducing New Economic Policy by Economist Dr Manmohan Singh. No financial emergency was imposed so far in India.

Effects of Financial Emergency

During the Financial Emergency, Parliament has the power to reduce the salaries and allowances of the people working under the Union or the State Government. Financial and Money Bills passed by the State Legislature of the State will be sent to the President of India for his consideration.

Parliamentary approval and duration of the Emergency

In India, there are three types of Emergencies and all the three emergencies have a different duration up to which they remain in force. Parliamentary approval also differs in each emergency as the duration for approval of a resolution of emergency is different in each kind of emergency. The Parliamentary procedure for passing the resolution of Emergency is discussed as follows:

Parliamentary approval and duration of the National Emergency

Proclamation of National Emergency operates for the maximum period of six months subject to approval in every six months. There is no period prescribed up to which period may be extended.

Under Article 352, when the President imposes an Emergency, it must be approved by both the Houses of Parliament by a resolution within a month from the date of its issue. Before the 44th Amendment Act, 1978, the period for approval was two months.

Meanwhile, Lok Sabha gets dissolved when the Proclamation was issued or Lok Sabha dissolved without approving the proclamation of Emergency, one month will be counted from the first day of sitting of the Lower House i.e. Lok Sabha after its reconstitution. It is required that in the meantime Rajya Sabha has approved the proclamation.

When both the houses of Parliament approve the proclamation, it will remain in force for six months and there is no maximum time limit for Proclamation. It is subjected to renew by both the Houses of Parliament through resolution in every six months.

If Lok Sabha gets dissolved within six months from the date of issue of the resolution without further approving the Proclamation of Emergency. In this situation, the Proclamation will survive until a month from the first day of Lok Sabha after its reconstitution. It is required that in the meantime Rajya Sabha has approved the Proclamation.

Every resolution for imposing Emergency or continuance of Emergency must be passed by either of the House of Parliament by a special majority, i.e. a majority of the total membership of that house and a majority of not less than 2/3rd members of the house present and voting.

Parliamentary approval and duration of the State Emergency

Proclamation of the State Emergency operates for the maximum period of six months or three years (subject to extension of the period).

Under Article 356, when the President imposes Emergency it must be approved by both the Houses of the Parliament by resolution within two months from the date of its issue after which it ceases to affect.

If Lok Sabha gets dissolved when a proclamation was issued, then it must be passed within 30 days from the first day of sitting of Lok Sabha after its reconstitution. In such situations, Rajya Sabha must approve the Proclamation.

The duration of six months can be extended, subject to the approval in six months. But every Proclamation passed under this Article cannot be extended for more than three years.

Parliamentary approval and duration of the Financial Emergency

Under Article 360, before the President imposes emergency it shall be approved by both Houses of Parliament. Otherwise, after the expiry of two months, from the date of issuance of the proclamation, it ceases to operate.

In case, Lok Sabha dissolves within two months, Lower House is required to approve the proclamation within thirty days from the first day of sitting after its reconstitution. Rajya Sabha must approve it in the meantime.

Why was Emergency declared in 1975

Background

National Emergency has been imposed three times in India. But, the Emergency of 1975 emerged as the Constitutional revolution in Indian history. The emergency of 1975 emerges as the dark phase for the Indian Constitution. The situation which leads to the Proclamation of Emergency was the fifth Lok Sabha election in 1971 in which Indira Gandhi won the election with a majority. Her opponent contender from Rai Bareilly was Raj Narain who approached the Allahabad High Court by filing a petition against Indira Gandhi's election.

Allahabad High Court's judgement was not acceptable to the Indira Gandhi who declared the decision against her. They barred her from contesting election for the next six years and the Court also barred her to continue the post of Prime Minister. To secure her post, Indira Gandhi came up with a strategy that shook the nation and questioned the democracy of India.

The President of India Fakhruddin Ali Ahmed imposed National emergency on June 28, 1975, a day before hearing of the case of **Raj Narain v. State of Uttar Pradesh** in the Supreme Court as an appeal. The reason behind the Proclamation of the Emergency was "Internal Disturbance". This Emergency was imposed when the emergency of 1971 due to the Indo-China war was already in force in India.

The situation was becoming out of control, the Prime Minister of India was barred to contest election for the next six years and her present post was declared to be occupied using ill corrupt practices. Military and Police started disobeying the orders of the Government.

Union Railway Minister L.N. Mishra was murdered at Samastipur. A tussle between the central, opposition, and the citizens created an environment of violence, threat and agitation. The Parliament approved the Proclamation of Emergency and subsequently, National Emergency

was imposed in India.

1975 Emergency Reason

1. Allahabad High Court gave judgement against the Prime Minister. Judgement barred her to contest election for the next six years and finds her involvement in ill corrupt practices in 5th Lok Sabha election of 1971.
2. The demonstration was organised by the opposition under the supervision of Jayaprakash Narayan.
3. The relationship between the Judiciary and Legislative become weak as Parliament's amendment of the Fundamental Rights was opposed by the Supreme Court.
4. An agitation that was launched in Gujarat in 1974 by the opposition party.

Consequences

1. Freedom of the Press was suspended and *Indian Raj Censorship* was imposed under which newspapers get prior approval for publication.
2. Fundamental Rights of the citizens were suspended.
3. Opposition leaders were arrested and strikes were banned.
4. Under **42nd Constitutional (Amendment) Act, 1976**, Elections of the Prime Minister, the President, and the Vice-President was kept out of the purview of justification from the court.
5. Provision of *Habeas Corpus* was neglected nullifying the rights of citizens under Article 21.

Effects

1. It led to the political crisis and Constitutional crises on the Indian polity.
2. Many new political parties emerged after 1977.
3. Emergency showed its impact on 1977 Lok Sabha election as *Janta Party* won the election.
4. Fundamental Rights of the citizens were strengthened.
5. The 44th Constitutional (Amendment) Act, 1978, was passed to clear the ambiguity of provisions of emergency.

To sum up, everything that has been stated, the 1975 Emergency emerges as the dark side of the Indian Judiciary. The emergency of 1975 was not less than a dark age of the Indian democracy because during this period India emerged as a weak democratic country. It affected the federal structure of democracy. It left the legislature to think about the provisions of the Constitution.

The Indian Constitution was continuously amending to favour one's situation. Later, it becomes necessary to amend the Constitution again, but this time to maintain its supremacy.

In **Kesavananda Bharati v. State of Kerala**, the Supreme Court observed that "Parliament does not possess any power under Article 368 to amend the basic structure of the Constitution. Parliament has the power to amend the entire Constitution whenever it becomes necessary according to the requirement subject to, they cannot touch the Fundamental Rights which are the basic structure of the Constitution".

List of National Emergencies

National Emergency was invoked three times from 1962 to 1977.

First National Emergency was invoked in October 1962 during Indo-China war. This Emergency remained in force till January 1968. It was imposed by the then President of India

Shri. Sarvepalli Radhakrishnan. The reason for imposing this emergency was the Chinese attack in Arunachal Pradesh (North-East Frontier Agency). External Aggression was ground for invoking the Emergency.

The second Emergency was invoked in December 1971 during the Indo-Pak war. This Emergency remained in force till March 1977. This Emergency was imposed by the then President of India Mr V.V. Giri. The reason for imposing Emergency was war in Bangladesh. Ground for imposing this Emergency was External Aggression, the Indian military was clashing with the military of Pakistan to provide independence to East Pakistan.

The period of the war was 11 days and considered as the shortest war in the World. But, in the meantime, the third emergency was imposed in India. The third emergency continued the second emergency until 1977.

The third Emergency was invoked in June 1975 due to an internal disturbance in the Central Government. It remained in force till March 1977. This Emergency was imposed by the then President of India Fakhruddin Ai Ahmed. It was imposed when the second Emergency was already in existence. The real cause behind this Emergency was to secure the seat of the then Prime Minister of India Mrs Indira Nehru Gandhi who was found guilty in corrupt practices during her constituency campaign by the Allahabad High Court.

Impact of Emergency in India

Most of the time Emergency have an adverse impact on the country. Whenever an Emergency was imposed, whether it was the National Emergency or State emergency, it has questioned the democracy of India. More time it was imposed, more democracy shows its unitary structure. Impact of Emergency in India is:-

1. It deprives the citizens of their Fundamental Right.
2. The Freedom of Media was suspended.
3. Emergency overturned the Constitution.
4. Censorship orders barred newspapers to print anything without any prior consent from the government.

National Emergency of 1975 resulted in the arrest of many opposition leaders such as Morarji Desai, Jay Prakash Narayan, Atal Bihari Vajpayee and Lal Krishna Advani under Maintenance of Internal Security Act, 1971. The arrest of these leaders led to the filing of petitions in various High Courts challenging the detention. Indira Gandhi Government approached the Supreme Court because at the time of Emergency Fundamental Right under Article 21 remained suspended so this does not allow the writ of *Habeas Corpus* and the case came out to be known as the *Habeas Corpus* case.

A.D.M Jabalpur Case

Background

After defeat in the Lok Sabha election of 1971, Raj Narain challenged the election in the Allahabad High Court on the ground that she was guilty of corruption from her constituency. In the case of **Raj Narain v. State of Uttar Pradesh**, Allahabad High Court found Indira Gandhi's involvement in corrupt practices and declared her election invalid. Indira Gandhi approached the Supreme Court where *Justice Krishna Iyer* put a conditional stay on Allahabad judgement. On a day before hearing of the case in the Supreme Court, President Fakhruddin Ali Ahmed declared Emergency on the ground of "*Internal Disturbance*".

During the Emergency, Fundamental Rights remained suspended under Article 14 and 21, as well as any proceedings related to the enforcement of these Articles also remained suspended during the period of Emergency. Anyone who was causing a threat to the politics was arrested under *Preventive Detention* Law. Many famous political leaders were

arrested under the **Maintenance of Internal Security Act, 1971** (MISA) because their activities were causing a political threat to Indira Gandhi.

These leaders approached the High Court against the arrest and the High Court made a decision in their favour. Indira Gandhi's Government filed a petition in the Supreme Court as a Fundamental Right under Article 21 is suspended writ cannot be issued.

Issues

1. Whether writ of Habeas Corpus is maintainable by the High Court questioning illegal detention when an emergency was imposed by the President?
2. Whether suspension of Rights and Liberty of any person under Article 21 is valid under Rule of Law?
3. Whether detinue have *locus standi* during the proclamation of emergency?

Judgement

Supreme Court observed that under Article 359 clause (1) no person has *locus standi* to approach the High Court under Article 226 to enforce his fundamental right of personal liberty in case of detention by filing a writ of *habeas corpus*. Fundamental Rights remain suspended during the Emergency. A person cannot invoke *habeas corpus* by filing an application under Section 491 of the Code of Criminal Procedure, 1973. Supreme Court declared Section 16A (9) of Maintenance of Internal Security as constitutionally valid.

Conclusion

Emergencies in India are imposed by the President after both the House of Parliament passed the resolution of the Proclamation of Emergency. Where the State Emergency or President's Rule is quite frequently used by the President, National Emergency had become a part of history.

The national emergency of 1975 shows the weaker or dark phase of the Judiciary. Cases like **Indira Gandhi v. Raj Narain** and **A.D.M Jabalpur v. Shiv Kant Shukla** show loophole in the judicial system. Both cases do not recognize the Fundamental Rights of citizens during emergencies. There was a need to change the mechanism and it was done in Kesavananda Bharati's case.

Amendment Procedure of the Indian Constitution

With the development of the State in every sphere, amendment has become necessary. The Constitution should be able to serve the needs of the society. People would have opted for extra constitutional remedies like Revolution, had there been no amendment procedure. The framers of the Constitution were anxious to have a document which could grow with a growing nation, adapt itself to the changing need and circumstances of growing people. When a Constitution is too flexible, it results in wrong exercise of power and thus harms its original provisions. When a Constitution is too rigid, it fails to grow according to the needs of a state. Therefore, the Indian Constitution is partly flexible and partly rigid.

Article 368 contains the provisions for the Amendment of the Indian Constitution. The Constitution provides three ways for amendment. They are:

Amendment by Simple Majority

Certain Articles of the Constitution can be amended by simple majority. Article 368 does not deal with this category of amendment. The following provisions require amendment by simple majority:

- Citizenship
- Abolition or creation of Legislative Councils in States
- Creation of Local Legislatures or Council of Ministers or both for certain Union Territories
- Admission or establishment of new states
- Use of English language in the Parliament
- Quorum of the Parliament
- Rules of procedure in the Parliament
- Delimitation of Constituencies
- Fifth schedule
- Sixth schedule, etc.

Amendment by Special Majority

Articles which require amendment by special majority come under the ambit of Article 368. The Articles which require amendment by special majority shall be brought into effect by a majority of the total members of each House of the Parliament and by majority of not less than 2/3 of the members of that House who are present and voting.

- The impeachment of the President under Article 61
- Approval of national emergency, etc. comes under this category.
- The Provisions which cannot be amended by Simple Majority and which do not require Ratification by States are amended by Special Majority.

Amendment by Special Majority and Ratification by States

Some Articles require Amendment by Special Majority as well as ratification by not less than ½ of the State Legislatures. The States have an important role in the amendments of these matters. The following provisions require ratification by the States:

- Election of President – Articles 54, Article 55
- Extent of Executive powers of the Union and States – Article 73, Article 162
- Articles dealing with Judiciary, Supreme Court, High Court in the States and Union Territories – Articles 124 to 147, Article 214 to 231, Article 241
- Distribution of Legislative powers between the Centre and the State – Article 245 to Article 255
- Any of the Lists of Seventh Schedule
- Representation of States in Parliament Forth Schedule
- Article 368 (Amendment)

Procedure for Amendment

A Bill in order to amend the Constitution may be introduced by any House of the Parliament and must be passed by each House by a majority of the total membership of that House and by a majority of not less than 2/3 of the members of that House who are present and are voting. After being passed by both the Houses, it shall be presented to the President and he shall give his assent to the Bill. In this process the Constitution is amended.

Position in Australia

In Australia, amendment of the Constitution shall be proposed by an absolute majority of both the Houses of the Parliament. Then it shall be submitted to the electors for approval within 6 months and on being approved by a majority of the electors in majority of the states, the Constitution stands amended.

Position in America

The American Constitution can be amended by 2/3 of the votes of both Houses or by a convention called on the application of the Legislatures of 2/3 of the States. The amendment procedure followed in Australia and America is difficult as compared to the procedure in India.

Amendment of Fundamental Rights

The topic of amendment of Fundamental Rights arose in the case of ***Shankari Prasad V Union of India***. In this case, it was held that the power to amend the Constitution includes the power to amend Part III of the Constitution too. In the subsequent case that is ***Sajjan Singh V State of Rajasthan*** the Court approved its previous decision and held that Fundamental Rights can also be amended.

In the case of ***Golak Nath V State of Punjab*** the Supreme Court held that Part III of the Constitution cannot be amended and Parliament cannot abridge the fundamental rights of the citizens.

In the case of ***Kesavananda Bharati V State of Kerala*** the Supreme Court held that the Parliament can amend any part of the Constitution but the basic structure of the Constitution must be maintained.

Basic structure of Indian Constitution

The Supreme Court has held that the basic structure of the Constitution cannot be amended. Basic structure includes provisions like Supremacy of the Constitution, Democratic and Republic form of Government, Sovereign, Secular, Socialist character, Judicial Review, Fundamental Rights.

Criticism of Amendment Procedure

The following are the criticisms of the Amendment procedure:

- The State Legislatures have a mere voice in the Amendment procedure.
- India lacks the provision of seeking public opinion on any Constitutional Amendment.
- Any time limit regarding ratification by States has not been provided. As a result such amendments can be killed if the States take no action.
- An amendment in order to be valid should be passed by both the Houses. There may be differences in opinion between the Houses but any procedure regarding solving it has not been provided in the Constitution.

Illustrations

Simple Majority – For example, the strength of Lok Sabha is 545. 500 Members were present. 400 Members were present and voting. So the Simple majority is 50% of 400+1 that is 201.

Special Majority – For example, the strength of Rajya Sabha is 245. The number of members who are present and are voting is 150. The special majority will be 2/3 of 150+1 that is 101.

Basic structure (doctrine) of the Constitution

The constitution empowers the Parliament and the State Legislatures to make laws within their respective jurisdiction. Bills to amend the constitution can only be introduced in the Parliament, but this power is not absolute. If the Supreme Court finds any law made by the Parliament

inconsistent with the constitution, it has the power to declare that law to be invalid. Thus, to preserve the ideals and philosophy of the original constitution, the Supreme Court has laid down the basic structure doctrine. According to the doctrine, the Parliament cannot destroy or alter the basic structure of the doctrine. The basic structure doctrine is an Indian judicial principle that the Constitution of India has certain basic features that cannot be altered or destroyed through amendments by the parliament. Key among these "basic features", as expounded by its most prominent proponent Justice Hans Raj Khanna, are the fundamental rights granted to individuals by the constitution. The doctrine thus forms the basis of a limited power of the Supreme Court to review and strike down constitutional amendments enacted by the Parliament which conflict with or seek to alter this "basic structure" of the Constitution. The basic structure doctrine applies only to constitutional amendments. The basic features of the Constitution have not been explicitly defined by the Judiciary, and the claim of any particular feature of the Constitution to be a "basic" feature is determined by the Court in each case that comes before it. The basic structure doctrine does not apply to ordinary Acts of Parliament, which must itself be in conformity with the Constitution. Evolution of the Basic Structure The word "Basic Structure" is not mentioned in the constitution of India.

The concept developed gradually with the interference of the judiciary from time to time to protect the basic rights of the people and the ideals and the philosophy of the constitution.

- The First Constitution Amendment Act, 1951 was challenged in the *Shankari Prasad vs. Union of India* case. The amendment was challenged on the ground that it violates the Part- III of the constitution and therefore, should be considered invalid. The Supreme Court held that the Parliament, under Article 368, has the power to amend any part of the constitution including fundamental rights.

The Court gave the same ruling in *Sajjan Singh Vs State of Rajasthan* case in 1965. The "basic features" principle was first expounded in 1964, by Justice J.R. Mudholkar in his dissent, in the case of *Sajjan Singh v. State of Rajasthan*. He wrote, It is also a matter for consideration whether making a change in a basic feature of the Constitution can be regarded merely as an amendment or would it be, in effect, rewriting a part of the Constitution; and if the latter, would it be within the purview of Article 368 ?

"Supreme Court declared that the basic structure/features of the constitution is resting on the basic foundation of the constitution. The basic foundation of the constitution is the dignity and the freedom of its citizens which is of supreme importance and cannot be destroyed by any legislation of the parliament.

The basic features of the Constitution have not been explicitly defined by the Judiciary. At least, 20 features have been described as "basic" or "essential" by the Courts in numerous cases, and have been incorporated in the basic structure. In *Indira Nehru Gandhi v. Raj Naraian* and also in the *Minerva Mills* case, it was observed that the claim of any particular feature of the Constitution to be a "basic" feature would be determined by the Court in each case that comes before it.

- In *Golak Nath vs State of Punjab* case in 1967, the Supreme Court overruled its earlier decision. The Supreme Court held that the Parliament has no power to amend Part III of the constitution as the fundamental rights are transcendental and immutable. According to the Supreme Court ruling, Article 368 only lays down the procedure to amend the constitution and does not give absolute powers to the parliament to amend any part of the constitution.

- The Parliament, in 1971, passed the 24th Constitution Amendment Act. The act gave the absolute power to the parliament to make any changes in the constitution including the fundamental rights. It also made it obligatory for the President to give his assent on all the Constitution Amendment bills sent to him. In 1973, in Kesavananda Bharti vs. State of Kerala case, the Supreme Court upheld the validity of the 24th Constitution Amendment Act by reviewing its decision in Golaknath case. The Supreme Court held that the Parliament has power to amend any provision of the constitution, but doing so, the basic structure of the constitution is to be maintained. But the Apex Court did not any clear definition of the basic structure. It held that the "basic structure of the Constitution could not be abrogated even by a constitutional amendment". In the judgement, some of the basic features of the Constitution, which were listed by the judges. The basic features of the Constitution are as follows: 1. Supremacy of the constitution 2. Republican and democratic form of government 3. Secular character of the constitution 4. Federal character of the constitution 5. Separation of power 6. Unity and Sovereignty of India 7. Individual freedom Important Supreme Court Decisions

Case	Decision by the Supreme Court
Shankari Prasad Vs. Union of India, 1951	The Parliament, under Article 368, has power to amend any part of the constitution
Sajjan Singh Vs. State of Rajasthan, 1965	The Parliament, under Article 368, has power to amend any part of the constitution
Golak Nath Vs. State of Punjab, 1967	The Parliament is not powered to amend the Part III (Fundamental Rights) of the constitution
Kesavananda Bharti Vs. State of Kerala, 1971	The Parliament can amend any provision, but can't dilute the basic structure
Indira Gandhi Vs. Raj Narain, 1975	The Supreme Court reaffirmed its concept of basic structure
Minerva Mills Vs. Union of India, 1980	The concept of basic structure was further developed by adding 'judicial review' and the 'balance between Fundamental Rights and Directive Principles' to the basic features
Kihoto hollohan Vs. Zachillhu, 1992	'Free and fair elections' was added to the basic features
Indira Sawhney Vs. Union of India, 1992	'Rule of law, was added to the basic features
S.R Bommai vs Union of India, 1994	Federal structure, unity and integrity of India, secularism, socialism, social justice and judicial review were reiterated as basic features